



बैंक ऑफ़ बड़ौदा *Bank of Baroda*



Request for Proposal (RFP) for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

Bank of Baroda
Baroda Sun Tower
IT Department
C-34, G-Block
Bandra Kurla Complex
Bandra (East), Mumbai - 400 051

RFP Reference: GEM/2026/B/7188106

Date: 03rd February 2026

[A] Important Dates:

#	Particulars	Timeline
1	RFP Issuance Date	03rd February 2026
2	RFP Coordinator Name, Contact details (Bank)	Mrs. KANCHANA RANI G, Officer (IT), Contact Details – Ph.: 022-6917-4118/4124, Email: rfp.it.procurement@bankofbaroda.co.in Postal Address: The Chief Manager (IT Procurement), Bank of Baroda, Dena Bhawan- A Wing, Patel Estate, Jogeshwari (W) - 400102.
3	Pre–bid Meeting details	- Pre bid meeting will be held online/ offline on 11-02-2026 - Bidder to submit a maximum of -2- participant's names, contact numbers, designations and e-mail IDs on rfp.it.procurement@bankofbaroda.com in advance before pre-bid meeting along with pre-bid clarification. - Bank will share the pre-bid meeting details with the interested Bidders
4	Last Date of Submission of RFP Response (Closing Date)	24th February 2026 at 3.00 PM Mode: Online (on GeM Portal)
5	Eligibility Cum Technical Bid Opening Date	24th February 2026 at 3.30 PM
6	Commercial Bid	Bank will open the commercial bids of only those bidders who qualify in the eligibility and technical bid evaluation.
7	Bid Security (Earnest Money Deposit)	Rs. 2 Cr (Rupees Two Crore only). MSE / Startups will be exempted from EMD submission as per Govt. of India guidelines
8	Mode of bid submission	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436
9	Support details of Online Portal facilitator	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436

[B] Important Clarifications:

Following terms are used in the document interchangeably to mean:

1. Bank, BOB means 'Bank of Baroda', its Sponsored RRBs
2. Recipient, Respondent, Bidder, Service Provider, SI (System Integrator) means the respondent to the RFP document
3. RFP means the Request For Proposal document
4. Proposal, Bid means "Response to the RFP Document"
5. Tender means RFP response documents prepared by the bidder and submitted to Bank of Baroda
6. Bidder / Bidder, Bank shall be individually referred to as 'Party' and collectively as 'Parties'
7. Support means Support & Services to be provided as part of the Scope of Work
8. ATP means Acceptance Test Procedure
9. AMC means Annual Maintenance Contract
10. DC Means Data Centre
11. DR Means Data Recovery Centre
12. Banking, Financial services and Insurance (BFSI)
13. Central Vigilance Commission (CVC)
14. Earnest Money Deposit (EMD)
15. One Time Cost (OTC)
16. Total Cost of Ownership (TCO)
17. NPV mean Net Present Value
18. Service Level Agreement (SLA)
19. NDA means Non-Disclosure Agreement
20. Customer Relationship Management (CRM)
21. Single Person of Contact (SPOC)
22. Total Cost of Ownership (TCO)
23. Bill of Material (BOM)
24. Customer Relationship Management (CRM)

Confidentiality:

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to Copyright Laws. Bank of Baroda expects the vendors or any person acting on behalf of the vendors strictly adhere to the instructions given in the document and maintain confidentiality of information. The vendors will be held responsible for any misuse of information contained in the document, and liable to be prosecuted by the Bank In the event that such a circumstance is brought to the notice of the Bank. By downloading the document, the interested party is subject to confidentiality clauses.



Contents

1. Introduction	7
1.1 Introduction	7
1.2 Project overview	7
1.3 Project Scope	8
1.4 Pre-Qualification for Submission of Bid.....	8
1.5 Disaster Recovery Mechanism.....	9
1.6 Contract period.....	9
1.5. Delivery	9
1.6 Service Levels and Uptime Guarantee	10
1.7 Technical Bid Response	10
1.8 Right to Alter Quantities	11
1.9 Payment Terms.....	11
1.10 Additional Requirement.....	13
1.11 Ownership, Grant and Delivery	13
1.12 Escrow Mechanism	15
1.13 Audit	15
1.14 Insurance	16
2. Evaluation process	17
3. Terms and conditions.....	24
3.1 General Terms and conditions	24
3.2 Rules for Responding to this RFP	25
3.3 Bid Security / Earnest Money Deposit	34
3.4 Exemption for EMD amount	35
3.5 Preference to make in India initiative	35
3.6 Performance Guarantee.....	36
3.7 Service Level Agreement and Non-Disclosure Agreement	36
4. General Terms and Conditions.....	38
4.1 Compliance with Laws	38
4.2 Grievance Redressal	38
4.3 Dispute Resolution.....	38



4.4	Governing Laws	39
4.5	Prevention of Corrupt and Fraudulent Practices.....	39
4.6	Notices and other Communication	40
4.7	Force Majeure	40
4.8	Assignment.....	41
4.9	Sub-Contracting	41
4.10	Waiver.....	41
4.11	Confidentiality	41
4.12	Termination.....	43
4.13	Publicity	45
4.14	Solicitation of Employees.....	45
4.15	Inspection of Records.....	46
4.16	Visitorial Rights	46
4.17	Compliance with Laws	46
4.18	Indemnity	46
4.19	Corrupt and Fraudulent Practices	48
4.20	Violation of Terms	49
4.21	Information/Cyber-Security Measures/Controls for selected SP:	49
4.22	Information Confidentiality.....	49
4.23	Limitation of Liability	50
4.24	INTELLECTUAL PROPERTY RIGHTS	50
4.25	Information Confidentiality.....	51
4.26	SET-OFF	51
4.27	COVENANTS OF THE SERVICE PROVIDER	51
4.28	VICARIOUS LIABILITY	55
4.29	Order / Contract Cancellation.....	55
5.	Disclaimer.....	57
	Annexure 02 – Evaluation Terms	62
	Annexure 03 – Declaration/ undertaking from bidder regarding applicability of restrictions on procurement from a bidder of a country which shares a land border with India as per the order no. 6/18/2019-PPD dated 23rd July 2020 issued by Ministry of finance department of expenditure	66



Annexure 04 – Bid Security (Earnest Money Deposit)	70
Annexure 05 – Bid Security Form	72
Annexure 06 – Bid security Declaration for MSE/Startup	76
Annexure 07 – Letter of Undertaking from the bidder	80
Annexure 08 - Letter of Undertaking from OSD	83
Annexure 09 – Pre-Bid Queries Form	84
Annexure 10 – Conformity Letter	85
Annexure 11–Undertaking of Information Security	86
Annexure 12 – Project Scope	87
Annexure 13 – Service Levels and Service Credits	175
Annexure 14 – Masked Commercial Bid	177
Annexure 15–Commercial Bid	180
Annexure 16 – Performance Bank Guarantee (PBG)	183
Annexure 17 – Declaration/ undertaking from bidder to comply with the Information and cyber security controls	187
Annexure 18 – Binding Criteria for Technical Presentation	188
Annexure 19 – Information/Cyber-Security Measures/Controls for selected Service Provider	189
Annexure 20 – Integrity Pact	190
Annexure 21 – SERVICE LEVEL AND NON-DISCLOSURE AGREEMENT FORMAT	195
Annexure 22 - Letter of Undertaking from OEM/ OSD on Compliance to RBI Master Direction on Outsourcing of IT Services RBI/2022-23/xx DoS.CO.CSITEG/SEC.xx/31.01.015/2022-23 Dated 23rd June 2022	218
Annexure 24 – SLA/BG Execution Conformity Letter	219
Annexure 20 – Software Bill of Materials (SBOM)	220

1. Introduction

1.1 Introduction

Bank of Baroda is one of the largest Public Sector Banks (PSU) in India with a branch network of over 8400+ branches in India and around 100+ branches/offices overseas including branches of our subsidiaries, distributed in 15+ countries.

Bank of Baroda, a body corporate constituted under the Banking Companies (Acquisition & Transfer of Undertakings) Act 1970, having its Corporate Office at C-26, G-Block, Bandra Kurla Complex, Bandra East, Mumbai - 400051 (hereinafter referred to as the “Bank”) which expression unless repugnant to the context or meaning thereof shall mean and include its successors and assigns, intends to issue this RFP document, hereinafter called RFP, to eligible Vendors, hereafter called as ‘Vendors’, to participate in the competitive bidding for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

1.2 Project overview

The Bank is presently using Siebel CRM Version IP 16, an Oracle-based application. Now Bank want to select a vendor for procurement and implementation of a modern CRM solution in a cloud-based SaaS model. The high level scope of the RFP would cover the following modules:

- Service Management with Customer 360° (QRC)
- Complaint Management
- Lead Management
- Campaign Management
- Sales Management
- Wealth Management
- Data Analytics and Forecasting
- Opportunity Management and Collections Management
- Data Management & Integration with various systems
- Contact Center with IVR integration (Optional)
- Digital Onboarding • Relationship Banking & RM Toolkit
- Marketing Automation & Journeys
- Knowledge Base & Case Management
- Omnichannel & Self-Service
- Mobile & Field CRM

- Partner & Channel Management
- Reporting & Dashboards

This Request for Proposal (RFP) document has been prepared solely for the purpose of enabling Bank of Baroda (“the Bank”) for Request for Proposal for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

The Bank, for this purpose, invites proposals from Vendors who are interested in participating in this RFP who fulfill the eligibility criteria mentioned under Annexure- 02 and are also in a position to comply with the technical requirement as mentioned in Project Scope. Apart from the above the vendor must also agree to all our terms & conditions mentioned under this RFP.

The RFP document is not a recommendation, offer or invitation to enter into a contract, agreement or any other arrangement, in respect of the services. The provision of the services is subject to observance of the selection process and appropriate documentation being agreed between the Bank and any successful Vendor as identified by the Bank, after completion of the selection process as detailed in this document.

1.3 Project Scope

Bank desires to select vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

The scope of work is mentioned in Annexure 12. However, Bank reserves the right to modify/change the scope of work at any phase of this procurement process.

Bank will award the contract to the successful bidder, and the bidder should deliver the services as per the Detailed Scope of Work mentioned in Annexure 12 and the Functional and Technical Requirement as mentioned in this RFP.

Considering the enormity of the assignment, any service which forms a part of the Project Scope that is not explicitly mentioned in scope of work as excluded would form part of this RFP, and the Bidder is expected to provide the same at no additional cost to the Bank. The Bidder needs to consider and envisage all the services that would be required in the Scope and ensure the same is delivered to the Bank. The Bank will not accept any plea of the Bidder at a later date for omission of services on the pretext that the same was not explicitly mentioned in the RFP.

1.4 Pre-Qualification for Submission of Bid

Bidders satisfying the eligibility conditions (mentioned in Annexure 02) and General terms and conditions specified in this document and ready to provide the said “Services” in conformity with Project Details and Scope of Work stipulated in Annexure 12, may submit their bid through Government e Marketplace (GeM) on or before the last date of bid submission.

Bids submitted by any other means other than bid submission in Government e Marketplace

(GeM) will not be accepted by the Bank. The detail guidelines for submission details and E-tendering mentioned under “Guidelines and E-tendering Instructions”.

1.5 Disaster Recovery Mechanism

The proposed system must be capable of and compatible for Disaster Recovery Implementation. The bidder should describe the provisions for disaster recovery and show that the proposed solution facilitates disaster recovery.

The bidder needs to submit the technical architecture relating to data replication between primary and secondary site

1.6 Contract period

The bank shall enter into an agreement with the selected bidder for a period starting from the date of the Purchase Order till -5- years from the Go-Live Closure Sign-off date given by the Bank officials. Bank will have the right to change the start of contract date at its own discretion due to any unforeseen circumstances.

The contract will be deemed completed only when all the items and services contracted by the Bank are provided in good condition, implemented, tested and accepted along with the associated documentation provided to Bank’s employees; as per the requirements of the contract executed between the Bank and the Bidder. The Bank will have the right to renegotiate these prices at the end of the contract period.

1.5. Delivery

Customer Relationship Management (CRM) Solution must be implemented as per project scope within **-15- months** in totality from the date of placing of purchase order by the Bank.

Bank has planned to implement the complete solution in phases. The implementation timeline for each phase is as follows:

Phases	Module Name	Time required for the activity
1	Service Management with Customer 360° (QRC)	6 Month
	Lead Management	
	Sales Management	
2	Complaint Management	9 Months
	Campaign Management	
	Marketing Budgeting and all other functionalities as per scope	

*Bank is already using inhouse apps for DSA, RMs and also having 3rd party integration with different modules. The same need to be migrated within above mentioned timelines.

The solution as per the required scope needs to be rolled out as per the delivery timelines mentioned above.

Any delivery that has not been supplied/implemented or not operational on account of which the implementation is delayed, will be deemed/treated as non-delivery thereby excluding the Bank from all payment obligations under the terms of this contract.

In case the individual phase wise deadlines are not met then the Vendor will have to pay penalty to Bank of Baroda @ 0.5% of particular phase implementation cost inclusive of all taxes, duties, levies etc., per week or part thereof, for late implementation beyond due date of implementation, to a maximum of 10%. If delay exceeds two weeks from due date of implementation, Bank of Baroda reserves the right to cancel the entire order.

Any deliverable has not been implemented or not operational on account of which the implementation is delayed, will be deemed/treated as non-delivery thereby excluding the Bank from all payment obligations under the terms of this contract.

1.6 Service Levels and Uptime Guarantee

For details, please refer to Annexure 13 that provides the service levels for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

1.7 Technical Bid Response

The Technical bid response should include all the information required to assess technical proposal. It should also include details on following aspects:

- a) High-level service delivery roadmap & delivery schedule as per the requirement of the Bank.
- b) Program/Project Management methodology, processes, service management & governance structure (also highlight expectations from the Bank to meet the service levels and scope of work).
- c) Integration methodology – Internal & External Third party - Standards
- d) Technology considerations to meet requirements on SLAs, Operational resilience, availability, business continuity and observability
- e) Sample SLA reports/templates, deliverable reports, executive dashboards, monitoring dashboards, application performance monitoring etc.
- f) Technology considerations and proposed capabilities for security, audit & compliance requirements
- g) Details of ITSM and COBIT capabilities considered and proposed for implementation
- h) Resource deployment strategy including resource continuity, key roles, governance and service management structure, third party outsource approach and any nature of similar work performed in past engagements
- i) Detail steps on how to measure, track, monitor and proposed plan to achieve service level KPIs and SLA parameters
- j) Technical requirements.

- k) Any other point important which bidder feels important/relevant to evaluate the technical proposal and capabilities.

Technical Proposal Attention Items

- a) This RFP is not a contract offer. Receipt of a proposal neither commits Bank to award a contract to any vendor, nor limits Bank's rights to negotiate with any vendors, suppliers or contractors in Bank's best interest. Bank reserves the right to contract with any vendor, supplier or contractor at its own discretion.
- b) Bank reserves the right to request additional information necessary and pertinent to the project so as to assure the vendor's ability and qualification to perform the contract.
- c) Failure to answer any questions within stipulated timeline at any stage of this RFP may be considered non-responsive and the proposal may be disqualified.
- d) For any ambiguity, omissions or unclear content in the RFP the vendors should request Bank to clarify along with pre-bid queries within the time line mentioned in the "[A] Important Dates.
- e) For all technical details and relevant standards and specifications of this RFP that may not be stated in detail; vendors should ensure and provide quality and industrial standard products to Bank.
- f) In case of any difference in the standards between this RFP and the vendors' proposal, the higher standards shall prevail and be applicable.
- g) Expenses incurred in the preparation of proposals in response to this RFP are the sole responsibility of the vendors.
- h) Bank reserves the right to accept or reject any and all proposals, or any part of any proposal, without penalty. Any allowance for oversight, omission, error, or mistake by the vendor made after receipt of the proposal will be at the sole discretion of Bank.

1.8 Right to Alter Quantities

The Bank reserves the right to alter the requirements specified in the Tender. The Bank also reserves the right to delete one or more items from the list of items specified in the Tender. The Bank will inform all Bidders about changes, if any. The Bidder agrees that the Bank has no limit on the additions or deletions on the items for the period of the contract. Further the Bidder agrees that the prices quoted by the Bidder would be proportionately adjusted with such additions or deletions in quantities.

1.9 Payment Terms

The payment will be released as follows:

A. License cost –

- a. 75% of the licence fee shall be payable upon Go-Live acceptance, evidenced by an Acceptance Form duly signed and stamped by the Bank's authorized Project Manager and the Bidder's authorized representative
- b. The remaining 25% of the licence fee shall be payable upon successful adoption of the module, measured against mutually agreed adoption criteria and KPIs, including

(where applicable) demonstrable improvement in service TAT and other business KPIs defined for that functional module.

B. Implementation and Integration Cost (OTC)

a. Phase I

- 50% of Implementation Cost plus applicable tax (wherever applicable) after UAT Sign off of phase 1 items of scope of work as mentioned in delivery section. UAT Sign Off should be sealed and signed by both Bank's identified Project Manager and the bidder's representative
- 25% of Implementation Cost plus applicable tax (wherever applicable) after Implementation, Customization & Go-Live acceptance of phase 1 items of scope of work as mentioned in delivery section. Go-Live acceptance, evidenced should be sealed and signed by both Bank's identified Project Manager & bidder's representative
- 25% of Implementation Cost plus applicable tax (wherever applicable) after successful adoption plan signoff of Phase 1 from the Bank. successful adoption plan signoff in the form of Final Acceptance should be signed by both Bank's identified Project Manager & bidder's representative

b. Phase II

- 50% of Implementation Cost plus applicable tax (wherever applicable) after UAT Sign off of phase 2 items of scope of work as mentioned in delivery section. UAT Sign Off should be sealed and signed by both Bank's identified Project Manager and the bidder's representative
- 25% of Implementation Cost plus applicable tax (wherever applicable) after Implementation, Customization & Go-Live acceptance of phase 2 items of scope of work as mentioned in delivery section. Go-Live acceptance, evidenced should be sealed and signed by both Bank's identified Project Manager & bidder's representative
- 25% of Implementation Cost plus applicable tax (wherever applicable) after successful adoption plan signoff of Phase 2 from the Bank. successful adoption plan signoff in the form of Final Acceptance should be signed by both Bank's identified Project Manager & bidder's representative

C. Integration Charges (Contract Centre) - 100% of payment on actual no. of successful integrations will be released quarterly at the end of each Quarter against receipt of Integration report signed by both the Bank's Project / Operation Manager and bidder's representative.

D. Onsite Support Charges – Payable quarterly at the end of each quarter against receipt of satisfactory support report including attendance signoff of previous quarter

from the Bank's Project / Operation Manager. Payment for onsite support will be proportionate to the attendance.

- E. **Customization Charges** – Payable on actual use of Man-day cost at the end of the completion of the customization effort against receipt of signoff from the Bank's Project / Operation Manager.

All the above documents to be duly signed by the authorized service delivery head of the vendor.

The Bank will pay invoices within a period of 30 days from the date of receipt of undisputed invoices. Any dispute regarding the invoice will be communicated to the selected vendor within 15 days from the date of receipt of the invoice. After the dispute is resolved, Bank shall make payment within 30 days from the date the dispute stands resolved. There shall be no escalation in the prices once the prices are fixed and agreed to by the Bank and the vendors. But, any benefit arising out of any subsequent reduction in the prices due to reduction in duty & taxes after the prices are fixed and before the delivery should be passed on to the Bank. Further, the above payments will be released only after submission of PBG, signing of SLA (including Do & Don't) and NDA by Successful Bidder.

The Vendor must accept the payment terms proposed by the Bank. The commercial bid submitted by the vendors must be in conformity with the payment terms proposed by the Bank. Any deviation from the proposed payment terms would not be accepted. The Bank shall have the right to withhold any payment due to the vendor, in case of delays or defaults on the part of the vendor. Such withholding of payment shall not amount to a default on the part of the Bank. If any of the items / activities as mentioned in the price bid is not taken up by the bank during the course of the assignment, the bank will not pay the professional fees quoted by the vendor in the price bid against such activity / item.

1.10 Additional Requirement

The price payable to the bidder shall be inclusive of carrying out any modifications changes / upgrades to the application and other software or equipment that is required to be made in order to comply with any statutory or regulatory requirements or any industry-wide changes (including any changes suggested in VAPT observations) arising during the subsistence of the contract / agreement, and the Bank shall not pay any additional cost for the same. Version upgrades that do not necessitate technology refresh or architectural change will come under this scope. Bank will carry out VA/PT Audit and will share the observations/open points with the successful bidder. The bidder has to close the observations if any of all the in-scope applications in co-ordination with respective OEMs/OSDs.

1.11 Ownership, Grant and Delivery

The bidder shall procure and provide a non-exclusive, non-transferable, perpetual licenses to the Bank for the solution to be provided as a part of this project. The Licenses for the solution should not be restricted to use case. The Bank can use the solution at any of its overseas branches / offices and locations and present & future RRBs without restriction and

use of software by service providers on behalf of the Bank would be considered as use thereof by the Bank and the software should be assignable / transferable to any successor entity of the Bank.

The license shall specifically include right:

- A. To Use. (i) to use the executable code version of the Solution and all Enhancements, Updates and New Versions made available from time to time solely for business operations of the Bank; (ii) to use the Program Documentation for purposes of installing or operating the Programs and supporting the use of the Software by the Bank; (iii) to use the technical Training Materials for purposes of supporting Users; (iv) to use the executable code version of the Software and all Enhancements, Updates and New Version made available from time to time for Test and Development, Training, Near DR, Disaster Recovery Site of the Bank.
- B. To Copy. (i) to copy the Software that operates on server systems to support the users of the Bank; (ii) to make additional copies of the Program Material for archival, emergency back-up, testing, or disaster recovery purposes; and (iii) to copy the Program Documentation to support its Users.
- C. To work as interface: (i) to work with other Application Software packages at the Bank as interface; (ii) to allow other application software packages at the Bank to work as interfaces to the Software. If such interfacing requires any modification or change to the Platform, such modification or change has to be carried out by the Bidder free of any additional License charge or fees or expenses.
- D. The grant of license by the Bidder herein shall be for processing the internal business of the Bank or its permitted affiliates and does not, without limitation, include the rights to reverse engineer, reverse compile or otherwise arrive at the source code of the Software nor does it include the rights to sell, lease, license, sublicense or otherwise transfer, convey or alienate the software for commercial consideration to any person.

Except as specifically agreed by and between Bidder and Bank, the ownership of all rights, title and interest, including without limitation, all patents, copy right, trade secrets and any other form of intellectual property rights in and to software, any derivative works thereof and enhancements thereto, software and documentation are and shall at all times remain with the Bidder or its Licensors and be the sole and exclusive property of the Bidder or its Licensors. The Bank acknowledges that nothing contained in this Tender and subsequent Agreements shall be construed as conveying by the Bidder or its licensor's title or ownership interest in any licensed software or any derivative works thereof and enhancements thereto. Nothing contained herein shall be construed to preclude Bidder from owing, using, improving, marketing, including without limitation, licensing to other persons any and all licensed software.

- E. Rights: The Bidder shall ensure that the software does not infringe third party intellectual property rights. If a third party's claim endangers or disrupts the Bank's

use of the software, the Bidder shall be required to, at no further expense, charge, fees or costs to the Bank, (i) obtain a license so that the Bank may continue use of the software in accordance with the terms of this Tender and subsequent Agreement and the license agreement; or (ii) modify the software without affecting the functionality in any manner so as to avoid the infringement; or (iii) replace the software with a compatible, functionally equivalent and non-infringing product; or (iv) refund to the Bank the amount paid for the infringing software and bear the incremental costs of procuring a functionally equivalent software from a third party, provided the option under the sub clause (iv) shall be exercised by the Bank in the event of the failure of the Bidder to provide effective remedy under options (i) to (iii) within a reasonable period which would not affect the normal functioning of the Bank. The Bidder shall have no liability for any claim of infringement based on (i) a claim which continues because of Bank's failure to use a modified or replaced software that is at least functionally equivalent to the software, or the Bank's failure to use corrections, fixes, or enhancements made available and implemented by the Bidder, despite notice of such failure by the Bidder in writing, (ii) any change, not made by or on behalf of the Bidder, to some or all of the software / deliverables supplied by the Bidder or modification thereof, provided the infringement is solely on account of that change ; or (iii) the Bank's continued misuse of some or all of the software / deliverables or any modification thereof despite notice from the Bidder of such misuse in writing.

Bidder is the Prime Vendor for purposes of all deliverables and services, with the single-point responsibility for the same. Should the solution provided by the successful bidder be infringing, it would have a serious business impact on the business of the Bank.

Therefore, the bidder should take responsibility of its actions. Even if Bank would have used the deliverables before the infringement was noticed, legally each such use constituted infringement and therefore the bidder is in breach of the bidder's warranty and obligation

1.12 Escrow Mechanism

The Bank and the successful bidder shall agree to appoint an escrow agent to provide escrow mechanism for the deposit of the source code for the software product supplied / procured by the Bidder to the Bank in order to protect its interests in an eventual situation. In case of a disagreement between the Bank and the Bidder regarding appointment of an escrow agent, the Bank shall appoint an escrow agent in its entire discretion which shall be final and binding on the Bidder. The Bank and the Bidder shall enter into a tripartite escrow agreement with the designated escrow agent, which will set out, inter alia, the events of the release of the source code and the obligations of the escrow agent. Costs for the Escrow will be borne by the Bidder. As a part of the escrow arrangement, the final selected bidder is also expected to provide a detailed code documentation

1.13 Audit

All Bidder records with respect to any matters covered in this RFP shall be made available to auditors and or inspecting officials of the Bank and/or Reserve Bank of India and/or any regulatory authority, at any time during normal business hours, as often as the Bank deems

necessary, to audit, examine, and make excerpts or transcripts of all relevant data. Said records are subject to examination.

Bank's auditors would execute confidentiality agreement with the Bidder provided that the auditors would be permitted to submit their findings to the Bank, which would be used by the Bank. The cost of the audit will be borne by the Bank. The scope of such audit would be limited to Service Levels being covered under the contract, and financial information would be excluded from such inspection, which will be subject to the requirements of statutory and regulatory authorities.

The Bank and its authorized representatives, including Reserve Bank of India (RBI) or any other regulator shall have the right to visit any of the Bidder's premises without prior notice to ensure that data provided by the Bank is not misused. The Bidder shall cooperate with the authorized representative/s of the Bank and shall provide all information/ documents required by the Bank.

Compliance with best security practices may be monitored periodically by computer security audits / Information Security Audits performed by or on behalf of the Bank. The periodicity of these audits will be decided at the discretion of the Bank. These audits may include, but are not limited to, a review of access and authorization procedures, backup and recovery procedures, network security controls and program change controls. The Bidder must provide the Bank access to various monitoring and performance measurement systems. The Bidder has to remedy all discrepancies observed by the auditors at no additional cost to the Bank.

1.14 Insurance

The Service Provider may be required to take adequate insurance cover against all kinds of risks including fidelity clause for the loss arising from acts of omission/ commission/ dishonesty of its employees and / or agents and would be required to keep the insurance policy alive at all times during the currency of the agreement. Bidder should have cyber insurance policy to cover first party and third-party liability coverage to organisation when cyber risk materializes and / or cyber security controls at organization fails. The coverages established by the cyber insurance shall cover property, theft and network level security.

2. Evaluation process

A two bid, 3-stage process is adopted for selection of the Service Provider:

- ▶ Stage 1 –Eligibility Bid evaluation
- ▶ Stage 2 - Evaluation methodology for eligible bidders
 - Technical Bid Evaluation
 - Commercial Bid Evaluation
 - Weighted evaluation

During evaluation of the Tenders, the Bank, at its discretion, may ask the Bidder for clarification in respect of its tender. The request for clarification and the response shall be in writing, and no change in the substance of the tender shall be sought, offered, or permitted. The Bank reserves the right to accept or reject any bids in whole or in parts without assigning any reason thereof. The decision of the Bank shall be final and binding on all the bidders to this document and bank will not entertain any correspondence in this regard.

A. Eligibility Evaluation (Stage 1)

Eligibility criterion for the Bidder to qualify this stage is clearly mentioned in Annexure 02 – Eligibility Criterion Compliance to this document. The bidder would need to provide supporting documents as part of the eligibility proof.

B. Technical Bid Evaluation (Stage 2)

The Technical Proposal will also be evaluated for technical suitability.

The technical bids of only those bidders who qualify for the above-mentioned eligibility criteria will be evaluated. The Technical Proposal will be evaluated for technical suitability. The technical proposal should be complied with the technical requirements as mentioned under Project Details and Scope of Work Annexure 12 and Functional and Technical Requirement. Demonstration of the proposed solution and the product is mandatory as part of the technical evaluation.

If any of the requirements is found non-complied, the proposal will be disqualified outright

The vendor needs to achieve a cut – off score of 75% in this evaluation stage to be qualified for commercial bid opening. Only those vendors who achieve the specified cut – off scores would be short-listed for Commercial Bid Evaluation.

Technical Proposal will be evaluated for technical suitability and the criteria for evaluation of technical bids are as under:

Evaluation Parameters	Sub Scores
-----------------------	------------

The Bidder should have experience of implementing CRM Modules for which scoring will be done as given below			25
#	Scoring Criteria	Marks	
1	Implementation of bidder all 6 module* of proposed CRM solution by themselves in -3- Scheduled Commercial Bank out of which one should be in India.	15	
2	Implementation of bidder by themselves at least 5 modules out of 6 proposed modules* in -3- Scheduled Commercial Bank out of which one should be in India	10	
3	Implementation of bidder by themselves at least 4 modules out of 6 proposed modules* in -3- Scheduled Commercial Bank out of which one should be in India	5	
4	Implementation of bidder by themselves at least 3 modules out of 6 proposed modules in -3- Scheduled Commercial Bank out of which one should be in India	3	
The Scheduled Banks should have at least -1500- branches. (Documentary Proof to be attached along with order / contract copy and confirmatory letter from serving Bank)			
Vendor as part of Presentation / Demonstration should showcase the features available in their proposed system, which should meet and comply with the bank's RFP requirement. Bank as part of the presentation shall evaluate the RFP scope & criteria along with the following parameters and accordingly allocate the marks: - o In-depth understanding of the Bank's Technical and Functional requirements mentioned in the scope of work. (Presentation should cover all the following) - o Product features along with the Product Roadmap and adoption plan - o Solution Architecture & Business Continuity - o IT integration architecture along with implementation approach & methodology, Project Planning and governance - o Demonstrate sample customer journeys, preferably implemented in live sites ,aligned to the requirements and distinct capabilities outlined in the RFP			50
- o Propose an approach/framework to define and measure KPIs and business outcomes. - o Demonstrate an understanding of implementing and driving adoption for large scale transformation programs, and outline a recommended approach to ensure successful CRM adoption across the bank.			15
o Compliance with regulatory and Gov. regulation & master direction, Data Privacy (DPDP) & Security			10
TOTAL MARKS			100

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

***Proposed Solution should include following Module**

1. Lead Management
2. Campaign Management
3. Sales Management
4. Service Management and customer 360 degree
5. Complaint management
6. Contact centre with IVR integration

If required Bank may ask the bidder for Site Visit and Reference Call with client.

The vendor should present and demonstrate the proposed solution which will be evaluated on functional and technical requirements given in the RFP. Further the Bank's officials would visit reference sites provided by the Vendor if deemed necessary.

In case there is only one bidder having technical score of 75% or more, the Bank may, at its sole discretion, also consider the next highest technical score and qualify such bidder. In case, none of the participating bidders qualify on technical criteria and reach or exceed the cut-off score of 75%, then the Bank, at its sole discretion, may qualify two bidders on the basis of the top two scores. However, the Bank at its discretion may reject the proposal of the Bidder or will not consider bidder below cutoff marks by relaxing as mentioned above, if in the Bank's opinion the bidder could not present or demonstrate the proposed services/projects as described in the proposal or in case the responses received from the customer contacts / site visits are negative or the proposed service/projects/solution does not meet the Bank's functional and technical requirement.

C. Commercial Bid (Stage 2)

The commercial bids of only those bidders who qualify in both eligibility and technical evaluation will be opened. The date for opening of the commercial bid would be communicated separately to the technically eligible Bidders. The commercial bid would be evaluated based on a "Total Cost of Ownership" ('TCO') basis. The key considerations of the TCO would be the total payouts for entire project through the contract period of 3 years, discounted at 10% to arrive at the present value of the future cash outflows. The evaluation will be done as follows:

- ▶ The discounted rate will be calculated on yearly basis based on the formula $A/(1+i/100)^n$ where A= Total Value in each Year; i=10% and n =Year.
- ▶ The Present Value will be calculated for all components where the payment is recurring year on year. The Present Value for the component will start from the year of purchase of that component / start of the services (AMC) and shall be calculated till the end year of the contract. Further n - number of period will be '0' in the year of purchase of that component / start of the services and subsequently increased by 1 for subsequent years.

Any component / service for which the payment is a One Time Cost the NPV cost of the equipment / service for that year will be considered and the relevant year's NPV cost will be added as part of the Present Value calculation for that year. Further the payment of the OTC

component / service not being recurring in nature hence the present value for that component / service will be considered in the year of purchase only and not in subsequent years.

D. Weighted Evaluation (Stage 2):

On the basis of the combined weighted score for technical and commercial evaluation, the bidders shall be ranked in terms of the total score obtained. The proposal obtaining the highest total combined score in evaluation of quality and cost will be ranked as H-1 followed by the proposals securing lesser marks as H-2, H-3 etc. The proposal securing the highest combined marks and ranked H-1 shall be recommended for award of contract.

As an example, the following procedure can be followed:

A score (S) will be calculated for all qualified bidders using the following formula:

$$\frac{C_{low}}{C} \times 100 + \frac{T}{T_{high}} (1 - X)$$

C stands for discounted rate arrived basis of commercial evaluation;

C_{low} stands for the lowest discounted rate arrived basis of commercial evaluation.

T stands for technical evaluation score

T_{high} stands for the highest technical score achieved by any eligible bidder and

X is equal to 0.30.

#	Bidder	Technical Evaluation Marks (T)	Discounted Rate (C)	$\left[\frac{T}{T_{high}}\right] \times 0.70$ (A)	$\left[\frac{C_{low}}{C} \times 100\right] \times 0.30$ (B)	Score (S = A + B)
1	AAA	75	120	58.3	25	83.3
2	BBB	80	100	62.2	30	92.2
3	CCC	90	110	70	27.3	97.3

In the above example, **C_{low}** is 100 and **T_{high}** is 90.

In the above example, CCC, with the highest score becomes the successful bidder.

In case of more than one vendor with equal highest score (S) upto three decimal, then number of decimal will be increased.

The decision of the Bank shall be final and binding on all the vendors to this document. The Bank reserves the right to accept or reject an offer without assigning any reason whatsoever.

Commercial Bids Terms

a. In the event the bidder has not quoted for any mandatory items as required by the Bank and forming a part of the tender document circulated to the Bidder's and responded to by the bidder, the same will be deemed to be provided by the bidder at no extra cost to the Bank.

b. In the event the Bank has not asked for any quotes for alternative prices, and the bidder Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

furnishes the alternative price in the Bidder's financial bid, the higher of the prices will be taken for calculating and arriving at the Total Cost of Ownership. However, payment by the Bank will be made at the lower price. The Bank in this case may also reject the offer outright.

- c. In the event optional prices are not quoted by the bidder, for items where such prices are a must and required to be quoted for, the highest price quoted by any of the participating Bidder will be taken as the costs, for such alternatives and also for arriving at the Total Cost of Ownership for the purpose of evaluation of the Bidder. The same item has to be supplied by the Bidder free of cost
- d. The bidder is requested to quote in Indian Rupee (INR). Bids in currencies other than INR would not be considered. Eligible Bidders shall be notified by GeM portal upon opening of Commercial Bids.
- e. The prices and other terms offered by bidders must be firm for an acceptance period of 180 days from the opening of the commercial bid.
- f. In case of any variation (upward or downward) in Government levies / taxes / cess / duties etc. which has been included as part of the price will be borne by the bidder. Variation would also include the introduction of any new tax / cess/ duty, etc provided that the benefit or burden of other taxes quoted separately as part of the commercial bid like GST and any taxes introduced instead of GST and levies associated to GST or any new taxes introduced after the submission of bidder's proposal shall be passed on or adjusted to the Bank. If the Bidder makes any conditional or vague offers, without conforming to these guidelines, Bank will treat the prices quoted as in conformity with these guidelines and proceed accordingly. Necessary documentary evidence should be produced for having paid any tax/cess/duty, if applicable, and or other applicable levies.
- g. If any Tax authorities of any state, including, Local authorities like Corporation, Municipality etc. or any Government authority or Statutory or autonomous or such other authority imposes any tax, charge or levy or any cess / charge other than GST and if the Bank has to pay the same for any of the items or supplies made here under by the bidder, for any reason including the delay or failure or inability of the bidder to make payment for the same, the Bank has to be reimbursed such amounts paid, on being intimated to the Bidder along with the documentary evidence. If the Bidder does not reimburse the amount within a fortnight, the Bank shall adjust the amount out of the payments due to the Bidder from the Bank along with the interest calculated at commercial rate.
- h. Terms of payment as indicated in the Purchase Contract that will be issued by the Bank on the selected Bidder will be final and binding on the bidder and no interest will be payable by the Bank on outstanding amounts under any circumstances. If there are any clauses in the Invoice contrary to the terms of the Purchase Contract, the bidder should give a declaration on the face of the Invoice or by a separate letter explicitly stating as follows "Clauses, if any contained in the Invoice which are contrary to the terms contained in the Purchase Contract will not hold good against the Bank and that the Invoice would be governed by the terms contained in the Contract concluded between the Bank and Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management

(CRM) Solution on Subscription (SaaS) Model

the bidder”.

- i. The Bank is not responsible for any assumptions or judgments made by the bidder for arriving at any type of costing. The Bank at all times will benchmark the performance of the bidder to the RFP and other documents circulated to the bidder and the expected service levels as mentioned in these documents. In the event of any deviations from the requirements of these documents, the bidder must make good the same at no extra costs to the Bank, in order to achieve the desired service levels as well as meeting the requirements of these documents. The Bank shall not be responsible for any assumptions made by the bidder and the Bank’s interpretation will be final.
- j. The Commercial Offer should give all relevant price information and should not contradict the Technical Offer in any manner. There should be no hidden costs for items quoted.
- k. The Bank is not responsible for the arithmetical accuracy of the bid. The bidders will have to ensure all calculations are accurate. The Bank at any point in time for reasons whatsoever is not responsible for any assumptions made by the Bidder. The Bank at a later date will not accept any plea of the bidder or changes in the commercial offer for any such assumptions.
- l. Considering the enormity of the assignment, any service which forms a part of the Project Scope that is not explicitly mentioned in scope of work as excluded would form part of this RFP, and the Bidder is expected to provide the same at no additional cost to the Bank. The Bidder needs to consider and envisage all services that would be required in the Scope and ensure the same is delivered to the Bank. The Bank will not accept any plea of the Bidder at a later date for omission of services on the pretext that the same was not explicitly mentioned in the RFP

Price Comparisons

- a. The successful bidder will be determined on the basis evaluation mentioned in Evaluation Criteria in this RFP document.
- b. Normalization of bids: The Bank will go through a process of evaluation and normalization of the bids to the extent possible and feasible to ensure that bidders are more or less on the same ground of evaluation. After the normalization process, if the Bank feels that any of the bids needs to be normalized and that such normalization has a bearing on the price bids; the Bank may at its discretion ask all the shortlisted bidders to resubmit the commercial bids once again for scrutiny. The Bank can repeat this normalization process at every stage of bid submission or till the Bank is satisfied. The bidders agree that they have no reservation or objection to the normalization process and all the bidders will, by responding to this RFP, agree to participate in the normalization process and extend their co-operation to the Bank during this process. The bidders, by submitting the response to this RFP, agree to the process and conditions of the normalization process.
- c. The Price offer shall be on a fixed price basis. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be liable to be rejected. The rate quoted by the bidder should necessarily include the following:

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

- ▶ Prices quoted by the Bidder should be inclusive of all taxes, duties, levies, GST etc. GST will be paid at actuals. There will be no price escalation for during the contract period and any extension thereof.
- ▶ The Bidders expected to provide details of services which are required to be extended by the Bidder in accordance with the terms and conditions of the contract.

The Bidder must provide and quote for the required product and services as desired by the Bank as mentioned in this RFP. Any product or services not proposed to be provided by the Bidder will result in the proposal being incomplete, which may lead to disqualification of the Bidder.

3. Terms and conditions

3.1 General Terms and conditions

- a) The RFP document is not a recommendation; offer to enter into a contract, agreement or any other arrangement, in respect of the services. The provision of the services is subject to observance of selection process and appropriate documentation being agreed between the Bank and any successful Bidder as identified by the Bank, after completion of the selection process as detailed in this document.
- b) Information Provided: The RFP document contains statements derived from information that is believed to be true and reliable at the date obtained but does not purport to provide all of the information that may be necessary or desirable to enable an intending contracting party to determine whether or not to enter into a contract or arrangement with the Bank in relation to the provision of services. Neither the Bank nor any of its directors, officers, employees, agents, representative, contractors, or advisers gives any representation or warranty (whether oral or written), express or implied as to the accuracy, updating or completeness of any writings, information or statement given or made in this RFP document.
- c) For Respondent Only: The RFP document is intended solely for the information of the party to whom it is issued ("the Recipient" or "the Respondent") and no other person or organization.
- d) Costs Borne by Respondents: All costs and expenses (whether in terms of time or money) incurred by the Recipient / Respondent in any way associated with the development, preparation and submission of responses, including but not limited to attendance at meetings, discussions, demonstrations, etc. and providing any additional information required by the Bank, will be borne entirely and exclusively by the Recipient / Respondent.
- e) No Legal Relationship: No binding legal relationship will exist between any of the Recipients / Respondents and the Bank until execution of a contractual agreement to the full satisfaction of the Bank.
- f) Recipient Obligation to Inform Itself: The Recipient must apply its own care and conduct its own investigation and analysis regarding any information contained in the RFP document and the meaning and impact of that information.
- g) Evaluation of Offers: Each Recipient acknowledges and accepts that the Bank may, in its sole and absolute discretion, apply whatever criteria it deems appropriate in the selection of Bidder, not limited to those selection criteria set out in this RFP document.
- h) The issuance of RFP document is merely an invitation to offer and must not be construed as any agreement or contract or arrangement. The bidders unconditionally acknowledge by submitting its response to this RFP document that it has not relied on any idea, information, statement, representation, or warranty given in this RFP

document.

- i) Standards: All standards to be followed will adhere to Bureau of Indian Standards (BIS) specifications or other acceptable standards (IS 17802:2021).
- j) Acceptance of Terms: the bidders will, by responding to the Bank's RFP document, be deemed to have accepted the terms as stated in this RFP document
- k) Only one submission of response to RFP by each Respondent will be permitted.
- l) The Bank expects Bidder to adhere to the terms of this tender document and would not accept any deviations to the same.
- m) The Bank expects that the Bidder appointed under the tender document shall have the single point responsibility for fulfilling all obligations and providing all deliverables and services required by Bank.
- n) Unless agreed to specifically by the Bank in writing for any changes to the issued tender document, the Bidder responses would not be incorporated automatically in the tender document.
- o) The Bank will notify the Respondents in writing as soon as practicable after the RFP Evaluation Complete date, about the outcome of the RFP evaluation process, including whether the Respondent's RFP response has been accepted or rejected. The Bank is not obliged to provide any reasons for any such acceptance or rejection.
- p) Bank under the existing RFP will have the right to order services for its sponsored Regional Rural Banks (RRBs) & Bank's Subsidiaries and the vendor should be in a position to deliver the same as per the requirement of Bank RRBs & Bank's Subsidiaries. The Purchase Order & Payment will be released by respective Regional Rural Banks (RRBs) & Bank's Subsidiaries.
- q) Standards: All standards to be followed will adhere to Bureau of Indian Standards (BIS) specifications or other acceptable standards (IS 17802:2021).
- r) Unless expressly overridden by the specific agreement to be entered into between the Bank and the bidder, the tender document shall be the governing document for arrangement between the Bank and the bidder.
- s) The bidder shall ensure that no other equipment / structure / setup of Bank get damaged due to their activities. Any damages caused to Bank property due to bidder's negligence shall be passed on the Bidder's account

3.2 Rules for Responding to this RFP

- a) The product / solution will be deemed accepted only after successful ATP and sign off from Bank's identified Project Manager
- b) The Bidder shall represent that the services provided and/or use of the same by the Bank shall not violate or infringe the rights of any third party or the laws or regulations under any governmental or judicial authority. The Bidder further represents that the

documentation to be provided to the Bank shall contain a complete and accurate description of the deliverables and services (as applicable), and shall be prepared and maintained in accordance with the highest industry standards. The Bidder represents and agrees to obtain and maintain validity throughout the specified term, of all appropriate registrations, permissions and approvals, which are statutorily required to be obtained by the bidder for performance of the obligations of the bidder. The bidder further agrees to inform and assist the Bank for procuring any registrations, permissions or approvals, which may at any time during the Contract Period be statutorily required to be obtained by the Bank for availing services from the bidder

- c) The Bank and the bidder covenants and represents to the other Party the following:
 - o It is duly incorporated, validly existing and in good standing under as per the laws of the state in which such Party is incorporated.
 - o It has the corporate power and authority to enter into Agreements and perform its obligations there under. The execution, delivery and performance of terms and conditions under Agreements by such Party and the performance of its obligations there under are duly authorized and approved by all necessary action and no other action on the part of such Party is necessary to authorize the execution, delivery and performance under an Agreement.
- d) It would be the responsibility of the vendor to arrange / obtain necessary road permits or any other document for delivery of the material till Bank's premises. The vendor shall arrange road permit for locations applicable at no extra cost to the Bank
- e) The timeframe provided in point "[A] Important Dates" above is for the overall selection process. The Bank reserves the right to vary this timeframe at its absolute and sole discretion and without providing any notice / intimation or reasons thereof. Changes to the timeframe will be relayed to the affected Respondents during the process. The time schedule will be strictly followed. Interested parties are expected to adhere to these timelines. However, the Bank reserves the right to change the aforementioned timelines
- f) All responses received after the due date/time would be considered late and would be liable to be rejected. Online Govt. GEM portal will not allow to lodgment of RFP response after the deadline. It should be clearly noted that the Bank has no obligation to accept or act on any reason for a late submitted response to RFP. The Bank has no liability to any Respondent who lodges a late RFP response for any reason whatsoever, including RFP responses taken to be late only because of another condition of responding.
- g) The Bank has established RFP coordinators to provide a venue for managing bidder relationship and other requirements through the Bank's decision-making body for contract clarification. All the queries and communication must be addressed to the RFP coordinators / contact persons from the Bank.
- h) Recipients are required to direct all communications for any clarification related to this

RFP to RFP Coordinator.

- i) All questions relating to the RFP, technical or otherwise, must be in writing and addressed to the RFP Coordinator. Interpersonal communications will not be entered into and a Respondent will be disqualified if attempting to enter into such communications. The Bank will try to reply, without any obligation in respect thereof, every reasonable question raised by the Respondents in the manner specified.
- j) However, the Bank may in its absolute discretion seek, but under no obligation to seek, additional information or material from any Respondents after the RFP closes and all such information and material provided must be taken to form part of that Respondent's response.
- k) Respondents should invariably provide details of their email address (as) as responses to queries will only be provided to the Respondent via email. If Bank in its sole and absolute discretion deems that the originator of the query will gain an advantage by a response to a question, then Bank reserves the right to communicate such response to all Respondents.
- l) The Bank may in its absolute discretion engage in discussion or negotiation with any Respondent (or simultaneously with more than one Respondent) after the RFP closes to improve or clarify any response.
- m) Bidder should submit their Eligibility Cum Technical and Commercial bids through online Gem portal.
- n) If the submission to this RFP does not include all the documents and information required or is incomplete or submission is through any mode other than the Online Govt. GEM portal, the RFP is liable to be summarily rejected.
- o) All submissions, including any accompanying documents, will become the property of the Bank. The bidder shall be deemed to have licensed, and granted all rights to, the Bank to reproduce the whole or any portion of their submission for the purpose of evaluation, to disclose the contents of the submission to other bidders who have registered a submission and to disclose and/or use the contents of the submission as the basis for any resulting RFP process, notwithstanding any copyright or other intellectual property right of the Recipient that may subsist in the submission or accompanying documents
- p) All responses should be in English language. All responses by the bidder to this tender document shall be binding on such bidder for a period of 180 days after opening of the bids.
- q) The bids once submitted cannot be withdrawn / modified after the last date for submission of the bids unless specifically permitted by the Bank. In case, due to unavoidable circumstances, the Bank does not award the contract within six months from the last date of the submission of the bids, and there is a possibility to award the same within a short duration, the bidder would have the choice to maintain the EMD

or bank guarantee in lieu of EMD with the Bank or to withdraw the bid and obtain the security provided

- r) The bidder may modify or withdraw its offer after submission but prior to the closing date and time as prescribed by Bank. No offer can be modified or withdrawn by the bidder subsequent to the closing date and time for submission of the offers.
- s) The bidders required to quote for all the components/services mentioned in the “Project scope” and all other requirements of this RFP. In case the bidder does not quote for any of the components/services, the response would be deemed to include the quote for such unquoted components/service. It is mandatory to submit the details in the formats provided along with this document duly filled in, along with the offer. The Bank reserves the right not to allow / permit changes in the technical specifications and not to evaluate the offer in case of non-submission of the technical details in the required format or partial submission of technical details.
- t) Based on the Bank’s requirements as listed in this document, the bidder should identify the best-suited product / solution that would meet the Bank’s requirements and quote for the same. In case the bidder quotes more than one model and they have not specified which particular model quoted by them needs to be considered, then the response would be considered as improper and the whole tender submitted by the Bidder is liable to be rejected. The Bidder is expected to provide the best option and quote for the same.
- u) In the event the bidder has not quoted for any mandatory items as required by the Bank and forming a part of the tender document circulated to the Bidder’s and responded to by the bidder, the same will be deemed to be provided by the bidder at no extra cost to the Bank.
- v) The Bank is not responsible for any assumptions or judgments made by the bidder for proposing the deliverables. The Bank’s interpretation will be final.
- w) The Bank ascertains and concludes that everything as mentioned in the tender documents circulated to the Bidder and responded by the Bidders have been quoted for by the Bidder, and there will be no extra cost associated with the same in case the Bidder has not quoted for the same.
- x) All out of pocket expenses, traveling, boarding and lodging expenses for the entire life of the contract should be a part of the financial bid submitted by the Bidder to the Bank. No extra costs on account of any items or services or by way of any out of pocket expenses, including travel, boarding and lodging etc. will be payable by the Bank. The Bidder cannot take the plea of omitting any charges or costs and later lodge a claim on the Bank for the same.
- y) Responses to this RFP should not be construed as an obligation on the part of the Bank to award a contract / purchase contract for any services or combination of services. Failure of the Bank to select a bidder shall not result in any claim whatsoever against the Bank. The Bank reserves the right to reject any or all bids in part or in full,

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

without assigning any reason whatsoever.

- z) By submitting a proposal, the bidder agrees to contract with the Bank within the time period proscribed by the bank. Failure on the part of the successful bidder to execute an agreement with the Bank will relieve the Bank of any obligation to the bidder, and a different bidder may be selected based on the selection process.
- aa) The terms and conditions as specified in the RFP and addendums (if any) thereafter are final and binding on the bidders. In the event the bidders not willing to accept the terms and conditions of the Bank, the bidder may be disqualified. Any additional or different terms and conditions proposed by the bidder would be rejected unless expressly assented to in writing by the Bank and accepted by the Bank in writing.
- bb) The bidder shall represent and acknowledge to the Bank that it possesses necessary experience, expertise and ability to undertake and fulfill its obligations, involved in the performance of the provisions of this RFP. The bidder represents that the proposal to be submitted in response to this RFP shall meet the proposed RFP requirement. If any services, functions or responsibilities not specifically described in this RFP are an inherent, necessary or customary part of the deliverables or services and are required for proper performance or provision of the deliverables or services in accordance with this RFP, they shall be deemed to be included within the scope of the deliverables or services, as if such services, functions or responsibilities were specifically required and described in this RFP and shall be provided by the bidder at no additional cost to the Bank. The bidder also acknowledges that the Bank relies on this statement of fact, therefore neither accepting responsibility for, nor relieving the bidder of responsibility for the performance of all provisions and terms and conditions of this RFP, the Bank expects the bidder to fulfill all the terms and conditions of this RFP.
- cc) the bidder covenants and represents to the Bank the following:
 - ✓ It is duly incorporated, validly existing and in good standing under as per the laws of the state in which the entity is incorporated.
 - ✓ It has the corporate power and authority to enter into Agreements and perform its obligations there under. The execution, delivery and performance of terms and conditions under Agreements by such Party and the performance of its obligations there under are duly authorized and approved by all necessary action and no other action on the part of such Party is necessary to authorize the execution, delivery and performance under an Agreement.
- dd) The execution, delivery and performance under an Agreement by bidder:
 - ✓ Will not violate or contravene any provision of its documents of incorporation;
 - ✓ Will not violate or contravene any law, statute, rule, regulation, licensing requirement, order, writ, injunction or decree of any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority by which it is bound or by which any of its properties or assets are bound;

- ✓ Except to the extent that the same have been duly and properly completed or obtained, will not require any filing with, or permit, consent or approval of or license from, or the giving of any notice to, any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority, joint venture party, or any other entity or person whatsoever;
 - ✓ The bidder shall undertake to provide appropriate human as well as other resources required, to execute the various tasks assigned as part of the project, from time to time.
 - ✓ The Bank would not assume any expenses incurred by the bidder in preparation of the response to this RFP and also would not return the bid documents to the Bidders
 - ✓ The Bank will not bear any costs incurred by the bidder for any discussion, presentation, demonstrations etc. on proposals or proposed contract or for any work performed in connection therewith.
 - ✓ To the best of its knowledge, after reasonable investigation, no representation or warranty by such Party in this Agreement, and no document furnished or to be furnished to the other Party to this Agreement, or in connection herewith or with the transactions contemplated hereby, contains or will contain any untrue or misleading statement or omits or will omit any fact necessary to make the statements contained herein or therein, in light of the circumstances under which made, not misleading. There have been no events or transactions, or facts or information which has come to, or upon reasonable diligence, should have come to the attention of such Party and which have not been disclosed herein or in a schedule hereto, having a direct impact on the transactions contemplated hereunder.
 - ✓ It would be the responsibility of the bidder to arrange / obtain necessary road permits or any other document for delivery of the material till Bank's premises. The bidder shall arrange road permit for locations applicable at no extra cost to the Bank
- ee) The Bank reserves the right to extend the dates for submission of responses to this document.
- ff) Preliminary Scrutiny – The Bank will scrutinize the offers to determine whether they are complete, whether any errors have been made in the offer, whether required documentation has been furnished, whether the documents have been properly signed, and whether items are quoted as per the schedule. The Bank may, at its discretion, waive any minor non-conformity or any minor deficiency in an offer. This shall be binding on all bidders and the Bank reserves the right for such waivers and the Bank's decision in the matter will be final.
- gg) Clarification of Offers – To assist in the scrutiny, evaluation and comparison of offers, the Bank may, at its discretion, ask some or all bidders for clarification of their offer. The Bank has the right to disqualify the bidder whose clarification is found not suitable to the proposed project.
- hh) No Commitment to Accept Lowest bid or Any Tender – The Bank shall be under no obligation to accept the lowest price bid or any other offer received in response to this

Tender notice and shall be entitled to reject any or all offers including those received late or incomplete offers without assigning any reason whatsoever. The Bank reserves the right to make any changes in the terms and conditions of procurements. The Bank will not be obliged to meet and have discussions with any Bidder, and / or to listen to any representations unless there is change in the terms and conditions of purchase

- ii) Erasures or Alterations – The offers containing erasures or alterations will not be considered. There should be no hand-written material, corrections or alterations in the offer. Technical details must be completely filled up. Correct information of the services being offered must be filled in. Filling up of the information using terms such as “OK”, “accepted”, “noted”, “as given in brochure / manual” is not acceptable. The Bank may treat the offers not adhering to these guidelines as unacceptable.
- jj) Price Discussion – It is absolutely essential for the Bidders to quote the lowest price at the time of making the offer in their own interest. The Bank reserves the right to do price discovery and engage the successful bidder in discussions on the prices quoted.
- kk) If the Bank is not satisfied with the specifications as specified in the tender document and observes major deviations, the bids of such bidders will not be short-listed for further evaluation. No further discussions shall be entertained with such bidders in respect of the subject bid.
- ll) The Bidder shall perform its obligations under this Tender as an independent contractor, and shall not engage subcontractors to perform any of the Deliverables or Services without the prior permission from Bank. Neither this Tender nor the Bidder’s performance of obligations under this Tender shall create an association, partnership, joint venture, or relationship of principal and agent, master and servant, or employer and employee, between the Bank and the Bidder or its employees, subcontractor; and neither Party shall have the right, power or authority (whether expressed or implied) to enter into or assume any duty or obligation on behalf of the other Party.
- mm) The Bidder shall solely be responsible for all payments (including any statutory payments) to its employees and / or sub-contractors and shall ensure that at no time shall its employees, personnel or agents hold themselves out as employees or agents of the Bank, nor seek to be treated as employees of the Bank for any purpose, including claims of entitlement to fringe benefits provided by the Bank, or for any kind of income or benefits. The Bidder alone shall file all applicable tax returns for all of its personnel assigned hereunder in a manner consistent with its status as an independent contractor of services; and the Bidder will make all required payments and deposits of taxes in a timely manner.
- nn) Successful Vendor/Service Provider/Supplier/ Consultant/Contractor, who will be selected according to the service/work/project for which the proposal or quotation is invited shall comply with the Bank’s Code of Ethics which is available on the Bank’s website>Shareholder’s Corner> Policies/Codes> Our Code of Ethics and a clause to

this effect shall be included in the agreement/contract.

- oo) Service Provider shall provide background verification report of all the resources deployed (if any) on the BOB Sponsored RRBs' project on the Bank's premises within 1 month from the date of on boarding on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after background verification, however not later than 1 month from the date of on boarding.
- pp) The bidder at no point in time can excuse themselves from any claims by the Bank whatsoever for their deviations in confirming to the terms and conditions, payments schedules, time frame for solution etc. as mentioned in the tender document circulated by the Bank. Bidder shall be fully responsible for deviations to the terms & conditioned as proposed in the tender document.
- qq) This RFP is not a contract offer. Receipt of a proposal neither commits Bank to award a contract to any bidder, nor limits Bank's rights to negotiate with any bidders, suppliers or contractors in Bank's best interest. Bank reserves the right to contract with any bidder, supplier or contractor at its own discretion.
- rr) Bank reserves the right to request additional information necessary and pertinent to the project so as to assure the bidder's ability and qualification to perform the contract.
- ss) Failure to answer any questions within stipulated timeline at any stage of this RFP may be considered non-responsive and the proposal may be disqualified.
- tt) For any ambiguity, omissions or unclear content in the RFP the bidders should request Bank to clarify along with pre-bid queries within the time line mentioned in the "[A] Important Dates"
- uu) For all technical details and relevant standards and specifications of this RFP that may not be stated in detail; bidders should ensure and provide quality and industrial standard products to Bank. In case of any difference in the standards between this RFP and the bidders' proposal, the higher standards shall prevail and be applicable.
- vv) Expenses incurred in the preparation of proposals in response to this RFP are the sole responsibility of the bidders.
- ww) Bank reserves the right to accept or reject any and all proposals, or any part of any proposal, without penalty. Any allowance for oversight, omission, error, or mistake by the bidder made after receipt of the proposal will be at the sole discretion of Bank.
- xx) The bidder must strictly adhere to the delivery dates or lead times identified in their proposal and as agreed by the Bank. Failure to meet these delivery dates, unless it is due to reasons entirely attributable to the Bank, may constitute a material breach of the bidder's performance. In the event that the Bank is forced to cancel an awarded contract (relative to this tender document) due to the bidder's inability to meet the established delivery dates or any other reasons attributing to the bidder then that bidder will be responsible for any re- procurement costs suffered by the Bank. The

liability in such an event could be limited to the differential excess amount spent by the Bank for procuring similar deliverables and services

- yy) The bidder shall represent that the hardware / software/ Service provided and / or use of the same by the Bank shall not violate or infringe the rights of any third party or the laws or regulations under any governmental or judicial authority. The bidder further represents that the documentation to be provided to the Bank shall contain a complete and accurate description of the deliverables and services (as applicable), and shall be prepared and maintained in accordance with the highest industry standards. The bidder represents and agrees to obtain and maintain validity throughout the specified term, of all appropriate registrations, permissions and approvals, which are statutorily required to be obtained by the bidder for performance of the obligations of the bidder. The bidder further agrees to inform and assist the Bank for procuring any registrations, permissions or approvals, which may at any time during the Contract Period be statutorily required to be obtained by the Bank for availing services from the bidder.
- zz) All terms and conditions, payments schedules, time frame for expected service levels as per this tender will remain unchanged unless explicitly communicated by the Bank in writing to the bidder. The Bank shall not be responsible for any judgments made by the bidder with respect to any aspect of the Service. The bidder shall at no point be entitled to excuse themselves from any claims by the Bank whatsoever for their deviations in confirming to the terms and conditions, payments schedules, expected service levels etc. as mentioned in this tender document
- aaa) Incidental Services - The bidder shall provide all the services as specified in the tender document, particularly the Project Details and Scope of Work including Functional and Technical Requirement. The price for performing the required incidental services shall be deemed to be included in the Contract Price
- bbb) At Bank's discretion, there will be an acceptance test by the Bank after supply of services as mentioned in the RFP. In case of discrepancy in the implementation, the Bank reserves the right to cancel the entire purchase contract.
- ccc) Bidder shall indemnify, protect and save the Bank against all claims, losses, costs, damages, expenses, action, suits and other proceedings, resulting from infringement of any patent, trademarks, copyrights etc or such other statutory infringements under any laws including the Copyright Act, 1987 in respect of services provided by them in the Bank from whatsoever source, provided the Bank notifies the bidder in writing as soon as practicable when the Bank becomes aware of the claim. However, (i) the bidder has sole control of the defense and all related settlement negotiations (ii) the Bank provides the bidder with the assistance, information and authority reasonably necessary to perform the above and (iii) the Bank does not make any statements or comments or representations about the claim without the prior written consent of the bidder, except where the Bank is required by any authority / regulator to make a comment / statement / representation
- ddd) This tender document may undergo change by either additions or deletions or Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

modifications before the actual award of the contract by the Bank. The Bank also reserves the right to change any terms and conditions of the tender document and its subsequent addendums as it deems necessary at its sole discretion. The Bank will inform all bidders about changes, if any.

eee) The Bank may revise any part of the tender document, by providing a written addendum at stage till the award of the contract. The Bank reserves the right to issue revisions to this tender document at any time before the award date. The addendums, if any, shall be published on Bank's website only.

fff) The Bank reserves the right to extend the dates for submission of responses to this document

3.3 Bid Security / Earnest Money Deposit

Bidders are required to provide an earnest money deposit (EMD) of an amount as mentioned in "[A] Important Dates" at the time of submission of bid. The proof of the same is to be submitted while opening of eligibility cum technical bid, failing of which the bid of the concerned bidder may be rejected. Bid Security (Earnest Money Deposit)" shall be paid through electronic mode or a Bank Guarantee (Annexure 04) of an equal amount issued by a Schedule Commercial Bank (other than Bank of Baroda) located in India. This Bid-security is valid for 8 months and to be submitted through the electronic mode to the below mention account. The details of the account are as under.

- ✓ **Account Number-29040400000417**
- ✓ **Account Name – Bank of Baroda**
- ✓ **Branch- BKC, Mumbai**
- ✓ **IFSC- BARB0BANEAS.**

Non-submission of Earnest Money Deposit in the format prescribed in RFP will lead to outright rejection of the Offer.

- Unsuccessful Bidders who have not been shortlisted -Earnest money of unsuccessful bidders shall be returned within 15 days after the award of contract or expiry of bid validity, whichever is earlier. However, in case of two packet or two stage bidding, Bid securities of unsuccessful bidders during first stage i.e. technical evaluation should be returned within 15 days of declaration of result of first stage itself i.e. technical evaluation. No interest shall be paid on Bid security money deposit to unsuccessful bidder.
- Successful Bidder – Earnest money of successful bidder shall be returned within 15 days after receipt of Performance Security / e-PBG.

The amount of Earnest money deposit would be forfeited in the following scenarios:

- a. In case the bidder withdraws the bid prior to validity period of the bid for any reason whatsoever.
- b. In case of the successful bidder, if the bidder fails or refuses

- ▶ To accept and sign the contract as specified in this document within 1 month of issue of contract order/letter of intent for any reason whatsoever; or
- ▶ Fail To provide the performance guarantee within 30 days from the purchase order date, for any reason whatsoever.
- ▶ To comply with any other condition precedent to signing the contract specified in the RFP documents.

3.4 Exemption for EMD amount

Exemption from submission of EMD shall be given to bidders, who are Micro and Small Enterprises (MSE) / Startups. The bidders who are MSE have to submit necessary document issued by NSIC / Udyam Registration Certificate and the bidders who are Startups have to be recognized by Department of Industrial Policy & Promotion (DIPP) to avail the exemption. To qualify for EMD, firms should necessarily enclose a valid copy of registration certificate issued by NSIC / Udyam Registration Certificate / DIPP which are valid on last date of submission of the tender documents along with "Bid Security Declaration" accepting that if they withdraw or modify their bids during period of validity etc., they will be suspended for the period of 6 months. MSE / Startup firms which are in the process of obtaining NSIC certificate / Udyam Registration Certificate / DIPP will not be considered for EMD exemption.

Since RFP is being floated on GeM Portal, Bid Security related exemptions as specified in clause 4, Section xiii, Sub-section 'm' of GeM GTC are applicable as the case may be.

3.5 Preference to make in India initiative

Government has issued Public Procurement (Preference to Make in India) [PPP-MII] Order 2017 vide the Department for Promotion of Industry and Internal Trade (DPIIT) Order No.P-45021/2/2017-B.E.-II dated 15.06.2017 , revision vide Order No. 45021/2/2017-PP (BE-II) dated 16-9-2020 and subsequent revisions if any, to encourage 'Make in India' and to promote manufacturing and production of goods, services and works in India with a view to enhancing income and employment.

Preference will be given with the criteria laid down by Bank and as per procedures laid down in Public Procurement (Preference to Make In India) order 2017, revision dated 16/09/2020 vide order P-45021/2/2017-PP (BE – II) dated 16-9-2020 and subsequent revisions if any issued by GOI.

The guidelines under PPP-MII order and subsequent revisions as mentioned above shall be applicable subject to bidder submitting Class-I/Class-II local content certificate for the quoted product.

Ministry of Electronics & Information Technology (MEIT) vide their notification no. F.No.W-43/4/2019 -IPHW – MeitY /GOI/MeIT (IPHW Division) dated 7.09.2020 has notified list of products under the public procurement preference (Preference to Make - in- India) order 2017. Bidders are required to comply with these guidelines for preference to MII Products.

Bidders are required to comply with this guideline for Preference to MII Product and need to submit the Self- Declaration as format mentioned under Annexure II under the same

notification (File No. 1(10)/2017- CLES dated 6.12.2019) regarding 'local supplier'. The said declaration needs to be submitted as part of eligibility criteria evaluation.

As part of every bidder evaluation requirement Bank will first evaluate the Bidders complying with preference to 'Make in India' initiative of Govt. of India.

In case two or more than two bidders complying with preference to 'Make in India' initiative are found to be eligible then commercial bids of only those bidders will be opened. In case sufficient bidders complying with preference to 'Make in India' initiative are not found to be eligible, then commercial bids of all participating bidders as part of the requirement will be opened.

3.6 Performance Guarantee

The successful Service Provider shall provide a Performance Bank Guarantee (PBG) within 30 days from the date of receipt of the order or signing of the contract whichever is earlier in the format mentioned under Annexure 19 to the extent of 5% of the total order value for the entire period of the contract plus 3 months and such other extended period as the Bank may decide for due performance of the project obligations. The guarantee should be of that of a schedule commercial Bank in India, other than Bank of Baroda.

In the event of non-performance of obligation or failure to meet terms of this Tender the Bank shall be entitled to invoke the performance guarantee without notice or right of demur to the bidder. Any amount pending for payment due to non-achieving of milestone/s set under the agreement or any other reason solely attributable to the bidder should be included in the remaining amount of the contract value.

The Bank reserves the right to recover any dues payable by the selected bidder from any amount outstanding to the credit of the selected bidder, including the pending bills and/or invoking Performance Guarantee, if any, under this contract.

If the Performance guarantee is not submitted within the stipulated time, the Bank reserves the right to cancel the order / contract and the bid security/ earnest money deposit taken from bidder, will be forfeited.

3.7 Service Level Agreement and Non-Disclosure Agreement

The successful bidder shall execute a) Service Level Agreement (SLA), which must include all the services and terms and conditions of the services to be extended as detailed herein, and as may be prescribed or recommended by the Bank and b) Non-Disclosure Agreement (NDA).

The successful bidder shall execute the SLA and NDA within 30 days from the date of acceptance of Purchase Order. If the contract is not signed within the given period (30 working days or till such period as extended by the Bank), the EMD will be forfeited after a grace period of 15 working days. The Bank reserves the right to incorporate additional clauses as per legal and regulatory requirements of the Bank.

All the expenses related to execution of the document such as the applicable stamp duty

and registration charges if any shall be borne by the vender as per article 63 Works Contract of Maharashtra Stamp Act.

4. General Terms and Conditions

4.1 Compliance with Laws

Compliance in obtaining approvals/permissions/licenses: The Bidder shall promptly and timely obtain all such consents, permissions, approvals, licenses, etc., as may be necessary or required for any of the purposes of this project or for the conduct of their own business under any applicable Law, Government Regulation/Guidelines and shall keep the same valid and in force during the term of the project. Also the bidder shall comply with the provisions of code of wages, and other labour welfare legislations. In the event of any failure or omission to do so, shall indemnify, keep indemnified, hold harmless, defend, protect and fully compensate the Bank and its employees/ officers/ staff/ personnel/ representatives/agents from and against all claims or demands of liability and all consequences that may occur or arise for any default or failure on its part to conform or comply with the above and all other statutory obligations arising there from. The Bank will give notice of any such claim or demand of liability within reasonable time to the Bidder.

The Bidder is not absolved from its responsibility of complying with the statutory obligations as specified above. Indemnity shall exclude indirect, consequential and incidental damages.

4.2 Grievance Redressal

Any bidder who claims to have a grievance against a decision or action with regards to the provisions of this RFP may file a request to the Chief General Manager at cgm.it.bcc@bankofbaroda.com. It may please be noted that the grievance can be filed by only that bidder who has participated in Procurement proceedings in accordance with the provisions of this RFP. All letters must be addressed to the following:

The Chief General Manager (IT)
Bank of Baroda, Baroda Sun Tower,
C-34, G-Block, BKC, Mumbai – 400051

4.3 Dispute Resolution

The Bank and Bidder shall make every effort to resolve amicably, by direct informal negotiation between the respective project managers/ directors of the Bank and Bidder, any disagreement or dispute arising between them under or in connection with the contract.

If the Bank project manager/director and Bidder project manager/ director are unable to resolve the dispute after thirty days from the commencement of such informal negotiations, they shall immediately escalate the dispute to the senior authorized personnel designated by the Bidder and Bank respectively.

If after thirty days from the commencement of such negotiations between the senior authorized personnel designated by the Bidder and Bank, the Bank and the Bidder have been unable to resolve contractual dispute amicably, either party may require that the dispute be referred for resolution through formal arbitration.

All questions, disputes or differences arising under and out of, or in connection with the

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

contract or carrying out of the work whether during the progress of the work or after the completion and whether before or after the determination, abandonment or breach of the contract shall be referred to arbitration by a sole Arbitrator acceptable to both parties OR the number of arbitrators shall be three, with each side to the dispute being entitled to appoint one arbitrator. The two arbitrators appointed by the parties shall appoint a third arbitrator shall act as the chairman of the proceedings. Arbitration will be carried out at Bank's office that placed the order. The Arbitration and Conciliation Act 1996 or any statutory modification thereof shall apply to the arbitration proceedings

The arbitral award shall be in writing, state the reasons for the award, and be final and binding on the parties. The award may include an award of costs, including reasonable attorneys' fees and disbursements. Judgment upon the award may be entered by any court having jurisdiction thereof or having jurisdiction over the relevant Party or its assets.

4.4 Governing Laws

This RFP and the subsequent contract shall be governed and construed and enforced in accordance with the laws of India both Parties shall agree that in respect of any dispute arising upon, over or in respect of any of the terms of this Agreement, only the courts in Mumbai shall have exclusive jurisdiction to try and adjudicate such disputes to the exclusion of all other courts.

4.5 Prevention of Corrupt and Fraudulent Practices

As per Central Vigilance Commission (CVC) directives, it is required that Bidders / Suppliers / Contractors observe the highest standard of ethics during the procurement and execution of such contracts in pursuance of this policy:

- ▶ "Corrupt Practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of an official in the procurement process or in contract execution AND
- ▶ "Fraudulent Practice" means a misrepresentation of facts in order to influence a procurement process or the execution of contract to the detriment of the Bank and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Bank of the benefits of free and open competition.

The Bank reserves the right to reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question.

The Bank reserves the right to declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if at any time it determines that the firm has engaged in corrupt or fraudulent practices in competing for or in executing the contract.

Bidders responding to this RFP need to sign the Integrity Pact (IP) as detailed in Annexure 25 which will be also signed by Bank's representative.

Successful bidder, who will be selected according to the service / work / project for which

this Request for Proposal is invited shall comply with the Bank's Code of Ethics which is available on the Bank's website > Shareholder's Corner > Policies / Codes > Our Code of Ethics.

4.6 Notices and other Communication

If a notice has to be sent to either of the parties following the signing of the contract, it has to be in writing and shall be sent personally or by certified or registered post with acknowledgement due or overnight courier or email duly transmitted, facsimile/fax transmission (with hard copy to follow for email/fax), addressed to the other party at the addresses, email and fax number given in the contract.

Notices shall be deemed given upon receipt, except that notices sent by registered post in a correctly addressed envelope shall be deemed to be delivered within 5 working days (excluding Sundays and public holidays) after the date of mailing dispatch and in case the communication is made by facsimile transmission or email, on business date immediately after the date of successful facsimile/email transmission (that is, the sender has a hard copy of a confirmation page evidencing that the facsimile was completed in full to the correct fax number or email sent to correct email address).

Any Party may change the address, email address and fax number to which notices are to be sent to it, by providing written notice to the other Party in one of the manners provided in this section.

4.7 Force Majeure

The Service Provider shall not be liable for forfeiture of its performance security, liquidated damages, penalties or termination for default, if any to the extent that its delay in performance or other failure to perform its obligations under the contract is the result of an event of Force Majeure.

For purposes of this Clause, "Force Majeure" means an event explicitly beyond the reasonable control of the Service Provider and not involving the Service Provider's fault or negligence and not foreseeable. Such events are Acts of God or of public enemy, acts of Government of India in their sovereign capacity, strikes, political disruptions, bandhs, riots, civil commotions and acts of war.

If a Force Majeure situation arises, the Service Provider shall promptly notify the Bank in writing of such conditions and the cause thereof within fifteen calendar days. Unless otherwise directed by the Bank in writing, the Service Provider shall continue to perform Service Provider's obligations under this Agreement as far as is reasonably practical and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

In such a case the time for performance shall be extended by a period(s) not less than duration of such delay. If the duration of delay continues beyond a period of three months, the Bank and Service Provider shall hold consultations in an endeavor to find a solution to the problem.

4.8 Assignment

The Bidder agrees that the Bidder shall not be entitled to assign any or all of its rights and or obligations under this Tender and subsequent Agreement to any entity including Bidder's affiliate without the prior written consent of the Bank.

If the Bank undergoes a merger, amalgamation, takeover, consolidation, reconstruction, change of ownership, etc., this RFP along with the subsequent Addendums published shall be considered to be assigned to the new entity and such an act shall not affect the rights of the Bidder under this RFP.

4.9 Sub-Contracting

The selected vender shall not subcontract or permit anyone other than its personnel to perform any of the work, service or other performance required under this project. In case any particular specialized service in the prescribed in the scope of work requires subcontracting, it needs to be specified in the proposal/ response document with all the details of the work/ services. Please note that no work/services shall be subcontracted without prior permission from the Bank in writing.

4.10 Waiver

No failure or delay on the part of either party relating to the exercise of any right power privilege or remedy provided under this tender document or subsequent agreement with the other party shall operate as a waiver of such right power privilege or remedy or as a waiver of any preceding or succeeding breach by the other party nor shall any single or partial exercise of any right power privilege or remedy preclude any other or further exercise of such or any other right power privilege or remedy provided in this tender document all of which are several and cumulative and are not exclusive of each other or of any other rights or remedies otherwise available to either party at law or in equity.

4.11 Confidentiality

The Service Provider acknowledges that in the course of performing the obligations under this Agreement, it shall be exposed to or acquire information of the bank, which the Service Provider shall treat as confidential.

a. Bank of Baroda product and process details, documents, data, applications, software, systems, papers, statements and business / customer information which may be communicated to or come to the knowledge of Service Provider or Service Provider's employees during the course of discharging their obligations shall be treated as absolutely confidential and Service Provider irrevocably agrees and undertakes and ensures that Service Provider and its employees shall keep the same secret and confidential and not disclose the same, in whole or in part to any third party without prior written permission of Bank of Baroda. The Service Provider shall not use or allow to be used any information other than as may be necessary for the due performance by Service Provider of its obligations hereunder.

b. The Service provider shall not make or retain any copies or record of any Confidential

Information submitted by Bank of Baroda other than as may be required for the performance of Service Provider.

c. The Service provider shall notify Bank of Baroda promptly of any unauthorized or improper use or disclosure of the Confidential Information.

d. The Service provider shall return all the Confidential Information that is in its custody, upon termination / expiry of this Agreement. Also, so far as it is practicable Service Provider shall immediately expunge any Confidential Information relating to the projects from any computer, word processor or other device in possession or in the custody and control by Service Provider or its affiliates.

e. The Service provider shall extent practicable, immediately furnish a certificate signed by its director or other responsible representative confirming that to the best of his/her knowledge, information and belief, having made all proper enquiries the requirements of this paragraph have been fully complied with.

f. The service provider hereby unconditionally agrees and undertakes that it and its employees shall not disclose the terms and conditions of the engagement Agreement/ Work Order or any other oral or written information which may contain, hold or bear confidential information or disclose the information submitted by Bank of Baroda under any other Agreement to any third party unless such disclosure is mandatorily required by law or if it is required necessarily to be disclosed to any other agency/subcontractor or the like for the purpose of performing any of its obligations under the agreement.

g. It shall be the incumbent duty of the Service Provider to undertake not to disclose any business related information of Bank to any third person and the Service Provider shall keep all knowledge of the business activities and affairs of Bank strictly confidential and shall ensure that neither the Service Provider nor any of its officers, employees directly or indirectly assist any third person with the promotion of activities which may be prejudicial to the interest or in competition to the activities of Bank. Service provider shall also ensure to keep the Bank's data separate from data of other entities to whom services are being provided.

However, the Confidential Information will not be limited to the information mentioned above but not include the following as Confidential Information:

Without breach of these presents, has already become or becomes and/or hereinafter will become part of the public domain;

Prior to the disclosure by BoB was known to or in the possession of the Service Provider at the time of disclosure;

Was disclosed or parted with the prior consent of BoB;

Was acquired by Service Provider from any third party under the conditions such that it does not know or have reason to know that such third party acquired directly or indirectly from

Bank of Baroda.

The Service provider shall take all necessary action to protect Confidential Information against misuse, loss, destruction, deletion and/or alteration. It shall neither misuse or permit misuse directly or indirectly, nor commercially exploit the Confidential Information for economic or other benefit.

In any dispute over whether information or matter is Proprietary Information or not mentioned herein, it shall be the burden of Service Provider to show that such contested information or matter is not Proprietary Information within the meaning of this Agreement, and that it does not constitute violation under any laws for the time being enforced in India.

The confidentiality obligations shall survive the expiry or termination of this Agreement between the Service Provider and the Bank.

4.12 Termination

In following events Bank shall terminate this assignment or cancel any particular order if service provider:

- a. Breaches any of its obligations set forth in this agreement and such breach is not cured within 15) Working Days after Bank gives written notice; or
- b. Failure by Service Provider to provide Bank, within 15) Working Days, with a reasonable plan to cure such breach, which is acceptable to the Bank. Or
- c. The progress regarding execution of the contract/ services rendered by the Service Provider is not as per the prescribed time line, and found to be unsatisfactory.
- d. Supply of substandard materials/ services
- e. Delay in delivery / installation / commissioning of services.
- f. Discrepancy in the quality of service / security expected during the implementation, rollout and subsequent maintenance process.
- g. If deductions of penalty exceed more than 10% of the total contract price.

Further Bank may terminate this agreement on happening of following events:

- a. A liquidator or a receiver is appointed over all or a substantial part of the undertaking, assets or revenues of the Service Provider and such appointment continues for a period of twenty one (21) days;
- b. The Service Provider is subject of an effective resolution for its winding up other than a voluntary winding up for the purpose of reconstruction or amalgamation.
- c. The Service Provider becomes insolvent or goes into liquidation voluntarily or otherwise
- d. An attachment is levied or continues to be levied for a period of 7 days upon effects of the Agreement.

- e. The Service Provider becomes the subject of a court order for its winding up.
- f. The Service provider is unable to pay its debt as they fall due or otherwise enters into any composition or arrangement with or for the benefit of its creditors or any class thereof;

Notwithstanding above, in case of change of policy or any unavoidable circumstances or without any reason Bank reserve the right to terminate this assignment or any subsequent agreement and / or any particular order, in whole or in part by giving Service Provider at least 30 days prior notice in writing.

Effect of termination

If bank terminates or cancels the assignment on the default mentioned in the termination clause, in such case Bank of Baroda reserves the right to get the balance contract executed by another party of its choice. In this event, the Service Provider shall be bound to make good the additional expenditure which the Bank may have to incur to carry out bidding process for the selection of a new service provider and for execution of the balance of the contract.

Immediately upon the date of expiration or termination of the Agreement, Bank shall have no further obligation to pay any fees for any periods commencing on or after such date.

Without prejudice to the rights of the Parties, upon termination or expiry of this Agreement, Bank shall pay to Service Provider, within thirty (30) days of such termination or expiry, All the undisputed fees outstanding till the date of termination;

Upon the termination or expiry of this Agreement:

- a) The rights granted to the Service Provider shall immediately terminate.
- b) The Service Provider shall not be relieved of its obligations under the reverse transition mechanism notwithstanding the termination of the agreement.
- c) The Parties therefore agree and undertake that an exit at any point in time resulting due to expiry or termination of this Tender and subsequent Agreement for any reason whatsoever would be a slow process over a period of six (6) months, after the completion of the notice period of three (3) months. During this period, the Vendor shall continue to provide the Deliverables and the Services in accordance with this Tender and subsequent Agreement and shall maintain the agreed Service levels
- d) At the end of contract period and / or as and when desired by the Bank, Vendor must arrange for data as per bank format / process reverse migration to Bank or to new service provider, as & when finalized by the Bank at free of cost.
- e) Upon Bank's request, with respect to (i) any agreements for maintenance, disaster recovery services or other third-party services, and any Deliverables not owned by the Service Provider, being used by Service Provider to provide the Services and (ii) the assignable agreements, Service Provider shall, use its reasonable commercial

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

endeavors to transfer or assign such agreements and Service Provider Equipment to Bank and its designee(s) on commercially reasonable terms mutually acceptable to both Parties.

- f) Upon Bank's decision in writing, Service Provider shall be under an obligation to transfer to Bank or its designee(s) the Deliverables being used by Service Provider to perform the Services free and clear of all liens, security interests, or other encumbrances at a value calculated as stated.

In the event that this Agreement is terminated for any reasons, either Party shall forthwith hand over to the other the possession of all documents, material and any other property belonging to the other that may be in the possession of the Party or any of its employees, agents or individuals.

In the event the Bank terminates the Contract on the ground of default/ breach in whole or in part, the Bank may, among other applicable remedies, procure Goods, Works or Services similar to those undelivered upon such terms and in such manner as it deems appropriate, and hold the Service Provider liable to the Bank for any excess costs for such similar Goods, Works or Services. However, the Service Provider shall continue performance of the Contract to the extent not terminated.

- g. The rights granted to the Service Provider shall immediately terminate.
- h. Upon Bank's request, with respect to (i) any agreements for maintenance, disaster recovery services or other third-party services, and any Deliverables not owned by the Service Provider, being used by Service Provider to provide the Services and (ii) the assignable agreements, Service Provider shall, use its reasonable commercial endeavors to transfer or assign such agreements and Service Provider Equipment to Bank and its designee(s) on commercially reasonable terms mutually acceptable to both Parties.
- Upon Bank's request in writing, Service Provider shall be under an obligation to transfer to Bank or its designee(s) the Deliverables being used by Service Provider to perform the Services free and clear of all liens, security interests, or other encumbrances at a value calculated as stated.

4.13 Publicity

Any publicity by the Bidder in which the name of the Bank is to be used should be done only with the explicit written permission of the Bank.

4.14 Solicitation of Employees

The selected Bidder, during the term of the contract shall not without the express written consent of the Bank, directly or indirectly: a) recruit, hire, appoint or engage or attempt to recruit, hire, appoint or engage or discuss employment with or otherwise utilize the services of any person who has been an employee or associate or engaged in any capacity, by the

Bank in rendering services in relation to the contract; or b) induce any person who shall have been an employee or associate of the Bank at any time to terminate his/ her relationship with the Bank.

4.15 Inspection of Records

All bidder records with respect to any matters covered by this RFP shall be made available to auditors and or inspecting officials of the Bank and/or Reserve Bank of India and/or any regulatory authority, at any time during normal business hours, as often as the Bank deems necessary, to audit, examine, and make excerpts or transcripts of all relevant data. Said records are subject to examination. Bank's auditors would execute confidentiality agreement with the bidder provided that the auditors would be permitted to submit their findings to the Bank, which would be used by the Bank. The cost of the audit will be borne by the Bank. The scope of such audit would be limited to Service Levels being covered under the contract, and financial information would be excluded from such inspection, which will be subject to the requirements of statutory and regulatory authorities.

4.16 Visitorial Rights

The Bank and its authorized representatives, including Reserve Bank of India (RBI) or any other regulator shall have the right to visit any of the Bidder's premises without prior notice to ensure that data provided by the Bank is not misused. The Bidder shall cooperate with the authorized representative/s of the Bank and shall provide all information/ documents required by the Bank.

4.17 Compliance with Laws

Compliance in obtaining approvals/permissions/licenses: The Bidder shall promptly and timely obtain all such consents, permissions, approvals, licenses, etc., as may be necessary or required for any of the purposes of this project or for the conduct of their own business under any applicable Law, Government Regulation/Guidelines and shall keep the same valid and in force during the term of the project, and in the event of any failure or omission to do so, shall indemnify, keep indemnified, hold harmless, defend, protect and fully compensate the Bank and its employees/ officers/ staff/ personnel/ representatives/agents from and against all claims or demands of liability and all consequences that may occur or arise for any default or failure on its part to conform or comply with the above and all other statutory obligations arising there from and the Bank will give notice of any such claim or demand of liability within reasonable time to the Bidder.

The Bidder is not absolved from its responsibility of complying with the statutory obligations as specified above. Indemnity shall exclude indirect, consequential and incidental damages.

4.18 Indemnity

The Service Provider shall indemnify the Bank, and shall always keep indemnified and hold the Bank, its employees, personnel, officers, directors, (hereinafter collectively referred to as "Personnel") harmless from and against any and all losses, liabilities, claims, actions, costs and expenses (including attorneys' fees) relating to, resulting directly or indirectly from

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

or in any way arising out of any claim, suit or proceeding brought against the Bank as a result of:

- a. Bank's authorized / bona fide use of the Deliverables and /or the Services provided by Service Provider under this Agreement; and/or
- b. an act or omission of the Service Provider and/or its employees, agents, sub-contractors in performance of the obligations under this Agreement; and/or
- c. claims made by employees or subcontractors or subcontractors' employees, who are deployed by the Service Provider, against the Bank; and/or
- d. claims arising out of employment, non-payment of remuneration and non-provision of statutory benefits by the Service Provider to its employees, its agents, contractors and sub-contractors
- e. breach of any of the term of this Agreement or breach of any representation or false representation or inaccurate statement or assurance or covenant or warranty of the Service Provider under this Agreement; and/or
- f. any or all Deliverables or Services infringing any patent, trademarks, copyrights or such other Intellectual Property Rights; and/or
- g. breach of confidentiality obligations of the Service Provider contained in this Agreement; and/or
- h. Negligence or gross misconduct attributable to the Service Provider or its employees or sub-contractors.

The Service Provider shall be responsible for applicable insurance coverage such as ESI, Workmen compensation and Employer's Liability Insurance, Accident or injury to workmen Transit Insurance Comprehensive General Liability Insurance, any other insurance required under Law of Regulations or by Employer etc. and indemnifies the Bank against all claims under such requirements.

The Service Provider shall at its own cost and expenses defend or settle at all point of time any claim against the Bank that the Deliverables and Services delivered or provided under this Agreement infringe a patent, utility model, industrial design, copyright, trade secret, mask work or trade mark in the country where the Deliverables and Services are used, sold or received, the Bank:

- notifies the Service Provider in writing as soon as practicable when the Bank becomes aware of the claim; and
- Co-operates with the Service Provider in the defense and settlement of the claims.

However, (i) the Service Provider has sole control of the defense and all related settlement negotiations (ii) the Bank provides the Service Provider with the assistance, information and authority reasonably necessary to perform the above and (iii) the Bank does not make any statements or comments or representations about the claim without the prior written consent of the Service Provider, except where the Bank is required by any authority/regulator to make a comment/statement/representation.

If use of deliverables is prevented by injunction or court order because of any such claim or deliverables is likely to become subject of any such claim then the Service Provider, after due inspection and testing and at no additional cost to the Bank, shall forthwith either 1) replace or modify the software / equipment with software / equipment which is functionally equivalent and without affecting the functionality in any manner so as to avoid the infringement; or 2) obtain a license for the Bank to continue the use of the software / equipment, as required by the Bank as per the terms and conditions of this Agreement and to meet the service levels; or 3) refund to the Bank the amount paid for the infringing software / equipment and bear the incremental costs of procuring a functionally equivalent software / equipment from a third party, provided the option under the sub clause (3) shall be exercised by the Bank in the event of the failure of the Service Provider to provide effective remedy under options (1) to (2) within a reasonable period which would not affect the normal functioning of the Bank.

The Service Provider shall not be liable for defects or non-conformance resulting from:

- a. Software, hardware, interfacing, or supplies for the solution not approved by Service Provider; or
- b. any change, not made by or on behalf of the Service Provider, to some or all of the deliverables supplied by the Service Provider or modification thereof, provided the infringement is solely on account of that change ;

Indemnity shall exclude indirect, consequential and incidental damages. However, indemnity would cover damages, loss or liabilities suffered by the Bank arising out of claims made by customer and / or regulatory authorities for reasons attributable to breach of obligations under this agreement by the Service Provider.

In the event of Service Provider not fulfilling its obligations under this clause within the period specified in the notice issued by the Bank, the Bank has the right to recover the amounts due to it under this provision from any amount payable to the Service Provider under this project.

The indemnities under this clause are in addition to and without prejudice to the indemnities given elsewhere in this Agreement. The provisions of this Clause shall survive the termination of this Agreement.

4.19 Corrupt and Fraudulent Practices

As per Central Vigilance Commission (CVC) directives, it is required that Bidders / Suppliers / Contractors observe the highest standard of ethics during the procurement and execution of such contracts in pursuance of this policy:

- ▶ “Corrupt Practice” means the offering, giving, receiving or soliciting of anything of values to influence the action of an official in the procurement process or in contract execution AND

- ▶ “Fraudulent Practice” means a misrepresentation of facts in order to influence a procurement process or the execution of contract to the detriment of the Bank and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Bank of the benefits of free and open competition.

The Bank reserves the right to reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question.

The Bank reserves the right to declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if at any time it determines that the firm has engaged in corrupt or fraudulent practices in competing for or in executing the contract.

4.20 Violation of Terms

The Bank clarifies that the Bank shall be entitled to an injunction, restraining order, right for recovery, suit for specific performance or such other equitable relief as a court of competent jurisdiction may deem necessary or appropriate to restrain the Bidder from committing any violation or enforce the performance of the covenants, obligations and representations contained in this tender document. These injunctive remedies are cumulative and are in addition to any other rights and remedies the Bank may have at law or in equity, including without limitation a right for recovery of any amounts and related costs and a right for damages.

4.21 Information/Cyber-Security Measures/Controls for selected SP:

The Service Provider (SP) shall provide an undertaking on their letter head as per Annexure 24 to comply with the Information and cyber security controls, on an ongoing basis and regulatory / legal guidelines and directives related to SP / outsourcing issued by regulators / legal entities from time to time. The SP shall provide access to the regulators, legal authorities, Bank and Bank appointed auditors for on-site/off-site supervision.

Service providers have to ensure that outsourced critical IT service is subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator at no extra cost to the Bank.

The selected SP has to abide with all clauses of Bank's Cyber Security Controls which will be part of the NDA/SLA signed with the Bank at the time of award of contract.

4.22 Information Confidentiality

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to copyright laws. Bank of Baroda expects the bidders or any person acting on behalf of the bidders to strictly adhere to the instructions given in the document and maintain confidentiality of information. The Bidders will be held responsible for any misuse of the information contained in the document and liable to be prosecuted by the Bank, in the event

of such circumstances being brought to the notice of the Bank. By downloading the document, the interested party is subject to confidentiality clauses.

4.23 Limitation of Liability

- a) Except the grounds mentioned under the para two of this clause, Service Provider's aggregate liability in connection with obligations undertaken as a part of the Agreement regardless of the form or nature of the action giving rise to such liability (whether in contract, tort or otherwise), shall be at actual and limited to the Total Contract Value.
- b) However, Service Provider's liability in case of claims against the Bank resulting from Willful Misconduct or Gross Negligence of Service Provider, its employees and Subcontractors or from infringement of patents, trademarks, copyrights or such other Intellectual Property Rights or breach of confidentiality obligations shall be unlimited.
- c) Bank shall not be held liable for and is absolved of any responsibility or claim / litigation arising out of the use of any third party software or modules supplied by Service Provider as part of procurement under the Agreement.
- d) Under no circumstances Bank of Baroda shall be liable to the Service Provider for direct, indirect, incidental, consequential, special or exemplary damages arising from termination of this Agreement, even if Bank of Baroda has been advised of the possibility of such damages, such as, but not limited to, loss of revenue or anticipated profits or lost business.
- e) It is expressly agreed between the Parties that for any event giving rise to a claim, Bank shall have the right to make a claim (including claims for indemnification under the procurement in this RFP) against Service Provider.
- f) Subject to any law to the contrary, and to the maximum extent permitted by law neither parties shall be liable to other for any consequential/ incidental, or indirect damages arising out of this agreement.
- g) All employees engaged by the party shall be in sole employment of the party and the respective parties shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall other party be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the other party.

4.24 INTELLECTUAL PROPERTY RIGHTS

Each Party owns and retains all rights, title and interests in and to its respective Pre-Existing Intellectual Property and Independent Intellectual Property. Independent Intellectual Property means any Intellectual Property developed by a Party independently of the applicable statement of work. "Pre-Existing Intellectual Property" means any Intellectual

Property owned by a Party, or licensed to such Party (other. than by the other Party), as at the commencement date of the applicable statement of work.

Whereas title to all inventions and discoveries made jointly by the parties resulting from the Work performed as per this agreement shall reside jointly between the parties. Both the parties shall mutually decide the future course of action to protect/ commercial use of such joint IPR. The Intellectual Property Rights shall be determined in accordance with Indian Laws.

Without prejudice to above paras all the interim/ final deliverables shall be property of bank. Subject to requisite payments the service provider deemed to grand exclusive, perpetual rights to use of the deliverables in favor of bank.

4.25 Information Confidentiality

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to copyright laws. Bank of Baroda expects the bidders or any person acting on behalf of the bidders to strictly adhere to the instructions given in the document and maintain confidentiality of information. The Bidders will be held responsible for any misuse of the information contained in the document and liable to be prosecuted by the Bank, in the event of such circumstances being brought to the notice of the Bank. By downloading the document, the interested party is subject to confidentiality clauses.

4.26 SET-OFF

Without prejudice to other rights and remedies available to Bank, Bank shall be entitled to set-off or adjust any amounts due to Bank under this clause from the Service Provider against payments due and payable by Bank to the Service Provider for the services rendered.

The provisions of this Clause shall survive the termination of this Agreement.

4.27 COVENANTS OF THE SERVICE PROVIDER

The Service Provider shall deploy and engage suitably experienced and competent personnel as may reasonably be required for the performance of the services. During the currency of this Agreement, the Service Provider shall not substitute the key staff identified for the services mentioned in this Agreement.

The Service Provider shall forthwith withdraw or bar any of its employee/s from the provision of the services if, in the opinion of BANK:

- (i) The quality of services rendered by the said employee is not in accordance with the quality specifications stipulated by BANK; or
- (ii) The engagement or provision of the services by any particular employee is prejudicial to the interests of BANK.

All employees engaged by the Service Provider shall be in sole employment of the Service Provider and the Service Provider shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall BANK be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the Service Provider.

The Service provider and sub-contractor, if any, is required to adhere to RBI guidelines for storage of data in India as per regulatory requirements, also to provide complete details of data captured, processed and stored, maintain confidentiality of the Bank's and its customers data and report the same to the Bank. The Service provider will be liable to the Bank for any event of security breach and leakage of data/information. The Service Provider and sub-contractor, if any, should not store or share any data outside the Bank's infrastructure.

The Service Provider:

- i. The Service provider shall be responsible for all negotiations with personnel relating to salaries and benefits and shall be responsible for assessments and monitoring of performance and for all disciplinary matters.
- ii. The Service provider shall not knowingly engage any person with a criminal record/conviction and shall bar any such person from participating directly or indirectly in the provision of services under this Agreement.
- iii. The Service provider shall at all times use all reasonable efforts to maintain discipline and good order amongst its personnel.
- iv. The Service provider shall not exercise any lien on any of the assets, documents, instruments or material belonging to BANK and in the custody of the Service Provider for any amount due or claimed to be due by the Service Provider from BANK.
- v. The Service provider shall regularly provide updates to BANK with respect to the provision of the services and shall meet with the personnel designated by BANK to discuss and review its performance at such intervals as may be agreed between the Parties.
- vi. The Service provider shall be responsible for compliance of all laws, rules, regulations and ordinances applicable in respect of its employees, sub-contractors and agents (including but not limited to code of Wages Act, Provident Fund laws, Workmen's Compensation Act) and shall establish and maintain all proper records including, but not limited to, accounting records required by any law, code, practice or corporate policy applicable to it from time to time, including records and returns as applicable under labor legislations.
- vii. The Service provider shall not violate any proprietary and intellectual property rights of BANK or any third party, including without limitation, confidential relationships,

patent, trade secrets, copyright and any other proprietary rights in course of providing services hereunder.

- viii. The Service provider shall ensure that the quality and standards of materials and services to be delivered or rendered hereunder, will be of the kind, quality and timeliness as designated by the BANK and communicated to the Service Provider from time to time.
- ix. The Service provider shall not work in a manner which, in the reasonable opinion of BANK, may be detrimental to the interests of BANK and which may adversely affect the role, duties, functions and obligations of the Service Provider as contemplated by this Agreement.
- x. The Service provider shall be liable to BANK for any and all losses of any nature whatsoever arisen directly or indirectly by negligence, dishonest, criminal or fraudulent act of any of the representatives and employees of the Service Provider while providing the services to the BANK.
- xi. The Service provider shall itself perform the obligations under this Agreement and shall not assign, transfer or sub-contract any of its rights and obligations under this Agreement except with prior written permission of BANK.
- xii. The Service provider shall be responsible for applicable insurance coverage such as ESI, Workmen compensation and Employer's Liability Insurance, Accident or injury to workmen Transit Insurance Comprehensive General Liability Insurance, any other insurance required under Law of Regulations or by Employer etc.
- xiii. The Service provider shall supply a confirmation to the effect that they are not owned or controlled by any director, or key managerial personnel, or approver of the Bank, or their relatives. The terms 'control', 'director', 'key managerial personnel', and 'relative' have the same meaning as assigned under the Companies Act, 2013 and the Rules framed thereunder from time to time. The Service provider shall also inform the Bank in writing if any such occasion arises in future where such ownership or control is exercised by any director, or key managerial personnel, or approver of the Bank, or their relatives.
- xiv. The Service provider shall provide a confirmation to the effect that their entity is not funded by Bank of Baroda and hence no sacrifice from the Bank's side is involved

OR

Bidder confirms that their entity is funded by Bank of Baroda and there is no sacrifice involved."

OR

Bidder confirms that their entity is funded by Bank of Baroda and amount of sacrifice involved is Rs. _____"

- xv. The Service provider shall ensure that background verification of all the resources to be deployed on the Bank of Baroda project / on the Bank's premises has been / will be carried out. Whenever required, we shall provide such report within 1 month from the date of on boarding the resources on the project. For subsequent

deployment of resources during the contract period, on boarding of the resource to be done preferably after background verification, however not later than 1 month from the date of on boarding.

- xvi. The Service provider shall ensure that it is complying with all the directions and clauses as stated in the said circulars:
 - a) RBI/2023-24/102 DoS.CO.CSITEG/SEC.1/31.01.015/2023-24 dated 10.04.2023 regarding Master Direction on Outsourcing of Information Technology Services
 - b) RBI/2023-24/107 DoS.CO.CSITEG/SEC.7/31.01.015/2023-24 dated 07.11.2023 regarding Master Direction on Information Technology Governance, Risk, Controls and Assurance Practices
- xvii. The Service provider along with the resources deployed by it and services provided by it, shall ensure compliance of all the clauses and directions of the aforesaid circulars and any subsequent circular/guidelines on the same, throughout the period of the contract.
- xviii. The commercial proposal is inclusive of all costs till acceptance of the application / hardware / deliverables as per scope of work by the Bank. The vendor has the option to use transportation from any eligible source. Insurance cover may be taken by the vendor from any eligible source till the acceptance of the Hardware items by Bank. Hence, insurance shall be at sole responsibility of the vendor. The vendor shall also assure that the product would be replaced with no cost to Bank in case insurance cover is not taken.
- xix. The Service provider shall co-operate with the relevant authorities in case of insolvency/ resolution of the Bank.
- xx. After consulting the bank, the service provider shall identify some of the deployed resources as Essential Personnel under this Agreement. Essential Personnel refers to those who can work on-site during exigencies (including pandemic situations). The roles (Level 1/Level 2/Level 3 and higher) and number of Essential Personnel required may change during exigencies, subject to mutual agreement between the parties. (Where onsite resources are part of SoW requirement).
- xxi. The Service provider shall ensure to have provision for the secure removal and/or destruction of data, hardware and all records (both digital and physical), if necessary. To ensure the seamless transition, the vendor should cooperate fully with the Bank / the new service provider and agree not to delete, purge, revoke, alter or update any data during this time unless specifically instructed to do so by the Bank/regulator.
- xxii. The Service provider shall ensure to have effective business continuity and disaster recovery plan and to ensure the agreed upon service levels. The Service provider shall develop and establish a robust framework for documenting, maintaining and periodic testing of business continuity and recovery procedures and shall maintain

a record of the same as per applicable law. The Service Provider shall periodically test the Business Continuity and Management of Disaster Recovery Plan. The Bank may consider joint testing and recovery exercise with the Service provider/vendor..

4.28 VICARIOUS LIABILITY

The Service Provider shall be the principal employer of the employees, agents, contractors, subcontractors, etc., if any, engaged by the Service Provider and shall be vicariously liable for all the acts, deeds, matters or things, whether the same is within the scope of power or outside the scope of power, vested under the contract. No right of any employment in the Bank shall accrue or arise, by virtue of engagement of employees, agents, contractors, subcontractors etc., by the Service Provider for any assignment under the contract. All remuneration, claims, wages dues etc., of such employees, agents, contractors, subcontractors etc., of the Service Provider shall be paid by the Service Provider alone and the Bank shall not have any direct or indirect liability or obligation, to pay any charges, claims or wages of any of the Service Provider 's employees, agents, contractors, subcontractors etc. The Service Provider shall agree to hold the Bank, its successors, assigns and administrators fully indemnified, and harmless against loss or liability, claims, actions or proceedings, if any, whatsoever nature that may arise or caused to the Bank through the action of Service Provider 's employees, agents, contractors, subcontractors, etc.

4.29 Order / Contract Cancellation

The Bank reserves its right to cancel the order / contract in the event of one or more of the following situations, that are not occasioned due to reasons solely and directly attributable to the Bank alone and it will be considered as a breach of obligations of vendor:

- Delay in implementation beyond the specified period that is agreed in the contract that will be signed with the successful vendor.
- Delay in site readiness and handing over the site to the Bank.
- Serious discrepancy in the quality of service / facility / security expected during the implementation, rollout and subsequent maintenance process
- The amount of penalties has exceeded the overall cap of 10% of the yearly contract value in any year during the contract period.
- Failure of the vendor makes good the situation within the remedy period.
- The selected vendor commits a breach of any of the terms and conditions of the RFP / contract.
- The selected vendor becomes insolvent or goes into liquidation voluntarily or otherwise.
- An attachment is levied or continues to be levied for a period of 7 days upon effects of the tender.

In case of order cancellation, any payments made by the Bank to the Service provider would necessarily have to be returned to the Bank with interest @ 15% per annum. Further the Service provider would also be required to compensate the Bank for any direct loss incurred by the Bank due to cancellation of the contract and any additional expenditure to be incurred

by the Bank to appoint any other SP. This is after repaying the original amount paid

5. Disclaimer

Subject to any law to the contrary, and to the maximum extent permitted by law, the Bank and its directors, officers, employees, contractors, representatives, agents, and advisers disclaim all liability from any loss, claim, expense (including, without limitation, any legal fees, costs, charges, demands, actions, liabilities, expenses or disbursements incurred therein or incidental thereto) or damage, (whether foreseeable or not) (“Losses”) suffered by any person acting on or refraining from acting because of any presumptions or information (whether oral or written and whether express or implied), including forecasts, statements, estimates, or projections contained in this RFP document or conduct ancillary to it whether or not the Losses arises in connection with any ignorance, negligence, inattention, casualness, disregard, omission, default, lack of care, immature information, falsification or misrepresentation on the part of the Bank or any of its directors, officers, employees, contractors, representatives, agents, or advisers.

Annexure 01 – Guidelines for submission details and E-tendering

Eligibility and Technical Bid must contain the following (All the documents should be digitally signed by authorized representative of bidder):

Section#	Section Heading	Performa Given
1.	Covering letter certifying compliance of Eligibility Criteria and Scope of Work compliance	Bidder to provide
2.	Eligibility criteria compliance with bidder comments	Annexure 02
3.	Undertaking from the bidder (regarding applicability of restrictions on procurement from a bidder of a country which shares a land border with India)	Annexure 03
4.	<u>Bid Security (Earnest Money Deposit) from Bidder:</u> • Transaction details in case paid through electronic mode (Annexure 04) OR • Original Bank Guarantee (in the format Annexure 05) OR • Bid Security Declaration in case of exemption (Annexure 06)	Annexure 04 / 05 / 06/06A
5.	Letter of Undertaking from the bidder	Annexure 07
6.	Letter of Undertaking from OSD	Annexure 08
7.	Conformity Letter	Annexure 10
8.	Undertaking of Information Security	Annexure 11
9.	Technical Proposal: The proposal based on Technical Specification compliance should be submitted with pages properly numbered, each page signed and stamped/ digitally signed. (Signed /Digitally signed documents from authorized representative of bidder)	Bidder need to provide the compliance of all technical requirement mentioned in Annexure 12

Section#	Section Heading	Performa Given
10.	Copy of the tender document along with annexures and addendum duly sealed and signed on all the pages of the document / digitally signed tender document from authorized representative of bidder.	Bidder to provide
11.	Masked price bid (Please note that the masked price bid should be exact reflection of the commercial bid except that the masked price bid <u>should not contain any financial information</u>)	Annexure 14
12.	Letter of authorization from the company authorizing the person to sign the tender response and related documents.	Bidder to provide
13.	A certified copy of the resolution of Board, authenticated by Company Secretary/Director, authorizing an official/s of the company or a Power of Attorney copy to discuss, sign agreements/contracts with the Bank.	Bidder to provide (To submit Board Resolution copy of authorizing official to submit the Bid)
14.	Declaration/ undertaking from bidder to comply with the Information and cyber security controls	Annexure 17
15.	Integrity pact (Bidder to submit duly Signed and Stamped /digitally signed Integrity Pact with Rs. 600 Non Judicial stamp paper /eSBTR along with Bid)	Annexure 20
16.	Service Level And Non-Disclosure Agreement Format	Annexure 21
17.	Letter of Undertaking from Bidder and OEM/ OSD on Compliance to RBI Master Direction on Outsourcing of IT Services RBI/2022-23/xx DoS.CO.CSITEG/SEC.xx/31.01.015/2022-23 Dated 23rd June 2022	Annexure 22
Commercial Bid should be strictly as per Commercial bid format (Annexure 15). Any commercial bid submitted not in conformity with Annexure 15 and provided along with the Eligibility cum Technical bid, then whole bid will be rejected outright.		

1. Guidelines

1.1. Support Details for GeM Portal:

Support details of Online Portal facilitator	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436
--	---

1.2. Downloading of Tender Document

The tender document is uploaded / released on GeM Portal. Tender document and supporting documents may be downloaded from same link. Subsequently, bid has to be prepared and submitted ONLINE ONLY as per the schedule given in Notice Details. The Tender document will be available online only. Tender document will not be sold / issued manually.

Only those tenders shall be accepted for evaluation for which Earnest Money Deposit (EMD) is deposited as per the terms mentioned in this RFP.

1.3. Preparation & Submission of Bids

The bids (Pre-Qualification, Eligibility, Technical as well as Commercial) shall have to be prepared and subsequently submitted online only. Bids not submitted “ONLINE” or by any other mean shall be summarily rejected. No other form of submission shall be permitted.

1.4. Do's and Don'ts for Bidder

- ▶ Registration process for new Bidders should be completed within first week of release of tender.
- ▶ The GeM Portal is open for uploading documents from the start of the bid submission date. Hence bidders are advised to start the process of uploading bid documents well in advance.
- ▶ Bidders must prepare for submission of their bid documents online well in advance as
 - The encrypt/upload process of soft copy of the bid documents large in number to the portal may take longer time depending upon bidder's infrastructure and connectivity.
 - To avoid last minute rush & technical difficulties faced by bidders in uploading/submission of bids, bidders are required to start the uploading of all the required documents -01- week in advance for timely online submission of bid.
- ▶ Bidders to initiate uploading of few primary documents during the start of the tender submission and any request for help/support required for uploading the documents / understanding the system should be taken up with GeM authorities well in advance.
- ▶ Bidder should not raise requests for extension of time on the last day of submission due to non-submission of their bids on time as Bank will not be in a position to provide any support at the last minute as the portal is managed by GeM authorities.
- ▶ Bidder should not raise request for offline submission or late submission since ONLINE submission is accepted only.

- ▶ Partly or incomplete submission of bids by the bidders will not be processed and will be summarily rejected.

Annexure 02 – Evaluation Terms

A. Eligibility Criteria Compliance

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Required
A	General		
1	Bidder must be a Government Organization / PSU / PSE / partnership firm / LLP or private / public limited company in India at least for the last 3 years.		Documentary Proof to be attached (Certificate of Incorporation)
2	Bidder must not be blacklisted / debarred by any Statutory, Regulatory or Government Authorities or Public Sector Undertakings (PSUs / PSBs) within last 2 years from the RFP date.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
3	The Bidder is not from such a country which shares a land border with India, in terms of the said amendments to GFR, 2017. OR The Bidder is from such a country and has been registered with the Competent Authority i.e. the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade, as stated under Annexure to the said Office Memorandum / Order and we submit the proof of registration herewith.		Undertaking as per Annexure 03 and Copy of certificate of valid registration with the Competent Authority (If applicable) (signed /Digitally signed documents from authorized representative of bidder)
4	The Bidder to provide information that any of its subsidiary or associate or holding company or companies having common director/s or companies in the same group of promoters/management or partnership firms/LLPs having		Letter of confirmation (self-certified letter signed by authorized official of the bidder)

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Required
	common partners has not participated in the bid process.		
5	The Bidder to provide an undertaking on his letter head that all the technical requirements highlighted as part of Technical Scope are covered in totality in the proposal submitted by the bidder.		Letter of confirmation from bidder (self-certified letter)
B	Financial		
1	The Bidder must have registered average annual turnover of Rs. 75 Crore during the last three completed financial years i.e for FY 2022-23, 2023-24 & FY 2024-25* from Indian Operations only (Not inclusive of the turnover of associate companies).		Audited Financial statements for the financial years 2022-23, 2023-24 & FY 2024-25*. * In case FY 2024-25 financials are not audited, FY 2021- 22, FY 2022-23 & FY 2023-24 will be considered.
2	The Bidder must be net profit making entity continuously for the last three years that is financial years 2022-23, 2023-24 & FY 2024-25* OR The net worth of the bidder should be positive as on RFP date and should not have eroded by more than 30% in the last three years.		Certified letter from the Chartered Accountant. The CA certificate in this regard should be without any riders or qualification.
C	Experience & Support Infrastructure		
1.	The proposed CRM should support a subscription (SaaS) model, hosted on cloud infrastructure compliant with RBI and MeitY guidelines (for India) with DR setup.		Letter of Undertaking by the Bidder
2.	The Bidder should be an OEM/OSD or authorized partner of OEM/OSD in India at least for the last three years		Letter of Undertaking by the Bidder and OEM

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Required
	(OEM proposed by bidder should have its development & support centre in India. This should be full fledged establishment and not created for the submission of this Bid)		
	The solution must support integration with Core Banking System (CBS), payment systems, and other third-party APIs and different channels/application of Bank		Letter of Undertaking by the Bidder and OEM
	The CRM should comply with data security and privacy standards such as ISO 27001, SOC 2, or equivalent		Copy of the certificate
	The solution should have been hosted in a public cloud with a single-tenancy architecture for scheduled commercial banks in India for a minimum of three years		Purchase Order / Work Order / Contract Agreement / Customer Credential clearly indicating the scope and duration.
	Bidder should have implemented at least 3 modules out of 6 proposed modules* in one or more Scheduled Commercial Bank in India, having minimum 1,500 branches as on date of RFP, with minimum of 5,000 licensed users on CRM Platform. e.g. Sales Management Module implemented at "X" Bank, Lead Management Module & Service Management Module implemented at "Y" Bank will be considered as implementation of 3 modules. The platform should be in use /live as on date of published RFP and should be in operation for minimum of 6 months. <u>*Proposed Solution should include following Module</u> 1. Lead Management		Evidence for the same to be submitted like Purchase Order / Work Order / Contract Agreement and Customer Credential clearly indicating the scope and duration

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Required
	2. Campaign Management 3. Sales Management 4. Service Management and customer 360 degree 5. Complaint management 6. Contact centre with IVR integration		
3.	The bidder must have at least 100 India-based technical resources with expertise in the proposed technology, covering roles across areas such as Technical Architecture, Engineering/ Development/ Testers, Design Engineers, Business Analyst (in Banking Domain etc.) – (excluding the resources in support and Maintenance Activities, Sales/Marketing) as on the date of RFP.		Letter of Undertaking by the Bidder
	Bidder should have direct support offices at Mumbai and Hyderabad. In case direct support office of the bidder is not present in Hyderabad / Mumbai then an undertaking to be provided by the Bidder stating that direct support would be provided by the bidder at Hyderabad / Mumbai whenever desired by the Bank		Letter of Undertaking by the Bidder

All dates if not specified to be applicable from the date of the RFP.

In case the bidding company/ firm is hived off from the demerged company, the experience, eligibility etc. as per the requirement of the RFP may be considered as of the demerged company, provided the demerged company doesn't apply in the same RFP process and Novation / Other Relevant Agreement is in place. In that case, Relevant Novation / Other Relevant Agreement need to be submitted.

Annexure 03 – Declaration/ undertaking from bidder regarding applicability of restrictions on procurement from a bidder of a country which shares a land border with India as per the order no. 6/18/2019-PPD dated 23rd July 2020 issued by Ministry of finance department of expenditure

(This letter should be on the letterhead of the bidder duly signed by an authorized signatory)

To
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Re: RFP for Selection of vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

Sir,

We, M/s ----- are a private/public limited company/LLP/Firm ~~<strike off whichever is not applicable>~~ incorporated under the provisions of the Companies Act, 1956/2013 Limited Liability Partnership Act 2008/ Indian Partnership Act 1932, having our registered office at - ----- (referred to as the “Bidder”) are desirous of participating in the Tender Process in response to your captioned RFP and in this connection we hereby declare, confirm and agree as under:

We, the Bidder have read and understood the contents of the RFP and Office Memorandum & the Order (Public Procurement No.1) both bearing no. F.No.6/18/2019/PPD of 23rd July 2020 and subsequent addendum dated 02nd July 2022 issued by Ministry of Finance, Government of India on insertion of Rule 144 (xi) in the General Financial Rules (GFRs) 2017 and the amendments & clarifications thereto, regarding restrictions on availing/procurement of goods and services, of any Bidder from a country which shares a land border with India and / or sub-contracting to contractors from such countries.

In terms of the above and after having gone through the said amendments including in particular the words defined therein (which shall have the same meaning for the purpose of this Declaration cum Undertaking), we the Bidder hereby declare and confirm that:

(Please strike off whichever is not applicable)

1. “I/ we have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India / ToT arrangement in sensitive technologies with an entity having beneficial ownership from a country which shares a land border with India ; I/ we certify that _____ is not from such a country / not having any related ToT arrangement with entity of such a country.”

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

2. "I/ we have read the clause regarding restrictions on procurement / ToT arrangement in sensitive technologies with an entity having beneficial ownership from a country which shares a land border with India; I/ we certify that _____ is from such a country / having related ToT arrangement with entity of such a country. I hereby certify that _____ fulfills all requirements in this regard and is eligible to be considered. [Valid registration by the Competent Authority is attached.]"

In case the work awarded to us, I/ we undertake that I/ we shall not subcontract any of assigned work under this engagement without the prior permission of bank.

Further we undertake that I/we have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that our subcontractor is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that our subcontractor fulfills all requirements in this regard and is eligible to be considered. [Valid registration by the Competent Authority is attached herewith.]"

We hereby confirm that we fulfill all the eligibility criteria as per the office memorandum/ order mentioned above and RFP and we are eligible to participate in the Tender process.

We also agree and accept that if our declaration and confirmation is found to be false at any point of time including after awarding the contract, Bank shall be within its right to forthwith terminate the contract/ bid without notice to us and initiate such action including legal action in accordance with law. Bank shall also be within its right to forfeit the Bid Security Money/ earnest money provided by us and also recover from us the loss and damages sustained by the Bank on account of the above.

This declaration cum undertaking is executed by us or through our Authorized person, after having read and understood the terms of RFP and the Office Memorandum and Order.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

List of documents enclosed:

1. Copy of certificate of valid registration with the Competent Authority (strike off if not applicable)

Please note:

- I. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority.
- II. Bidders having Transfer of Technology (ToT) arrangement in sensitive technologies (as defined in point VIII) with an entity having beneficial ownership from land border sharing countries will also require mandatory approval of Competent Authority for participation in this bid.
- III. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.
- IV. "Bidder from a country which shares a land border with India" for the purpose of this Order means: -
 - a. An entity incorporated, established or registered in such a country; or
 - b. A subsidiary of an entity incorporated, established or registered in such a country; or
 - c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
 - d. An entity whose *beneficial owner* is situated in such a country; or
 - e. An Indian (or other) agent of such an entity; or
 - f. A natural person who is a citizen of such a country; or
 - g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above
- V. The *beneficial owner* for the purpose of (iii) above will be as under:
 1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.
Explanation—
 - a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent, of shares or capital or profits of the company;
 - b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;
 2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
 4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
 5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
- VI. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.
- VII. The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority.
- VIII. For Bidders having Transfer of Technology (ToT) arrangement with entities having beneficial ownership in land border sharing countries; following seven technologies are considered as sensitive technologies:
1. Additive Manufacturing (e.g. 3D Printing)
 2. Any equipment having electronic programmable components or autonomous systems (e.g. SCADA systems)
 3. Any technology used for uploading and streaming of data including broadcasting, satellite communication etc.
 4. Chemical Technologies
 5. Biotechnologies including Genetic Engineering and Biological Technologies
 6. Information and Communication Technologies
 7. Software

Annexure 04 – Bid Security (Earnest Money Deposit)

(Bidder need to provide the Transaction Details of Bid Security (EMD) (in case paid through electronic mode)

To,
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051
Sir,

Sub: RFP for Selection of vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

We having our registered office at (herein after called the 'BIDDER') are offering Earnest Money Deposit as per details below for consideration of the bid of the above mentioned Bidder.

Amount: Rs. _____ /- (Rupees _____ Only)

Mode: Online Transfer/Bank Guarantee

Payment Type: RTGS (Real Time Gross Settlement) / NEFT (National Electronics Fund Transfer)/ Bank Guarantee

UTR / Txn ref. No. _____

Txn Date: _____

Remitting Bank: _____

Remitting Bank IFSC Code: _____

Beneficiary Account: Bank of Baroda, Bank Account No. 29040400000417

Beneficiary Bank IFSC Code: BARB0BANEAS

The details of the transaction viz. scanned copy of the receipt of making transaction or Bank Guarantee or Micro and Small Enterprises (MSE) / Startups Certificate (if EMD not applicable) to be enclosed.

The Bank at its discretion, may reject the bid if the EMD money doesn't reflect in beneficiary account or BG not received as per details furnished above.

Account Details for refund of Bid Security (Earnest Money Deposit) as per terms & conditions mentioned in the Tender document

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model



बैंक ऑफ़ बड़ौदा *Bank of Baroda*



We having our registered office at (herein after called the 'BIDDER') are providing our bank account details as per below to be considered as our account for refund of Bid Security (Earnest Money Deposit), wherever applicable as per terms & conditions mentioned in the Tender document.

A/C Name:

A/C No. (Company account details):

IFSC Code:

Bank Name:

Bank Address:

The details mentioned above is treated as final & bank shall not be held responsible for any wrong/failed transaction due to any discrepancy in above details.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 05 – Bid Security Form

(Pro forma for Bank Guarantee in lieu of EMD - Bidder need to provide the Bank Guarantee in following format in lieu of Bid Security Transaction)

To,

Date DD-MM-YYYY

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sub: RFP for Selection of vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

Dear Sir,

WHEREAS.....(Company Name) registered under the Indian Companies Act 1956 and having its Registered Office at India (hereinafter referred to as “the VENDOR”) proposes to offer its response to RFP No.. #: (RFP details) (hereinafter called the “RFP”)

AND WHEREAS, in terms of the conditions as stipulated in the RFP, the VENDOR is required to furnish a Bank Guarantee in lieu of the Earnest Money Deposit (EMD), issued by a Scheduled Commercial Bank in India in your favour to secure the order of the RFP in accordance with the RFP Document (which guarantee is hereinafter called as “BANK GUARANTEE”)

AND WHEREAS the VENDOR has approached us, for providing the BANK GUARANTEE.

AND WHEREAS at the request of the VENDOR and in consideration of the proposed RFP response to you, WE,.....having..... Office at....., India has agreed to issue the BANK GUARANTEE.

THEREFORE, WE,, through our local office at India furnish you the Bank GUARANTEE in manner hereinafter contained and agree with you as follows:

1. We....., undertake to pay the amounts due and payable under this Guarantee without any demur, merely on demand from you and undertake to indemnify you and keep you indemnified from time to time to the extent of Rs.....(Rupeesonly) an amount equivalent to the EMD against any loss or damage caused to or suffered by or that may be caused to or suffered by you on account of any breach or breaches on the part of the vender . any of the terms and conditions contained in the RFP and in the event of the VENDOR commits default or defaults in carrying out any of the work or discharging any obligation in relation thereto under the RFP or otherwise in the observance and performance of any of the terms and conditions relating thereto in accordance with the true intent and meaning thereof, we shall forthwith on demand pay to you such sum or sums not exceeding the sum of Rs.....(Rupees..... only) as may be claimed by you on account of breach on the part of the VENDOR of their obligations in terms of the RFP.
2. Notwithstanding anything to the contrary contained herein or elsewhere, we agree that your decision as to whether the VENDOR has committed any such default or defaults and the amount or amounts to which you are entitled by reasons thereof will be binding on us and we shall not be entitled to ask you to establish your claim or claims under Bank Guarantee but will pay the same forthwith on your demand without any protest or demur.
3. This Bank Guarantee shall continue and hold good until it is released by you on the application by the VENDOR after expiry of the relative guarantee period of the RFP and after the VENDOR had discharged all his obligations under the RFP and produced a certificate of due completion of work under the said RFP and submitted a “No Demand Certificate “provided always that the guarantee shall in no event remain in force after the day of without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing before the expiry of the said date which will be enforceable against us notwithstanding that the same is or are enforced after the said date.
4. Should it be necessary to extend Bank Guarantee on account of any reason whatsoever, we undertake to extend the period of Bank Guarantee on your request under intimation to the VENDOR till such time as may be required by you. Your decision in this respect shall be final and binding on us.
5. You will have the fullest liberty without affecting Bank Guarantee from time to time to vary any of the terms and conditions of the RFP or extend the time of performance of the RFP or to postpone any time or from time to time any of your rights or powers against the VENDOR and either to enforce or forbear to enforce any of the terms and conditions of the said RFP and we shall not be released from our liability under Bank Guarantee by exercise of your liberty with reference to matters aforesaid or by reason of any time being given to the VENDOR or any other forbearance, act or omission on your part of or any indulgence by you to the VENDOR or by any variation or modification of the RFP or any other act, matter or things whatsoever which under law relating to sureties, would but for the provisions hereof have the effect of so releasing us from our liability hereunder

provided always that nothing herein contained will enlarge our liability hereunder beyond the limit of Rs.....(Rupees.....only) as aforesaid or extend the period of the guarantee beyond the said day of unless expressly agreed to by us in writing.

6. The Bank Guarantee shall not in any way be affected by your taking or giving up any securities from the VENDOR or any other person, firm or company on its behalf or by the winding up, dissolution, insolvency or death as the case may be of the VENDOR.
7. In order to give full effect to the guarantee herein contained, you shall be entitled to act as if we were your principal debtors in respect of all your claims against the VENDOR hereby guaranteed by us as aforesaid and we hereby expressly waive all our rights of surety ship and other rights, if any, which are in any way inconsistent with any of the provisions of Bank Guarantee.
8. Subject to the maximum limit of our liability as aforesaid, Bank Guarantee will cover all your claim or claims against the VENDOR from time to time arising out of or in relation to the said RFP and in respect of which your claim in writing is lodged on us before expiry of Bank Guarantee.
9. Any notice by way of demand or otherwise hereunder may be sent by courier, e-mail or registered post to our local address as aforesaid and if sent accordingly it shall be deemed to have been given when the same has been posted.
10. The Bank Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees here before given to you by us (whether jointly with others or alone) and now existing un-cancelled and that Bank Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
11. The Bank Guarantee shall not be affected by any change in the constitution of the VENDOR or us nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or therewith but will ensure to the benefit of and be available to and be enforceable by the absorbing or amalgamated company or concern.
12. The Bank Guarantee shall come into force from the date of its execution and shall not be revoked by us any time during its currency without your previous consent in writing.
13. We further agree and undertake to pay you the amount demanded by you in writing irrespective of any dispute or controversy between you and the VENDOR.
14. Notwithstanding anything contained herein above;
 - i) our liability under this Guarantee shall not exceed Rs.....(Rupees.....only) ;
 - ii) this Bank Guarantee shall be valid up to and including the date and
 - iii) we are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this guarantee.

15. We have the power to issue this Bank Guarantee in your favour under the Memorandum and Articles of Association of our Bank and the undersigned has full power to execute this Bank Guarantee under the Power of Attorney issued by the Bank.

For and on behalf of
Branch Manager
Seal & Address

Annexure 06 – Bid security Declaration for MSE/Startup

(For Micro and Small Enterprises (MSE) / Startups)

To,

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

1. I/We, the undersigned, declare that M/s.....is a Micro and Small Enterprise and the copy of registration certificate issued by NSIC/DIPP for Micro and Small Enterprises (MSE) / Startups which are valid on last date of submission of the tender documents are enclosed.
2. I/We understand that, according to your conditions, bids must be supported by a Bid Securing Declaration as per Rule 170 of General Financial Rules (GFRs) 2017 by Micro and Small Enterprises (MSEs).

OR

2A. as per the tender / RFP no:floated for At para no: a Bid

Declaration Form in lieu of Bid Security is required to be submitted by me/ as per Rule 170 of General Financial Rules (GFRs) 2017 by Micro and Small Enterprises (MSEs).

3. I/We accept that I/We may be disqualified from bidding for any contract with you for a period of 6 months from the date of notification if I am /We are in a breach of any obligation under the bid conditions, because I/We
 - a) have withdrawn/modified/amended, impairs or derogates from the tender, my/our Bid during the period of bid validity specified in the form of Bid; or
 - b) Having been notified of the acceptance of our Bid by the purchaser during the period of bid validity (i) fail or reuse to execute the contract, if required, or (ii) fail or refuse to furnish the Performance Security, in accordance with the Instructions to Bidders.
4. I/We understand this Bid Securing Declaration shall cease to be valid if I am/we are not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our Bid.

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

5. I/We declare that I am the authorized person ofto make the declaration for and on behalf of Letter of Authority for executing declaration is enclosed

Signed: (insert signature of person whose name and capacity are shown)

In the capacity of: (insert legal capacity of person signing the Bid Securing Declaration)

Name: (insert complete name of person signing the Bid Securing Declaration)

Duly authorized to sign the bid for an on behalf of (insert complete name of Bidder)

Dated on _____ day of _____ (insert date of signing)

Corporate Seal (where appropriate)

(Note: in case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the Bid)

Annexure 06A –Bid Security Declaration Format

(On Bidders Letterhead)

To

Chief General Manager (IT)

Bank of Baroda

Baroda Sun Tower

Bandra Kurla Complex

Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

I/We undersigned declare that:

- 1) I/We understand that, according to your conditions, bids must be supported by a Bid Securing Declaration by the bidder eligible for exemption from Bid Security Money (EMD) as per Rule 170 of General Financial Rules (GFRs) 2017 or as per GeM GTC mentioned under clause 4, Section xiii, Sub-section 'm'.
- 2) I/We accept that I/We may be disqualified / debarred from bidding for any contract with you for a period of 6 months from the date of notification if I/We are in a breach of any obligation under the bid conditions, because I/We
 - a) have withdrawn/modified/amended, impairs or derogates from the tender, my/our bid during the period of bid validity specified in the form of Bid; or
 - b) having been notified of the acceptance of our Bid by the purchaser during the period of bid validity (i) fail or refuse to execute the contract, if required, or (ii) fail or refuse to furnish the Performance Security within the timeline, in accordance with the instructions to Bidders & as per tender terms & conditions.
- 3) I/We understand this Bid Security Declaration shall cease to be valid if I am/we are not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our Bid.
- 4) I/We declare that I am the authorized person ofto make the declaration for and on behalf of Letter of Authority for executing declaration is enclosed.

Signed: (insert signature of person whose name and capacity are shown)

In the capacity of: (insert legal capacity of person signing the Bid Security Declaration)

Name: (insert complete name of person signing the Bid Security Declaration)

Duly authorised to sign the bid for an on behalf of (insert complete name of Bidder)

Dated on _____ day of _____ (insert date of signing)

Corporate Seal (where appropriate)

(Note: in case of a Joint Venture, the Bid Security Declaration must be in the name of all Partners to the Joint Venture that submits the Bid)

Annexure 07 – Letter of Undertaking from the bidder

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

RFP for Selection of vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

1. Having examined the Tender Documents including all Annexures and Appendices, the receipt of which is hereby duly acknowledged, we, the undersigned offer to supply, deliver, implement and commission ALL the items mentioned in the 'Request for Proposal' and the other schedules of requirements and services for your bank in conformity with the said Tender Documents in accordance with the schedule of Prices indicated in the Price Bid and made part of this Tender.
2. If our Bid is accepted, we undertake to comply with the delivery schedule as mentioned in the Tender Document.
3. All 'Bill of Material' line items have been quoted as per requirement in Commercial Bid format without any deviation.
4. Masked Commercial Bid (Annexure 14) and Commercial Bid (Annexure 15) have been submitted without any deviation. Bill of Materials which have been marked in the masked Commercial Bid is as per the submitted Commercial Bid without any deviation.
5. We agree to abide by this Tender Offer for 180 days from date of bid opening and our Offer shall remain binding on us and may be accepted by the Bank any time before expiry of the offer.
6. This Bid, together with your written acceptance thereof and your notification of award, shall constitute a binding Contract between us.
7. a) We undertake that in competing for and if the award is made to us, in executing the subject Contract, we will strictly observe the laws against fraud and corruption in force in India namely "Prevention of Corruption Act 1988".
b) Commission or gratuities, if any paid or to be paid by us to agents relating to this Bid and to Contract execution, if we are awarded the Contract are listed below.
 - i. Name and Address of the Agent -(please specify NA if not applicable)



- ii. Amount and Currency in which Commission paid / payable -(please specify NA if not applicable)
 - iii. Purpose of payment of Commission (If commission is not paid / not payable indicate the same here) -(please specify NA if not applicable)
8. We agree that the Bank is not bound to accept the lowest or any Bid the Bank may receive.
9. We certify that we have provided all the information requested by the bank in the format requested for. We also understand that the bank has the exclusive right to reject this offer in case the bank is of the opinion that the required information is not provided or is provided in a different format.
10. We confirm that we are not owned or controlled by any director, or key managerial personnel, or approver of the Bank, or their relatives. The terms 'control', 'director', 'key managerial personnel', and 'relative' have the same meaning as assigned under the Companies Act, 2013 and the Rules framed thereunder from time to time. We also undertake to inform the Bank in writing if any such occasion arises in future where such ownership or control is exercised by any director, or key managerial personnel, or approver of the Bank, or their relatives.
11. We confirm that our company is not funded by Bank of Baroda and hence no sacrifice from the Bank's side is involved.
- (OR) We confirm that our company is funded by Bank of Baroda and there is no sacrifice involved.
- (OR) We confirm that our company is funded by Bank of Baroda and amount of sacrifice involved is Rs. _____.
12. We confirm that background verification of all the resources to be deployed on the Bank of Baroda project / on the Bank's premises has been / will be carried out. Whenever required, we shall provide such report within 1 month from the date of on boarding the resources on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after background verification, however not later than 1 month from the date of on boarding.
13. We undertakes that presently it is not "Debarred from Bidding" on the grounds mentioned in Rule 151 of GFR 2017.

Dated this.....by202

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 08 - Letter of Undertaking from OSD

(This letter should be on the letterhead of the OEM / Manufacturer duly signed by an authorized signatory)

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

We (Name of the OSD / OEM) who are established and reputable manufacturers / developers of having factories / offices at,and do hereby authorize M/s (who is the bidder submitting its bid pursuant to the Request for Proposal issued by the Bank) to submit a Bid and negotiate and conclude a contract with you for providing manufactured / developed by us against the Request for Proposal received from your Bank by the Bidder and we have duly authorized the Bidder for this purpose.

We undertake to perform the obligations as set out in the RFP in respect of such services and hereby extend our support and services through M/s..... during the contract period as per terms and conditions of the RFP.

We assure you that in the event of M/s not being able to fulfill its obligation in respect of the terms defined in the RFP then (OEM / OSD Name) would continue to meet these either directly or through alternate arrangements without any additional cost to the Bank.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 09 – Pre-Bid Queries Form

(Please note that all pre-bid queried need to be send by email in excel format only)

[Please provide your comments on the Terms & conditions in this section. You are requested to categorize your comments under appropriate headings such as those pertaining to the Scope of work, Approach, Work plan, Personnel schedule, Curriculum Vitae, Experience in related projects etc. You are also requested to provide a reference of the page number, state the clarification point and the comment/ suggestion/ deviation that you propose as shown below.

Name of the Bidder:

Contact Person Name:

Tel No:

Email-ID:

S No	Page #	Point / Section #	Clarification point as stated in the tender document	Comment/ Suggestion/ Deviation
1				
2				
3				
4				
5				
6				

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Date:

Annexure 10 – Conformity Letter

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

Further to our proposal dated, in response to the Request for Proposal..... (Bank's tender No. hereinafter referred to as "RFP") issued by Bank of Baroda ("Bank") we hereby covenant, warrant and confirm as follows:

We hereby agree to comply with all the terms and conditions / stipulations as contained in the RFP and the related addendums and other documents including the changes made to the original tender documents issued by the Bank shall form a valid and binding part of the aforesaid RFP document. The Bank is not bound by any other extraneous matters or deviations, even if mentioned by us elsewhere either in our proposal or any subsequent deviations sought by us, whether orally or in writing, and the Bank's decision not to accept any such extraneous conditions and deviations will be final and binding on us.

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 11–Undertaking of Information Security

(This letter should be on the letterhead of the Bidder as well as the OEM/ Manufacturer duly signed by an authorized signatory on Information security as per regulatory requirement)

To
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for RFP for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

We hereby undertake that the proposed hardware / software/Services to be supplied will be free of malware, free of any obvious bugs and free of any covert channels in the code (of the version of the application being delivered as well as any subsequent versions/modifications done)

Further we undertake that the Software/ hardware and Services which will be delivered or provided under this Agreement are not infringe any IPR such as patent, utility model, industrial design, copyright, trade secret, mask work or trade mark.

Dated this.....by20

Yours faithfully,

Authorized Signatory
Name:
Designation:
Bidder's Corporate Name
Address
Email and Phone #

Annexure 12 – Project Scope

1. Background

The Bank is undertaking an enterprise-wide CRM transformation to modernize and unify service, sales and digital customer engagement across branch, contact centre and digital channels. The CRM program aims to improve service turnaround time (TAT), first contact resolution (FCR), customer effort and cross-sell/upsell performance through redesigned, simplified, and compliant workflows that enable branch and service users to execute end-to-end STP journeys with minimal clicks and maximum straight-through processing.

The CRM platform is expected to support the Bank's target operating model where frontline users can effectively shift from "service-only" to "service-to-sales" roles through contextual customer 360, guided actions, embedded next-best-actions and integrated fulfillment.

Scope Overview

The scope of work shall include procurement (subscription/license), implementation, configuration, integration, migration, and ongoing support services for the selected enterprise CRM platform (leading market solutions or equivalent) including:

1. End-to-End Transformation Services

- Design and delivery of the Bank's target customer engagement operating model (people-process-technology), including service and sales process redesign with clear handoffs between branch, contact centre, back office and digital channels.
- Service blueprinting and journey redesign for high-volume service requests and sales journeys to reduce steps/clicks, eliminate re-keying, and maximize STP, with measurable baseline vs target KPIs.
- Role-based experience design for branch officials, service agents, relationship managers and supervisors (including assisted-service flows), supported by configurable guided workflows and scripts.
- Having Configuration-first approach (low-code/no-code where possible).

2. Business Outcomes and KPI Management

- Define KPI framework and measurement approach for all modules including service and sales outcomes (e.g., TAT, FCR, repeat contacts, customer effort, complaint aging/escalations, lead conversion, cross-sell, pipeline hygiene).
- Implement dashboards and operational performance management for regions/zones/branches and resolver groups, with drill-down to process bottlenecks and root causes.
- Adoption KPIs and sustained adoption plan (pre-go-live to post-go-live), including usage/quality metrics and training effectiveness measures.

3. Architecture and Integration Principles

- Loosely coupled, composable architecture: CRM to act primarily as a system of engagement and orchestration. Authoritative “systems of record” (e.g., Core Banking, lending, payments) remain in Bank platforms; CRM maintains only necessary interaction/context data.
- API-first and event-first: all integrations through versioned, documented APIs and asynchronous events. Avoid proprietary point-to-point integrations.
- Packaged business capabilities (PBC) / modular design: capabilities to be delivered as reusable modules/services that can be composed and recomposed as business needs change.
- Integration patterns must support omnichannel continuity (preserve interaction context across voice and digital) and minimize customer effort by orchestrating multiple backend systems until the customer outcome is fulfilled.
- Provide full integration inventory, target-state integration architecture, data flows, sequencing and error-handling design; include non-functional requirements (latency, throughput, resilience).

4. Data, Knowledge and Analytics

- Customer 360 and interaction history to be assembled from Bank systems with a clear data ownership model and data quality controls.
- Knowledge management capability for agents and branch staff (knowledge capture, curation, contextual surfacing, and governance) to support consistent resolutions and faster FCR.
- The CRM must integrate with the Bank’s Data Lakehouse and Analytics/AI Centre of Excellence and consume Bank-provided insights (segments, next-best-action, propensity, risk flags etc).
- Support multimodal/structured and unstructured data references (notes, attachments, call/chat transcripts) with retention and privacy controls.

5. Agentic AI Readiness

- CRM must be able to leverage the Bank’s Agentic AI framework and guardrails for use cases such as agent assist, auto-summarization, next-best-action, intelligent routing and guided service-to-sales prompts.
- Ensure human-in-the-loop controls for any AI-assisted recommendations/actions, with explainability, audit trails and the ability to disable vendor AI add-ons while retaining core CRM functions.
- Provide telemetry and observability for AI-assisted journeys (usage, quality, drift/exception tracking) and cost controls for any AI features.

6. Security, Compliance and Governance

- Support regulated-bank needs including auditability, maker-checker where applicable, data masking, retention/archival, legal hold, and evidence generation.
- Establish CRM governance structure, change control, release management and environment strategy (dev/test/UAT/pre-prod/prod) aligned to Bank standards.
- Define cultural change and adoption approach to address user concerns and build trust in AI-enabled CRM processes, including structured change journey and training/upskilling plan.
- According to Digital Personal Data Protection (DPDP) Rules, 2025, Establish a comprehensive framework for processing digital personal data, empowering users with rights over their data and requiring strict compliance from fiduciaries regarding consent, data breaches, and child data protection.

7. Siebel CRM Migration

- Perform Siebel discovery and inventory (data objects, workflows, reports, integrations, users/roles, volumes, data quality).
- Provide phased migration/coexistence approach (where required), cutover/rollback plan, multiple dry runs, reconciliation reports and audit evidence.
- Provide decommissioning and archival plan for Siebel including retention and access to historical records.

9. Technical Requirements

- **Headless/Composable architecture:** The CRM must support headless delivery where the user experience can be delivered via Bank-owned apps/portals while consuming CRM capabilities through secure, versioned APIs/events (decoupled UI).
- **API-first and event-first:** All core business objects and processes (customer, interaction, case, lead, task, workflow, knowledge) must be accessible via APIs; publish/subscribe events for key business events for near-real-time orchestration.
- **Open standards and loose coupling:** APIs to conform to OpenAPI; support REST and/or GraphQL where applicable; avoid dependence on proprietary adapters or vendor-only middleware unless explicitly approved by the Bank.
- **Integration through Bank platforms:** Must integrate via Bank's API Gateway/ESB/event bus standards; support Kafka (or equivalent) for event streaming; support OAuth2/JWT and optional mTLS as per Bank security standards.
- **Observability:** Provide end-to-end monitoring for APIs, events and integrations including logs, metrics, tracing, replay/DLQ patterns, and operational dashboards.

- **Configuration-first and upgrade-safe extensibility:** Prefer configuration/low-code; any code extensions must be upgrade-safe, documented, and governed with Bank approval to minimize technical debt and TCO.
- **Security and compliance:** Strong RBAC, maker-checker where needed, audit trails for all changes, data masking for non-production, encryption in transit/at rest, and alignment with regulated-bank compliance expectations.
- **Performance and resilience:** Define measurable response time targets for branch users, concurrency, throughput for service requests and campaigns; HA and DR design with defined RPO/RTO and evidence of DR drills.
- **Cloud support for seismic zones** involves using geographically dispersed data centers, cloud-native disaster recovery (DR) solutions, and high-performance computing (HPC) to ensure data resilience and business continuity against earthquakes.
- **TCO optimization:** Solution must minimize total cost by leveraging Bank-owned analytics/AI framework and integration platforms, avoiding duplicate components, and supporting modular adoption/licensing aligned to Bank rollout phases.

10. Functional Requirements – Common Capabilities

- **Unified 360 view for frontline users:** Single view of customer profile, relationships, products (referenced), interaction history, preferences/consents, service requests, complaints, leads/opportunities and next actions.
- **Service transformation and minimal-click fulfillment:** Redesign and implement service journeys to reduce clicks/steps and enable straight-through processing wherever feasible; guided workflows, smart defaults, and templates for high-volume requests.
- **Service KPIs built-in:** Ability to measure and manage TAT, FCR, rework/reopen rate, repeat contacts, SLA breaches, backlog and productivity across branches, regions and resolver groups.
- **Knowledge management for FCR:** Central knowledge base with authoring, approval, versioning, contextual recommendations, feedback loops, and governance to improve resolution quality and reduce handling time.
- **Omnichannel continuity:** Preserve context across branch, contact center, email, SMS, WhatsApp, web/mobile journeys and chatbot handoffs; unified interaction timeline and consistent routing/ownership.
- **Service-to-sales conversion:** Convert service triggers into sales opportunities (e.g., needs-based prompts, cross-sell offers), with tasking and tracking for relationship managers/branch officials.

- **Sales enablement:** Lead/opportunity/pipeline management, activity tracking, appointment/task management, and configurable playbooks aligned to Bank products and segments.
- **Digital enablement:** Support integration with Bank digital channels and portals; support self-service initiation and tracking of service requests and cases, with status updates and notifications.
- **AI/Agentic readiness using Bank framework:** CRM must enable Bank-owned agentic AI to assist users (summaries, recommendations, drafting, next-best-action) and optionally execute actions with human-in-loop approvals, full audit trail and telemetry.
- **Adoption and UX:** Role-based UI with personalization, quick actions, keyboard efficiency where applicable, and embedded training/help to drive adoption and operational efficiency.
- Scope also includes providing and/ or customizing the necessary middleware & component to connect/integrate with Avaya / CISCO/IVR/ Contact Centre, CBS and various other applications running across different lines of business of the Bank and its subsidiaries.

2. **Implementation and Maintenance of solution:**

The implementation of CRM Solution should ensure that it acts as a single repository for all the master data for customer and all the required Bank's applications will be fully integrated with the CRM solution listed below (under point 3) and bidder should provide necessary technical know-how to Bank's team to integrate applications in future.

3. **Details of Existing CRM application:**

The Bank is presently using Siebel CRM Version IP 16, an Oracle-based application. The CRM system is currently accessed by users across the Branches, Contact Centre, Regional Offices, Zonal Offices and various Business Verticals. The web interfaces/portal for Complaint module, Lead management module for various products, Wealth management are available for the customers to lodge complaint, create leads and tracking status, The Siebel CRM application implemented by the Bank includes several functional modules, such as:

- Marketing and Budgeting
- Complaint /Grievance Management
- Lead Management (Covering Retail Assets and Liabilities, MSME, Large Corporate, Referral DSA, DST, Supply chain finance, Government Business, and Agriculture verticals)
- Wealth Management Services
- Service Module
- Contact Centre Sales

The application has undergone with **customizations** and has been integrated with multiple **internal banking systems and external platforms**. Please refer under point no. 4 for the details .

Brief About Existing Modules and Functionalities:

A) Marketing Campaigns

- ❖ Campaign Management
- ❖ Multi Level Campaigns
- ❖ Budget, Events, Schedules
- ❖ Configure Approval workflows
- ❖ Configure segmentation and Importing / Generating Target Lists
- ❖ Lead Management from Campaign Responses
- ❖ Campaign Reports
- ❖ Configure Campaign Offers
- ❖ Build required outbound interfaces

B) Complaint Management Module

- ❖ Complaint Creation through various channels (Website for the customers, internet banking ,Bobworld, Business correspondents, Branches, Contact Centre, social media, SMS Banking, Whatsapp banking etc.)
- ❖ Integration with third party application DCRS for Debit Card Financial Complaints (DCRS)
- ❖ Complaint Priority (High, Medium and Low).
- ❖ Resolution process of sending financial complaints to IO in case of reopened complaints.
- ❖ Status Tracking of complaint on the web portal.
- ❖ Complaint Forward option and Bulk forward complaints between different departments.
- ❖ Reopen Escalation Functionality – Maximum 2 times allowed.
- ❖ Auto Escalation Emails to Departments, Regions and Zones.
- ❖ Customer Feedback regarding complaint module.
- ❖ Reports and Dashboards for Branches, Regions, Zones and HO users.
- ❖ Integration with internal and external applications like JANSURAKSHA, INGRAM Ministry portal, CPGRAM, for Consumer complaints.

C) Lead Management Module

- ❖ Lead creation process through different sources i.e Online web portal in Bank's website for application of Retail Assets,Liabilities, MSME,AGRI and LCB loans by Existing and Prospective customers.
- ❖ Physical channel based Journey through Branches in CRM application.

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

- ❖ SMS/Missed call based functionality for the Customers .
- ❖ Integration with internal systems i.e Loan Lifecycle processing system (LLPS) system through End to End STP process for loan processing . On successful submission, SMS/Email intimation is sent to the applicant.
- ❖ Facility to track the status of the loan application online is available in CRM application.
- ❖ Assisted journey to Contact centre in case of drop –offs for further follow up with the customer.
- ❖ Separate views created for Contact Centre and Branches for processing. Views created for Regions, Zones and BCC for Auto Escalation.
- ❖ Bulk upload facility for outbound calls and inbound Calls as part of Contact Centre Sales Module.
- ❖ Campaign, Pre-approved offers for End to End Lead processing through Branches and Contact Centre.
- ❖ Aadhaar Based Authentication for non-customer lead generation and pre-population of data on the basis of Aadhaar details.
- ❖ QR code Feedback
- ❖ Feedback survey module for the users.
- ❖ Online E-OTS module
- ❖ Office Directory for all the users.

D) Wealth Management Module:

- ❖ Integration with Bank's internal systems like Smart Insurance and Investment platform for wealth management module for opportunity creation and tracking.
- ❖ SSO integration with insurance and investment platforms.

E) Service Module- Customer 360 degree and Service Requests

- ❖ Single view of customer relationships. financial and non-financial account status.
- ❖ There are around 25 service requests are available in the current system which are fetched on real time basis. New CRM should have option to customize 50 more service requests as per the Business requirements.
- ❖ 360 degree view on customer's interactions across channels.

F) Sales Module- Contact Centre

- ❖ Inbound and outbound requests-Lead module real time integration with Contact centre like MSME, Retail assets, Retail liabilities etc.
- ❖ Preapproved leads.

G) CRM Mobile App- Lead Management Module



- ❖ CRM Mobile app inhouse developed module used for Lead management module for the following products like Retail assets, Liabilities, Wealth management, Credit card with features like lead creation, status tracking and Lead dashboard integrated with CRM application. This app is accessed at field level i.e Relationship managers, Deposit sales managers, and Branches.
- ❖ RM360 mobile app inhouse developed app for corporates integrated with CRM application.

H) **Integration with Existing Applications & Systems:**

- ❖ The existing CRM Solution is integrated with various internal and External platforms and multiple API's/interfaces and some of the core systems has been listed below:

Source System	Description & Purpose
CBS - domestic & international	Core Banking System for domestic as well as international territories- Connect 24, Finacle integrator
DEMAT	Demat & Online Trading account system
Debit Card (DCRS)	Debit Card Redressal System
Base 24	ATM Switch
Baroda Connect	Internet Banking Application
HRNES	HRMS system for group & resource synchronization
Credit Card	Managed by Bank of Baroda subsidiary
WMS	Wealth Management Products like Life Insurance, General Insurance, Mutual Funds
LLPS	Loan Life Cycle Processing Systems
EFRMS	Enterprise Fraud Management System generating alerts for Debit Card & Other Alternate Delivery Channel Frauds
Bob World	Mobile Banking Application

Proposed CRM Solution:

CRM Modules- The bidder is expected to develop and implement following 5 core modules:.

- A. Complaint Management
- B. Marketing & Campaign Management
- C. Service Management with Customer 360°
- D. Lead Management
- E. Sales Management

Apart from the above-mentioned 5 core modules, the following sub modules are part of core modules expected to be implemented:

- Wealth Management
- Data Analytics and Forecasting
- Opportunity Management and Collections Management
- Data Management & Integration with various systems
- Contact Center with IVR integration
- Digital Onboarding
- Relationship Banking & RM Toolkit
- Marketing Automation & Journeys
- Knowledge Base & Case Management
- Omnichannel & Self-Service
- Mobile & Field CRM
- Partner & Channel Management
- Reporting & Dashboard

A. Complaint Management:

1.1) Complaint Management

1.1.1) Complaint Creation –

- a) The CRM should be able to integrate with existing Siebel CRM application /Email/SMS system and convert incoming complaints and grievances on email, SMS& Siebel CRM(complaints portal) into SRs/Complaints in CRM and escalation matrix should work for it.
- b) Creation of complaint from Email & SMS by identifying the keywords and sender's registered email id/ registered mobile number.
- c) The solution should be able to identify the sender based on the registered email id/ mobile number and link the complaint to the existing customer.

- d) SMS/Email notification should go to the owners and customers informing creation/status change/closure of complaints
- e) The solution should be able to publish API for Complaint management into web service which shall be used by other systems to push information and create Complaints in the system
- f) Capturing all types of complaint from all the sources/ Channels- SMS Banking, Website, Branch, ODR- Internet banking, BOB world, whatsapp banking, E-mail, contact centre, ATM Kiosk etc.. TAT, Status Tracking, Escalation of Complaint as per internal matrix, Internal / External Ombudsman, capturing Resolver comments / resolution, Interim comments, Bounced to Resolver, Forward option, Capturing Feedback, Quality check resolution of complaints etc and allow routing, sentiment analysis based on customer feedback on complaints and tracking of complaints centrally from all sources.

1.1.2) Complaint auto-assignment –

- a) Complaint shall be automatically assigned (based on some rules/matrix which should be configurable)
- b) Post auto-assignment, the solution should be able to notify the owner by way of email and in the notification centre
- c) Assigned complaint should be visible in the pending queue of owner & group

1.1.3) Complaint Priority –

- a) The solution should be able to prioritize certain type of complaints based on some rules (which should be configurable)
- b) Based on the priority of the complaint, it should appear in the pending list of complaints, i.e. the highest priority complaints will appear on the top followed by others based on priority.

1.1.4) Complaint Status change –

- a) There shall be various stages/status of complaint which will be changed during the course of SR processing.

1.1.5) Complaint Age & Auto Escalation of Complaints -

- a) Every type of complaint should have expected TAT for its closure which the system should display
- b) For every complaint, the solution should be able to calculate the complaint age for every stage/status
- c) If a complaint is lying in a one stage/status for a defined time and is crossing the TAT for the complaint stage, then it should be automatically escalated & notified to next level based on some rules/matrix which should be configurable.

1.1.6) Complaint Execution & Closure-

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

- d) The complaints shall be manually closed in CRM by the respective owner after the respective procedures
- e) The solution should be able to calculate the TAT of every complaint
- f) On closure of the complaint, it should disappear from the pending queue of the owner & group

B: Campaign Management Module:

Marketing & Campaign Management

2.2.1) Campaigns, Events, Budgets creation -

- a) Campaigns (of all types – mass email, voice, sms & others) should be created from CRM & should be able to link the campaign outcome /response so as to compute ROI of each campaign and conversion rate.

b) Incident based campaigns –

- i. **CRM Campaign web service** - The solution should be able to float API/ web service for incident based campaigns where other systems will be able to push data e.g Credit/Debit Card/ Net Banking - fraud management systems should be able to send suspicious transactions details like amount of transaction/ source/ date-time to CRM Campaign web service. This web service/ API should be able to trigger a real time incident based campaign triggering /making outbound calls through Contact Centre Application
- ii. Incident based campaigns - The solution must be able to automatically create real time campaigns for voice/sms/email based on occurrence of some incident based on some rules (which should be configurable) which results in automatic triggering of Outbound calls/Emails/SMS/Pre-recorded Voice Blast from respective campaign execution systems like contact centre application like for Bills & Collection for recovery/ collection of loan dues/pending Bills, or if Debit/Credit/Ebanking fraud happens then CRM will trigger an outbound call/sms/email through contact centre application or CRM (for email)
 - a) The application should have process flows build into it to create Campaigns (of different types/channels), Events, Budgets & Schedules
 - b) Create campaigns & events including details such as campaign/event type, campaign/event status, offer expected response, proposed start and end date, actual start and end date
 - c) Capture campaign financials details such as costs and expected revenue
 - d) Create budgets at central level, zonal level, regional level, branch level
 - e) Create campaigns & events at central level, zonal level, regional level, branch level
 - f) Associate sales literature such as product brochures to campaigns



- g) The application must be able to support definition of rich text/HTML templates for outbound communication via Email.
- h) Allocate budgets to campaigns & events
- i) Schedule events and campaigns
- j) Able to assign tasks to specific individuals for follow up and task completion
- k) Support workflow based approval of campaign to management for approval
- l) Save campaign as a template which can be reused and easily modified to create similar campaigns
- m) Support quick campaigns with wizard interface for easy creation by individual users to create quick campaigns for their own customers
- n) Implement permission based marketing with opt outs & controlled lists based on DND/ NDNC list
- o) Blend multi-channel campaigns into a unified campaign flow based on marketing Objectives
- p) Support the use of historical campaign data in future campaigns
- q) Support the management of events, road shows & other physical campaigns
- r) Support the usage of social media in launching campaigns with the ability to integrate with the top social networking sites

Associate target product to campaign & events

2.2.2) Target List -

- a) The solution should be able to import or generate (based on some criteria) invitees list, target list & support data import from external source system
- b) Associate target marketing list of prospects and customers to campaigns & events
- c) Saved target list can be associated with multiple campaigns & events
- d) Support data de-duplication for imported list to define simple rules for duplicate detection i.e. if the same customer is present in multiple occurrences or if the customer already exists then it will not create new customer every time a new list is imported where the customer is present.
- e) Create customer segments based on past responses of prospects i.e. if a customer was part of any campaign and he/she could not be contacted or he/she didn't respond then he will be automatically put in the segment of low-response customer, so that he will be excluded automatically from future campaigns.
- f) Catalog management based on customer segments/behavior

2.2.3) Campaign Execution -

- a) Campaigns can be executed over multiple channels, such as phone, letter, email, advertising and appointments for sales users to follow up or even road show events.
- b) Phone call activities are generated for the relevant target lists and assigned to contact center agents for making the calls.
- c) Appointment activities are generated for the relevant target lists and assigned to sales users for follow up.
- d) Support definition of rules to exclude customers who have been touched in the past n days through a particular channel or for a particular campaign..
- e) Campaigns should execute prioritizing Customer's communication and privacy preferences. If customers indicate preferences such as Do not call or Do not send Bulk Email, 'Not interested to receive promotional emails/SMS, or the customer is registered with DND/NDNC, then the customer will be excluded from campaign execution even though the customer is in the target marketing list.

2.2.4) Campaign response & analysis-

- a) Campaign responses are tracked for users to capture prospect/customer's response if they are interested or not interested in the offer.
- b) Create segments based on past responses of prospects
- c) Campaign responses can be automatically converted into a lead or opportunity and associated with the relevant customer record.
- d) For conversion of lead, information of account, contact and opportunity can be automatically brought over and associated with customer records or new record can be created for prospects
- e) The application should be able to provide Campaign reporting & Performance & Profitability analysis to give the ROI of campaigns, conversion of Leads, activity completion time, responses over various channels.
- f) If a customer has been contacted through various campaigns then it should be tracked. Also the response from the customer should be recordable and link to the campaigns.
- g) Showing active campaigns running against a customer and also showing all the campaigns of which customer was a part and how many times he was contacted for which campaign and what was his response to the communication
- h) Offer management – The solution should be able to save list of offers against each customer on regular basis (list is churned from analytical CRM system) which are customer specific, and it should be able to pop-up offers specific to the customer in real time when the customer profile is opened.

C . Service Management with Customer 360:

3.3.1) Service Management

3.3.2.) Service Request Creation –

- a) The solution should be able to create SRs from Emails & SMS by identifying the keywords and sender's registered email id/ registered mobile number
- b) The solution should be able to identify the sender based on the registered email id/ mobile number and link the SR to the existing customer.
- c) SR import function resulting in auto creation of SRs with auto assignment
- d) The solution should be able to publish API for SR management into web service which will be used by other systems to push information and create SR in system
- e) De-dupe check for same type of SR for the same account of the same customer should be applicable so avoid any anomalies

3.3.3) Service Request Assignment –

- a) SR shall be automatically assigned (based on some rules/matrix which should be configurable)
- b) Post auto-assignment, the solution should be able to notify the owner by way of email and in the notification centre.
- c) The assigned SRs should be visible in the pending queue of the owner & group

3.3.4) SR Priority –

- a) The solution should be able to prioritize certain type of SRs based on some rules (which should be configurable)
- b) Based on the priority of the SR, it should appear in the pending list of SRs, i.e. the highest priority SRs will appear on the top followed by others based on priority
- c) There shall be various stages/status of SR which will be changed during the course of SR processing.

3.3.5) SR Age & Auto Escalation of SR –

- a) Every type of SR should have expected TAT for its closure which the system should display
- b) For every SR, the solution should be able to calculate the SR age for every stage/status
- c) If a SR is lying in a one stage/status for a defined number of time and is crossing the TAT for the SR stage, then it should be automatically escalated & notified to next level based on some rules/matrix which should be configurable.

3.3.6) SR Execution & Closure –



- a) Based on process flow of SR (which should be configurable), some SRs will be auto executed in the source system in real time and some will need 3.3.6) to be closed manually.
- b) The status of auto executed SRs will change to 'Closed' automatically by the system and the status of manually executed SRs will have to be closed manually in CRM
- c) The solution should be able to calculate the TAT of every SR and display it on the screen for conveying the same to the customer if asked.
- d) On closure of the SR, it should disappear from the pending queue of the owner & group

D. Lead Management Module:

4.2.1) Lead Management

4.2.2) Customer Creation & Lead Creation -

- a) Customer Leads will be created in CRM for new and existing customers. For new customers, first the customer will be created in CRM resulting in creation of CIF in CRM. After that Lead will be created and attached to this customer. For existing customers, leads will be attached to the existing customer's CIF.
- b) Creation of Leads from Emails & SMS by identifying the keywords and sender's registered email id/ registered mobile number.
- c) The solution should be able to identify the sender based on the registered email id/ mobile number and link the lead to the existing customer. If the email id & mobile number doesn't match with anyone in DB, the system should create a new customer and attach the lead to it.
- d) The solution should be able to publish API for Lead management into web service which shall be used by other systems to push information and create Leads in the system
- e) Lead import function resulting in auto creation of Leads with auto assignment
- f) Product shall be attached to each Lead/opportunity.
- g) On the fly De-dupe check for creation of same customer or same type of Lead for the same customer should be applicable to avoid any anomalies. If duplicates customer exist, the system will pop-up the customer details giving the option to the user to select one of the duplicate or create a new customer. If however the percentage of duplicity is above a threshold, then the system will not allow to create the customer with the same credentials like first/middle/last name, phone number, pan etc.

4.2.3) Lead Assignment-

- a) Lead/Opportunity shall be automatically assigned (based on some rules/matrix which should be configurable)
- b) Post auto-assignment, the solution should be able to notify the owner by way of email and in the notification centre
- c) The assigned leads should be visible in the pending queue of the owner & group
- d) The owner should be able to re-assign the lead to other person in the group in case he is not able to work on the Lead.
- e) The manager should be able to re-assign a Lead to other person in the group.
- f) The Lead/opportunity should be re-assignable/transferrable to other group in the same or other region/zone in case the customer desires to avail the product/service in other branch.

4.2.4) Lead Score & Lead Enrichment-

- a) System should be able to impart the score to the leads based on some pre-defined matrix for the product by processing available data or capturing customer response.
- b) Provisions should be there to store the customized formulae and calculate score based on available or captured data.
- c) Provisions to build template (questionnaire) and capture customer provided responses and impart score based on the pre-defined matrix/rules/formulae for each product (which should be configurable) resulting in enrichment of lead to have better understanding of the lead and for checking the eligibility for limit of a product like loan, credit card, overdraft, cash credit etc

4.2.5) Lead Status change -

- a) There shall be various stages/status of Lead/Opportunity which will be changed during the course of Lead/opportunity processing.
- b) Once the stage/status of the Lead is changed to pre-closure or successfully closed, then customer on-boarding will happen and the customer will be created in CBS

4.2.6) Lead Age & Auto Escalation of Lead -

- a) Every type of Lead/opportunity will have expected TAT for its closure which the system should display.
- b) For every lead, the solution should be able to calculate the lead age for every stage/status
- c) If a lead is lying in a one stage/status for a defined number of days and is crossing the TAT for the Lead stage, then it should be automatically escalated & notified to next level based on some rules/matrix which should be configurable.

4.2.6) Lead Execution/Closure, Customer on-boarding & Account Opening –

- a) For every lead maturing to successful closure, Customer engagement, on boarding/ registration/ Customer ID creation / account creation in CBS/other source system will have to be triggered from CRM in real time.
- b) The registration / account opening form shall be printed out with details & photo of the customer. The customer will only need to sign on the form. Once the form is signed, the signature of the customer will also be captured again and shall be kept online in the customer profile.
- c) Customer's PAN number/Aadhaar number shall need to be validated in real time from NSDL/ UIAI.
- d) Customer information shall need to be verified (maker/checker concept). During verification, the CRM shall validate the Customer's PAN number from NSDL. Once the all validations are successful and checker has approved the customer/lead, the customer/lead data will be sent to CBS web service / middleware for automatic customer id creation and also for account creation in CBS. The Customer Id and Account number created in CBS will be returned to CRM by CBS or shall be fetched from CBS and attached to the CIF & Lead in CRM.
- e) Post account creation in CBS/ source system, the Lead will be closed automatically in CRM
- f) CRM should also be able to complete the customer on-boarding and account opening process for the online account opening leads captured from the bank's website or third party websites and also from tab banking facility.
- g) Application print, attachments, signature and photo uploading should be present for every customer profile.
- h) The solution should be able to calculate the TAT of every lead
- i) On closure of the lead, it should disappear from the pending queue of the owner & group

E. Sales Management Module:

5.2.1) Sales planning:-

- a) The System should have the ability to define Territory Assignment Rules based on geography, business unit, product line, industry, named accounts, or any other custom attribute, across multiple sales channels.
- b) Solution should have features for sales target planning & forecasting
- c) Ability to define Incentive Compensation plans and assign it to the corresponding sales team member.
- d) Ability to define Monetary and Non - Monetary incentives

- e) The System should be able to offer targeted promotions and personalised recommendations for the products and services.

5.2.2) Sales Management:-

- a) Ability to auto allocate Leads or Opportunities to sales reps or RMs based on Territory
- b) Gamification of the sales management.

5.2.3) Sales Tracking -

- a) Solution should provide seamless interface for tracking sales performance across levels like individual level, branch level, zonal level etc.

F. Data Analytics & Forecasting: -

- a) The solution should provide robust analytics by analysing data for insights into customer behaviour and estimate the likely products that customers may take given the available customer profile and data from multiple sources
- b) Based on analytics, cross-sell and upsell opportunities are presented to customers at all touchpoints.
- c) Understanding existing Lead Management Model and other Analytic models and recommend customisation required, if any, in those models for seamless integration.

The solution should be able to use an internal rule engine that is simple to change and test without writing any code, basic application logics and drag-and-drop choices for rule modification.

G. Process Design: -

- Define Business Case for the proposed Platform
- Detailing of use cases, technology process for each workflow - what are the dependencies, what is the process flow, technology integration required.
- Ensure migration of user data from existing source systems to the proposed CRM, consisting of data mapping between the existing Lead Management Model application vs the CRM and transform and load the data into the proposed CRM platform.

H. Training:

- Training to all the faculty members of staff training colleges and IMAGE team under "Train the trainer" concept for further training to the field functionaries for adoption of the platform.
- Refresher Training program on a frequency of 3 months for the updates in the platform. And yearly for next three years on the overall platform.

- Bidder shall organize for training (familiarization) to the Bank's team as follows:
 - Five working days' training to the Bank's Core Team is to be imparted before UAT. The training program may be conducted in 2 batches of 50 officers each.
 - Training to be provided to bank's IT team, Support & Front Office users on 'Train the Trainer' model. A total of 100 officers to be trained in multiple batches.
 - The Bidder must provide comprehensive training (technical and functional separately) to the Bank Staff once a year (5 working days) during the contract period. The training shall be provided as and when required by the Bank.
 - The Training will be carried out onsite at any designated location in India identified by the Bank at the Bank's training centres. The training program may be split into 2 groups – Technical and Trainer level training. The groups may be covered in 2 batches of 20 officers each. The bidders are requested to indicate the optimum number of days / hours required for both Technical and User level training programs onsite.
- The selected bidder should provide User Manual and Technical Documentation both in hard and soft copies to the Bank.
- The training shall be subjected to evaluation by the Bank to ensure that all the components of the comprehensive CRM Solution are covered in the training by the selected bidder.

I. Technical Requirements: Infrastructure, Cloud and other CSP Requirements

1. The proposed CRM Solution shall be configured, deployed On-Cloud under SaaS based model, and managed to meet security, privacy, legal, ethical and compliance requirements of the Bank.
2. Cloud support for seismic zones platform enable replication of critical data across different seismic regions, often using high-availability (HA) setups and multi-region architectures to mitigate risks from natural disasters.
3. CRM Application to be built on an Open Architecture based API enabled Platform to provide a superior digital experience for the users.
4. The platform should provide Omni channel experience to the users of the platform. The platform should be accessible through website (browser agnostic), TABs (Android/ IOS), Mobile Apps (Android/ IOS) etc. The proposed solution should provide a user-friendly interface with end-state design aligned and signed-off before implementation.
5. The bidder should propose the solution as per Bank's requirements with high availability & secure infrastructure in cloud environment at Data Centre and

Disaster Recovery site considering the present as well as annual incremental volumes (for contract period) and the sizing proposed.

6. Bidder should arrive at the sizing by considering data volume, performance requirements, integration needs, scalability, and estimated number of concurrent users till the end of contract period and should provide additional resources at no additional cost to the bank in case the requirements are not met. Also, during the contract period, growth of the bank should be considered and thus, the sizing proposed should have enough computing power, memory, and storage available to accommodate the predicted sizing required.

J. Data Management and Integration:

1. The proposed solution should integrate with
 - CBS and allied applications like Enterprise Fraud Risk Management, Digital Lending Platform, Co-lending platforms, MIS/ Data Warehouse analytics, chatbots, customer service channels like mobile banking, internet banking, ATM etc., as per Bank's requirement. Solution should include pre-built connectors or support integration with commonly used banking applications like CBS, payment gateways, ERP, and analytics platform.
 - Third party applications via Web Services (REST/SOAP/JSON) and ISO communication, SQL queries (Oracle, SQL Server, MySQL DB), file based integration (CSV, XML), API integration and other industry-standard methods as per Bank's requirement.
 - Legacy system interfaces and various mobile/web applications of the Bank, such as HRMS, Business Dashboard etc., through AD and should integrate with Email gateway (SMTP service & Server level Email Authentication), SMS Gateway, WhatsApp, etc., of the Bank through secure API's interfaces.
2. The proposed solution should integrate with Middleware and APIs of Bank as per Bank's requirement. All Application integration should be STP without manual interventions and all information exchange should happen over secured API channels using tokenized parameters for customer data. The proposed solution should include an API management platform with API gateways and API analytics to effectively manage and monitor API usage.
3. APIs to adhere to Open API, REST, and GraphQL standards for interoperability and scalability.
4. The API data exchange integrity, non-repudiation and authenticity aspects to be achieved through Digital Signatures. The APIs should not be using Basic Authentication and should incorporate OAUTH/JWT Token Authentication.
5. The bidder must provide a comprehensive API catalogue that outlines all available APIs for integration with other systems (e.g., core banking systems, data lake house, in-house applications, third-party applications, etc.). The catalogue should

include detailed documentation on API endpoints, usage limits, authentication methods, and data formats.

6. The CRM solution must support event-driven architecture with capability to integrate with Apache Kafka (or equivalent event streaming platforms such as AWS Kinesis) for seamless real-time data synchronization and processing between systems. The solution must be capable of handling asynchronous event notifications and triggers that initiate specific actions, such as updates to customer data or workflow transitions.
7. The solution should adopt an event-sourcing pattern where all significant business events (e.g., customer interactions, support requests) are captured as events in Kafka (or equivalent event streaming platforms). These events should be used to build a reliable and consistent view of customer data, improving the accuracy and timeliness of customer insights.
8. The proposed CRM solution should leverage gRPC (Google Remote Procedure Call) or equivalent technology for high-performance, low-latency communication between microservices and other integrated systems. The use of RPC should ensure that the CRM can handle high-volume of data efficiently, support fast request/response times thereby reducing latency during system interactions, support horizontal scalability and efficient load balancing across microservices, ensuring that the system remains performant even under high demand, particularly during peak traffic periods.
9. The bidder should provide a sandbox environment that allows the bank to test the integrations with internal systems and external partners, ensuring smooth data exchange and validating functionality before full deployment.
10. The selected bidder is responsible for Migration of customer data, existing leads, complaints and service request/case data, Migration strategy, Migration Plan, Pre and Post migration reconciliation and Audit support in the new solution.
11. The proposed solution should have error / run time exception handling mechanism during data import process from Bank's Data Centre to Cloud.
12. Database to support advanced querying capabilities (e.g., JSON for semi structured data)
13. The bidder should ensure robust, consistent and regular back-up and recovery plans are in place. The data & configuration backups are to be taken in fully encrypted mode and should be immutable in nature.
14. Bidder should ensure data retention, masking of data, archiving, destruction / purging of data, sharing of data, encryption of data etc. as per the bank's requirement. The selected bidder should certify for purging all data at all locations including slack in data structures and on the media on Bank's request. The Bank will have the right to audit this practice.

15. As per the Digital Personal Data Protection (DPDP) Rules, 2025, notified by India's Ministry of Electronics and Information Technology (MeitY), establish a comprehensive framework for processing digital personal data, empowering users with rights over their data and requiring strict compliance from fiduciaries regarding consent, data breaches, and child data protection.
16. The Bidder's/Bidder's CSP shall ensure that services offered under SaaS model are enabled with data loss prevention tools / capability to monitor data flow or curtail, if required, to safeguard against unauthorized access or leakage of sensitive customer data.
17. The Bidder shall be responsible for recovery of lost data, restoration and repair of damaged data and the correction of data. The SaaS vendor should ensure data privacy by design in the application and provide data integrity and data security on a continual basis.
18. Bidder to confirm that it acquires no rights or licenses, including without limitation to intellectual property rights or licenses, to use the data for its own purposes by virtue of the transaction.
19. The ownership of the Bank's data shall always reside with the Bank. The Bidder /Bidder's CSP will only act as a custodian of Bank's data. No part of the Bank's data shall be used by the Bidder /Bidder's CSP for any purposes including but not limited to marketing and data mining.
20. The data should be stored within geography of India and all data functions and processing are performed within the boundaries of India. The Primary and Secondary Data Centres of CSP should be physically located in India and should be in different seismic zones before submission of bid. The data should not be transferred outside of country's boundary by any means. Cloud hosting in a Tier 4 Data Center, certified by the Uptime Institute, is strongly preferred.
21. The CSP should be able to provide geographic or IP based restrictions.
22. Bidder /CSP (Cloud Service Provider) should ensure that any data that is stored on the cloud is protected and appropriate policies and controls are put in place to provide data privacy and protection. The CSP should adhere to all laws pertaining to data privacy and protection that are applicable as per GoI, RBI and any other regulators. The CSP should also ensure that necessary enhancements are made to the services provided whenever there are changes sought either by the regulators or Government of India without any additional cost to the Bank.

K. Cloud Infrastructure:

Bidder should ensure that CSP should be a valid MeitY empanelled Cloud Service Provider or should be able to submit System Audit Report (SAR) for Data Localisation conducted by CERT-IN Empanelled Auditors for Cloud Service Provider with two data centre locations

1. The bidder must specify whether the solution is hosted in a single-tenancy or multi-tenancy model.
2. The bidder must ensure that robust data isolation / compartmentalization (for multi-tenant environments) and secure purging mechanisms are implemented which comply with the industry best practices and applicable regulatory and statutory requirements, including any updates throughout the contract period.
3. The platform should use Micro-services based architecture using kubernetes or equivalent orchestration for scalability. The solution must utilize Docker or equivalent technology to package microservices, ensuring the solution can be consistently deployed across various environments (development, testing, production). The bidder must provide detailed architecture diagrams of the proposed solution, showing how all components of the system will interact, including microservices, databases, integrations, and third-party services.
4. The CRM solution should support serverless computing options (e.g., AWS Lambda, Azure Functions, etc.), allowing the solution to scale dynamically in response to demand while reducing operational overhead. Platform should have ability to increase concurrent instances based on utilization threshold limit.
5. The CRM should be extensible for future integration with AI-driven chatbots, voice assistants, and other automation tools. The architecture should support easy integration with AI platforms for enhancing customer service through conversational interfaces and automated workflows.
6. The Bidder should host the Platform in High Availability mode, along with DR and a minimum uptime time of 99.90% per month.
7. The response time at server end should be always be less than 200 milli second. During the agreement period, if at any stage, it is found that the Platform provided by the Bidder is not able to give the requisite performance as per the sizing parameters (i.e., up time above 99.90% and response time < 1 seconds), the Bidder shall have to provide additional resources without any additional cost to the Bank.
8. The solution will be implemented in a phased manner with prioritization to Metro and Urban branches initially and then extended to other centres/ branches subsequently. All the modules should be fully functional. 40000 users should be supported by the solution.
9. The CRM Application and Data replication should happen from Primary site to DR site in real time to keep those in sync with a Recovery Time Objective (RTO) of 60 Minutes and near zero RPO (Recovery Point Objective).
10. Bidder to carry out Health Check-up on the application / infrastructure on regular basis (i.e. at least 6 months once) for ensuring that the system meets performance requirements as detailed in the RFP.

11. Bidder, its solution and Bidder's CSP must comply with bank's policies on cloud adoption, cyber security, information technology, information security, etc.,
 - RBI guidelines on Outsourcing of IT Services, Data Storage and handling, Information Technology Governance, Risk, Controls and Assurance Practices, etc.
 - India's IT act and amendments, Security and Data Protection regulations such as proposed Digital Personal Data Protection Bill, any India's statutory and regulatory requirements.
 - Any other IT security/data protection & privacy policies, guidelines, regulations etc issued by Bank, Regulators, Government of India from time to time during the contract period
12. The CSP must ensure that its information and cybersecurity capabilities are continuously updated and adapted to address emerging vulnerabilities and evolving threats, in compliance with industry best practices, regulatory requirements, and the Bank's policies.
13. Bidder should assess the compliance level of SaaS based application vis-à-vis guidelines stipulated by Bank / regulatory / statutory body, through a CERT-IN certified auditors and submit assessment report/ audit certificate to Bank on quarterly basis or as per Bank's requirements.
14. SaaS provider's application & related IT Infrastructure shall be subject to audit by Bank's internal/external auditor or its regulator as and when required at short notice.
15. Undertaking for Cloud and Certificate of Solution/Software being duly signed by OEM to be submitted as part of technical bid.
16. As and when Bank requests, bidders should provide the following certificates/proof from third party vendor/ bidder / CSP providers for their systems:
 - Regular VAPT, API Assessment, customized Source Code (related to Bank) audit certified by a CERT-IN empanelled auditor.
 - A Secure Software Development Lifecycle (Secure SDLC) must be followed by the bidder for all applications throughout their lifecycle, with a security assurance certificate provided accordingly.
 - All security controls of the CSP should be monitored/ audited by bidder/OEM and report of the same to be shared with the bank.
 - Regular Hardening of System preferably CIS Benchmark, System & Application Patching to latest release patches and security updates.
 - Adhering to NIST (especially 800-53) and CSF (Cyber Security Framework) standard best practices.
 - Monitoring CERT-IN released advisories and fixing applicable vulnerabilities.

- Certified for PCI DSS (For Applications wherever Card Data and Transactions are involved).
 - SOC-II and SOC-III Compliance.
 - Perform routine penetration tests and submit the reports to Bank for identifying security vulnerabilities present in the cloud infrastructure.
 - The CRM application should be OWASP and PCI-DSS complaint.
17. The cloud service to be availed by the bidder for Bank shall have the following latest certifications, in addition to MEITY accreditation or System Audit Report (SAR) for Data Localisation conducted by CERT-IN Empanelled Auditors for Cloud Service Provider
18. ISO 27001, ISO 22301 certification
- ISO 27017 (Cloud Security Management Certified)
 - ISO/IEC 27018 (Personal Data in Cloud Certified) or similar certification
 - ISO/IEC 27701 PIM (Privacy Information Management) certified or similar certification
 - ISMS (Information Security Management System)
 - ISAE (International Standard on Assurance Engagements) 3402.
 - Meet the Cloud Security Alliance Cloud Controls Matrix and compliance with CSA Star CCM.
 - RBI and Government of India guidelines and mandates on Cloud Computing GDPR compliance
 - CERT-In guidelines as and when they are released and become applicable
19. Cloud Service Provider's Data Centers should be audited by STQC (Standardisation Testing and Quality Certification) or auditors empanelled by STQC/CERT-In.
20. Bidder to submit a copy of all relevant certifications mandated in this section as part of technical bid.
21. The bidder must have a documented patch management practice in place, ensuring that security patches and upgrades are applied promptly to the product and cloud infrastructure. The bidder must provide a certificate of assurance to the Bank every quarter, confirming that the latest patches have been applied and the infrastructure is secure. Detail on N or N-1 patch status along with mechanism to revert / backup should be stated explicitly.
22. The proposed application must utilize https for secure communication, and the bidder will be responsible for the creation and ongoing maintenance of an SSL certification on the application server.

23. The Bidder /Bidder's CSP to ensure that baseline security configuration of Operating System, Database, Web Server etc. is in accordance with the industry best practices preferably CIS Based benchmark images.
24. The Bidder or Bidder's CSP must ensure the presence of Runtime Application Self-Protection (RASP) or an equivalent control, along with strong data security practices. Data must be encrypted at rest and in transit, using the strongest encryption standards, such as AES-256 for data at rest and TLS 1.2 or higher (preference on TLS 1.3) for data in transit. The CSP must support end-to-end encryption, ensuring data is protected during transmission. Encryption protocol should also be backward compatible. The Bidder must provide detailed information on how data is protected at each stage – in transit, in use, and at rest – specifying the encryption standards, versions, and ciphers used. Necessary encryption tool also to be provided by the bidder. Bidder to provide details on how data is protected in cloud environment at various layers (i.e. perimeter, host/endpoint, VPC/network, database)
25. Cryptographic Controls:
 - Hashing algorithms: SHA-256 or higher
 - HMAC algorithms: Any approved hash algorithm with a key length of no less than 128 bits.
 - Digital signature: RSA with a key length of no less than 2048 bits or ECC with a curve size of no less than P-256.
 - Symmetric encryption algorithms: AES with a key length of 256 bits (AES-256)
 - Public key encryption algorithms: RSA with a key length of no less than 2048 bits or ECC with a curve size of no less than P-256.
26. The request and response payload of the information exchanged must be fully encrypted using TLS, leveraging public-key cryptography for key exchange and secure communication
27. The CASB (Cloud Access Security Broker) security controls need to be enforced from cloud standpoint. In case the solution is not covered by CASB, the CSP should offer CWP (Cloud Workload Protection) compatibility and offer points engineering solution. Appropriate security controls/components from the cloud orchestration layer has to be made available by default as per Bank policy/Regulatory Guidelines at no additional cost to the Bank. Bidder to submit Security Architecture diagram to Bank as part of technical bid detailing all the security components.
28. The solution should be capable of intelligent placement for workloads on the cloud setup, so that the load gets distributed dynamically without any manual intervention and get efficient performance.
29. Bidder to regularly conduct and provide results of fault tolerance testing, scalability testing and load balancing testing, every quarter or as per Bank's requirements, validating that the solution is:

- able to recover seamlessly from failures
 - able to scale horizontally (adding resources) and vertically (enhancing existing resources) to handle peak load scenarios without performance degradation.
 - able to provide consistent performance even under high usage scenarios, such as during peak load periods (e.g., festive season banking).
30. Bidder to provide dedicated Leased line from two different service providers from CSP DC and DR sites to Bank DC and DR sites. Bidder to provide link up to Bank's DC and DR router including CPE (Customer Premises Equipment), cross connect, SFP and cable laydown.
 31. The link should be of minimum 500Mbps capacity. The successful bidder has to maintain link uptime in line with application uptime of 99.90%.
 32. At any point in time, during the contract period, utilization of link should not cross 70%. In case link is utilized more than 70%, bidder to upgrade the link and associated hardware at no additional cost to the Bank.
 33. The CRM should support WAN optimization techniques to improve the performance of the application over wide-area networks, particularly for remote branches and users with limited bandwidth. The CRM should seamlessly integrate with Software-Defined WAN (SD-WAN) solution of the Bank for optimized and secure connectivity
 34. between bank branches and application, ensuring efficient network resource utilization and failover mechanisms.
 35. The solution should include Quality of Service (QoS) prioritization features to ensure critical customer transactions and services are prioritized over less time-sensitive activities.
 36. All product upgrades should be implemented in DC/DR sites in the cloud without any additional cost to bank. CRM solution should be capable to auto-upgrade at Bank's discretion without affecting any functionality previously available in the application. Successful bidder will be responsible for restoration of all functionalities in case of malfunctioning during application upgradation with no additional cost to the bank.
 37. CSP should provide secure repository of the digital certificates etc.
 38. Bidder to ensure that data in CRM to be available all time for data export purpose.
 39. Bidder to support in deporting/exporting data from cloud due to regulatory/statutory mandates/ Bank's requirements at no additional cost to the bank. Also, Bidder has to specify the mechanism in technical bid document to make sure that the bank's data is erased properly post transition.
 40. **Responsibility Matrix:** The responsibilities of bidder are including but not limited to

S. No.	Activity
--------	----------

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

1	Cloud Services Configuration
2	Identity / Directory Services
3	Application Implementation, Customization & Maintenance
4	Network Controls
5	Regulatory / Statutory Compliances and Certifications
6	Data Portability
7	Cloud Security and Privacy
8	Documentation for proposed solutions and Cloud infrastructure
9	SLA report generation and submission
10	SLA dispute identification and resolution

41. Bidder is responsible for complying with all RFP terms. Bidder to engage OEM and CSP, wherever applicable, for undertaking activities detailed above, without affecting SLA timelines.

42. The Bidder must ensure that the solutions listed below are provided and meets the minimum security standards specified. However, during the contract period, if enhanced security levels or additional solutions are required, due to changes in regulatory, statutory, or Bank policies, the Bidder shall upgrade and implement the necessary security measures at no additional cost to the Bank

Sl. No.	Security Solution	
1	WAF	Web Application Firewall
2	SIEM	Security Information and event management
3	DAM	Database Activity Monitoring
4	Antivirus Solution & EDR/XDR	
5	PIM (Privileged Identity Management)	
	Data Discovery and Classification of Data in Cloud (to enable Bank to classify the data) This service to create a catalogue of data and assign classification based on the data sensitivity This service to continuously monitor the usage and access patterns of data.	
7	DLP (Data Loss Prevention) The DLP should be able to understand the Data Classification and monitor accordingly (e.g PII and PCI Data)	

8	Host Intrusion Prevention System (HIPS)
9	File integrity monitoring (FIM)
10	API Gateway in case of SaaS hosting APIs for consumption for the Bank

43. Encryption keys which are used for encryption in cloud should support BYOK (Bring Your Own Keys) and use along with KMS (Key management Service). The solution should integrate with Bank's Hardware Security Module (HSM) for secure key management, ensuring that encryption keys are generated, stored, and accessed securely.
44. The encryption keys to be exchanged over a secure channel and the keys must be properly secured using KMS and be accessible to the appropriate application/services on a need to know basis using properly defined IAM (Identity & Access Management) Policies.
45. Ensure encryption key is not hardcoded and are obfuscated to avoid misuse of the same by an adversary having access to code.
46. Ensure the regular rotation of encryption keys and certificates.
47. IAM controls, roles, IAM groups to be configured for all the resources, users etc. based on principle of least privilege and are regularly reviewed. Solution should provide single sign-on capability with ability to validate users with Bank's on-premises Active Directory (AD) with 2FA (Biometric/ OTP based 2FA/Authenticator App based 2FA) Option should rest with the bank to enable/disable the feature as and when required. Bidder/ CSP to submit solution integration document for AD integration.
48. For administration purposes, privileged accounts, user login and for any critical actions ensure MFA is in place as an additional layer of security of the IAM users and roles.
49. Zero Trust security model approach to be ensured.
50. Monitoring and Incident Response
 - a. Bidder to ensure continuous monitoring of application and security audit, events, access to critical data and/or processes, or audit trail generated by SaaS application. Continuous monitoring mechanism shall be put in place to evaluate the operations of the Cloud Services subscribed and implementation & effectiveness of security controls in the Cloud Computing environment.
 - b. Bidder to Implement automated monitoring tools and systems to track the platform's health, uptime, and response times. Bank's Team also to be given login for dashboard access for checking of the audit logs and security events if required.

- c. Bidder to regularly evaluate the application's performance against benchmarks outlined in the RFP/SLA.
- d. Bidder /Bidder's CSP to enable detailed logging and auditing of user, process activities & other activities in all resources including when and how data is accessed, privileged accounts, SaaS Administrators, administration actions and authorization logs which may indicate sensitive or privileged actions, to help detect and respond to security incidents.
- e. Audit trail should be available for all activities, including failed attempts and unsuccessful authentication/ authorization attempts. Audit trails should be made available to the Bank for forensics purpose as and when requested.
- f. In case of any breach Bidder/Service provider should notify bank and regulators immediately and provide RCA and take appropriate action, remediate, cooperate for Incident Management and help in legal discovery and government intervention.
- g. Bidder to establish a mechanism for detecting and responding to incidents or anomalies. The CRM solution should incorporate advanced threat detection & analysis and security monitoring tools, such as real-time anomaly detection, automated intrusion detection, and automated response mechanisms, to mitigate risks associated with cyber threats.
- h. The alerts from CRM Application should be able to integrate with Bank's incident response process by automatically ingesting the alerts/logs offloaded to the Bank's SIEM or IDS solutions.

51. Contracts and Continuity

- a. Bidder to support in deporting/export of data from cloud to on-premises or cloud to cloud migration on termination of contract at no additional cost to the bank. Bidder to handover entire Bank's CRM data along with data dictionary as per Bank's requirements, at the time of deporting data from cloud.
- b. Bidder to ensure secure purge of Bank's data stored on cloud including backups and residual data/metadata (e.g., system logs, audit logs, access logs, search indices) and written confirmation of successful deletion to be submitted by Cloud Service Provider within 15 days from termination of contract.
- c. The CSP should provide access to their IT infrastructure as and when required for audit from security perspective which may also include visits at short notice to ensure Bank's data are not misused and to review IT controls of Cloud Service Provider.

Third parties/partners/Bidder/CSP should also conduct background check, regular security assessments, audits on their suppliers, vendors and other third-party partners as well as employees (third-party risk management program).

52. User Acceptance Test of Software

- a. The Bank shall conduct User Acceptance Test (UAT) for the Customer Relationship Management Platform to ensure that all the functional requirements are available & functioning as per the Bank's requirement as described inter alia in this RFP and the successful bidder shall support the Bank in the UAT process.
- b. The Successful Bidder will be responsible for conducting system integration testing to verify that all system elements have been properly integrated, and that the system performs all its functions.
- c. Successful Bidder will be responsible for setting and maintaining the test environment during the entire period of project implementation and will ensure its configuration and parameterization for conducting the UAT as per bank's policies and in compliance with this RFP's requirements.
- d. The Successful Bidder will provide the scenarios for UAT and assist in preparing test cases including the test data to support all the Business scenarios. The Successful Bidder should dedicate resources (from Successful Bidder's as well as the OEM's team) to work with the Bank's project team for this purpose.
- e. The Successful Bidder shall assist the Bank in analyzing / comparing the results of testing.
- f. Successful Bidder shall provide adequate resources for troubleshooting during the entire UAT process of the Bank.
- g. The Successful Bidder shall be responsible for maintaining appropriate program change control and version control of the system as well as documentation of UAT and change of configuration and parameterization after making changes in the system.
- h. All errors, bugs identified, enhancements/ modifications required during and after testing will be resolved within the overall timelines for implementation. Sign-off for the same will be obtained from the Bank prior to implementing the work-around, in respect of errors and bugs affecting the functioning of the Bank.
- i. The Successful Bidder will be responsible for using appropriate tools for logging, managing, resolving and tracking issues and its progress, arising out of testing and ensuring that all issues are addressed in a timely manner to the satisfaction of the Bank and as per requirements mentioned in this RFP.
- j. The Bank will accept the developed / customized software only after implementation of the software with successful conduct of acceptance testing by its users, including load and performance test. Software will be considered to be accepted only after the Bank issues an acceptance letter to the successful bidder.
- k. The solution may be audited for risk analysis and security features by the Bank's IS Audit team or a third party appointed by the Bank, if so desired by the Bank. Support is to be provided for fixing such findings.

53. Customization of the Software

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

- On awarding the contract, the successful bidder should discuss with core users of the Bank to understand the functioning of the existing system and gap analysis. The successful bidder shall prepare a customization document based on the gap analysis and other requirements of the RFP. The successful bidder shall undertake to obtain Bank's approval of the customization documentation and associated project plans before software customization work commences. The customization document should provide the plan in detail, based on the criticality of the requirements

54. Onsite Resources

The selected bidder should provide onsite resources for undertaking activities on 24x7x365 basis during contract period post go-live. However, charges for resources will be paid from the date of acceptance of the solution of the Bank. However, selected bidder has to ensure that onsite resource should be part of the project implementation team. The cost agreed upon for the resource will be frozen during the contract period.

Onsite resources deployed by the successful bidder will be required to work from Bank. All expenses (travelling/lodging, etc.) shall be borne by the successful bidder.

Bank has the discretion to reduce/ terminate the onsite support as per the requirement with three-month notice period. At the banks' request, the successful bidder is bound to increase the onsite support resource at the cost specified in the price breakup. Bank has the right to interview and reject resources deployed by the Bidder.

Onsite resource to be available on all days (including holidays). In case the resources go on leave/absent, replacements having equivalent or more experience and qualification has to be arranged by the selected bidder to ensure that regular functioning of the solution is not hampered. Bank reserves the right to claim change in resource based on the performance of the resources.

In case, if any of the required onsite technical support engineer(s) is/are not available in office on any particular day / shift, the Bank will be deducting the cost of those resources for the period of their absence.

On request from the Bank, the bidder need to adequately ramp up the onsite support team in order to support the additional journeys / use cases / modules / solutions so developed for the bank. The Bidder needs to bring its own version control tool.

The Support should be for an unlimited number of incidents reported to them and provides a practical solution to resolve the issue. All escalations will be attended / responded-promptly not later than 30 minutes of reporting.

The onsite resource will also be responsible for complete day-to-day activities such as end to end management including attending complaints, incident, security threat, signature updates, daily updates, product related issues, any other issues etc., to the Bank as per SOW/SLA at no extra cost during contract period. Support should include advising & helping the Bank in implementing controls for the risk advised by regulators/Govt. of India.

If the issue requires OEMs technical person's/ product developer's etc., intervention, the selected bidder should take up suitably with the appropriate level at OEM and obtain the solution and implement it for resolution of the issue at no additional cost to be the Bank.

If the analysis of the issue requires log submission, the selected bidder should submit the same for further analysis in consultation with the Bank. However, penalty shall be applicable as per uptime clause.

The on-site support engineers deployed should be conversant with the operations of the proposed platform.

55. Documentation

Detailed documentation (functional and technical) shall be provided to the bank on all the implementation and customization done. Documentation and data dictionary shall be updated and provided to bank after every customization.

The following minimum documentation (hard copy and soft copy) on any proposed software components must be made available in English:

- a) Detailed project plan
- b) Software Requirement Specification document (SRS) and other design documents
- c) Documentation of technical requirements
- d) Documentation of architecture requirements
- e) Mapping of Functionality and specifications document
- f) Development of low level and high-level design documents
- g) Documentation of testing plan, test cases, test scenarios, test scripts, gaps, bugs, fixes, etc. as a part of quality assurance
- h) All documentation including technical, operations, like release notes, license terms, user manuals, training manual, technical manual, standard operating procedures, solution architecture and design, system flow document, data dictionary and other necessary documents etc.
- i) Error tracking and defect resolution documentation process
- j) Statement of Work (SOW), Quality Plan, Test Plan, Requirement traceability Matrix, Design Document, Report Design, Delivery Notes documents, etc.
- k) System configuration documents
- l) System/debugging/diagnostics documents
- m) The Bidder shall also provide the MIS reports as per requirements of the Bank. Any level/ version changes and/or clarification or corrections or modifications in the above-mentioned documentation should be supplied by the bidder to the Bank, free of cost in timely manner.

56. Installation, Maintenance and Support

- a) The solution has to be installed and customized as per bank's requirement by the bidder for the proposed Customer Relationship Management Platform only.
- b) The successful bidder shall
 - Be responsible for studying of existing source systems, data mapping, integration with the Core Banking Solution/ Middleware, other external systems provided under scope of work, maintenance, support and overall management of the project.
 - Supply, install, configure, test, integrate & commission all the necessary software modules with necessary and adequate customization, modification, patches, upgrades, utilities, tools etc., and maintain the CRM Platform to achieve full functionality as specified in the functional requirements.
 - Seamless integration of supplied, customized, developed Customer Relationship Management Platform for Bank to meet the Bank's Functional and Regulatory requirements.
 - On-Site maintenance of Customer Relationship Management Platform and related products with customization, change management, addition of new reports as required and desired by the Bank. Performance tuning of application, necessary and adequate patches, upgrades etc after successful GO-LIVE of phase wise MVP of Customer Relationship Management Platform, inclusive of providing support for day to day functional and technical support to the Bank's team.
 - The test activities should be carried out and vendor should submit all the test reports to the Bank authorities for vetting and approval.
 - To provide complete training on the entire solution with all its components.
 - Maintaining history of all additions, modifications, deletions and parameter changes etc. as Audit Trails and regular reports on the same for inspection and audit.
 - Providing application maintenance for error fix, patch management, upgradation, additions / modifications in the application to cater changes to data sources and/or new reporting requirements.
- c) The successful bidder should study the requirements of the bank including customization and provide a BRD (Business Requirement Document) and Systems Requirement Study (SRS) report to the bank.
- d) The successful bidder has to migrate complete data from existing data sources to the proposed solution.

- e) Bidder will be required to provide root cause analysis for all performance and availability problems that occur. Formal root cause analysis to be delivered within 48 hours of problem occurrence, including:
 - a. Explanation of the root cause
 - b. Actions taken to resolve the problem
 - c. Action plan to prevent recurrence, with project plan/tasks required and timing for each major milestone of the correction effort, and identification of Bank's responsibilities in the correction process.
- f) Undertake and assist the bank officials for the following Access Control activities (indicative):
 - a. User account Creation/ deletion as per access policy of the organization
 - b. Creating/ modifying/ deleting groups
 - c. Administering user rights, roles and passwords of all the relevant subsystems.
 - d. Maintaining data access security etc.
 - e. Regular submission of various reports for all activities undertaken at periodicities, formats and activities etc. as decided by and at the discretion of Bank.
- g) All installation and configuration reports, documents, diagrams etc., are to be supplied before commissioning.
- h) Compliance to Bank's policies like IT policy, Information Security policy, etc.
- i) All professional services of the vendor required for complete installation, commissioning and maintenance shall be included in the scope of work.
- j) Solution must integrate with the Bank's existing network and security solutions.
- k) The bidder should assist bank in making the solution fault resistant i.e. during the event of any failure (software /hardware /network /etc.), the solution should continue to function seamlessly and no transactions should be lost.
- l) Notify about all the detected software errors, it's impact and correct them in the shortest possible time.
 - The Customer Relationship Management Platform service must be conducted in a manner not compromising the security and integrity of Bank's data.
 - Alerting bank in case of any performance issues
 - Resolution of the issues as per the Service Response and Resolution time for the onsite support services mentioned in this document.
 - The major responsibilities as specified above are indicative only and are not exhaustive in any manner.

57. Functional and Technical Requirements

Note:	
a)	The specifications of proposed CRM system / solution are detailed below. These specifications are only indicative but not exhaustive.
b)	If the bidder feels that certain features offered are superior to what has been specified by the Bank, it shall be highlighted separately. Information regarding any modification required in the proposed solution to meet the intent of the specifications and state-of-the-art technology shall be provided. However, the Bank reserves the right to adopt the modifications /superior features suggested/ offered.
c)	The bidder shall provide all other required equipment's and/or services, whether or not explicitly mentioned in this GeM bid, to ensure the intent of specification, completeness, operability, maintainability and upgradability.
d)	The bidder shall own the responsibility to demonstrate that the solution offered are as per the specification/performance stipulated in this GeM bid and as committed by the bidder either at site or in bidder's work site without any extra cost to the Bank.

Must-pass (disqualifiers)

The bidder must need to comply all the below mentioned points.

#	Technical and Functional Requirements	Response (Confirmed & Understood)
A.	Transformation Outcomes & Minimal Clicks	
1	Vendor must perform process redesign (not just implement). Identify top 50 journeys and deliver minimal-click fulfilment. Measure impact on TAT, FCR, customer effort proxy, adoption, cross-sell	
2	Instrumentation for journey steps/clicks/time-in-stage; ability to export metrics to analytics.	
B	Headless + Loosely Coupled Architecture	
1	Capabilities must be consumable by bank apps/portals via APIs no functionality locked only to CRM UI.	

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

2	API-first + event-first; bank gateway/event bus standards; API versioning/backward compatibility idempotency, throttling; no mandatory proprietary middleware.	
C	BYO Analytics + BYO Agentic AI	
1	CRM must support bank's CoE for analytics and agentic use cases summarize, suggest next action, draft replies with human approval and audit	
2	Event feeds + batch extracts secure action APIs AI action logs (who/what/when/why/approval); model/tool agnostic integration.	
D	Observability, Security, DR, TCO	
1	Ops dashboards and audit evidence must be available to business and audit teams.	
2	Correlation IDs, tracing, monitoring, retry/replay, DLQ; SSO, RBAC/ABAC, field-level security, encryption DR (RPO/RTO, drills) portability/exit exports config-first to reduce TCO.	

The bidder should provide their response to the Technical and Functional Requirements by giving the compliance level as explained below. The Response Column is to be mandatorily responded to by the Bidder, for each requirement.

Response: The Bidder is to state in this column that the requirement is 'Confirmed and Understood' i.e. the service will be delivered.

Compliance	Description	Marks
A	Already Available FULLY in the product.	2
B	Customizable	1.5

I. Functional and Technical Requirements (Bidder needs to score at least 75 % marks in technical and functional compliance):

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

The detailed Functional and technical requirement with marking scheme for each of the feature is as follows:

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
<u>A.</u>	<u>Complaint Management</u>		
1	Ability to create Service request /Complaint/Raise query for Customers as well as Non-Customers through website, Contact centre, ODR- Internet banking, BOBworld, BC portal, Social media platform, SMS Banking Chatbot, Whatsapp banking, ATM Kiosk etc from various sources, Provisions should be provided to Staff, BC agents, NRI customers apart from customers and Non-customers.		
2	CRM should be able to handle Customer Complaints/ Service requests query including its entire journey i.e. Creation, processing/Resolution, Rejection, Escalation to PNO/IO, Closure in case of complaints/SR's/Query etc.		
3	CRM is to be integrated with Bank's different channels for creation of Complaint/ Service requests/query etc. This will enable Customers to lodge Complaint / service requests/query through Bank's different channels i.e. Website, Debit Card Redressal System (DCRS), Internet Banking, BOB world, Branch, Social Media, Contact Centre, INGRAM, CPGRAM , JANSURAKSHA and various regulatory and Ministry portals etc.		
4	Ability to configure Service Request /Complaints/Query Lifecycle/Workflow.		
5	De-duplication check on Service Request/Complaint/query based on		

	Category or any other fields present in the UI screen.		
6	The solution should be capable to generate Universal ID for each complaint /SR and identify and remove any duplicate complaints generated through various channels such as branch, contact centre, Internet banking mobile banking, website etc		
7	SMS/Email notification should go to the users and customers informing creation/status change/closure of complaints/SR.		
8	Creation of complaint from Email & SMS by identifying the keywords and sender's registered email id/ registered mobile number.		
9	The solution should be able to identify the sender based on the registered email id/ mobile number and link the complaint to the existing customer.		
10	The solution should be able to publish API for Complaint management into web service which shall be used by other systems i.e Bank's internal and third party systems like INGRAM, CPGRAM etc. to push information and create Complaints in the system.		
11	Complaint /Service requests shall be automatically assigned (based on some rules/matrix which should be configurable). Post auto-assignment, the solution should be able to notify the owner by way of email and in the notification centre i.e SMS.		
12	The solution should be able to prioritize certain type of complaints/SR's based on some rules (which should be configurable).		

13	Complaints received from the High visibility channels/VVIPs such as CPGRAM, INGRAM, RBI, MOF and complaints received through email to Managing Director & CEO may be categorized as “High Priority”. These Complaints to be shown separately as “High Priority Complaints” on Dashboard for better monitoring. Based on the priority of the complaint, it should appear in the pending list of complaints, i.e. the highest priority complaints will appear on the top followed by others based on priority.		
14	The solution should be capable to process and effectively manages to resolve customer complaints by registration across various channels like email, website, Internet banking, BOBworld, Contact centre, Branch, chatbot, SMS Banking, Whatsapp banking, social media etc.		
15	There shall be various stages/status of complaint which will be changed during the course of Complaint processing/SR's.		
16	SMS/Email notification should go to the users informing the status change/closure of complaints/SR's.		
17.	Every type of complaint /SR's should have expected TAT for its closure which the system should display.		
18.	If a complaint is lying in a one stage/status for a defined time and is crossing the TAT for the complaint stage, then it should be automatically escalated & notified to next level based on some rules/matrix which should be configurable.		
19.	Escalation of Rejected and partially rejected complaints to Internal Ombudsman through PNO user with certain predefined rule so that such complaints can be closed only after IO		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

	remarks. The IO can agree and disagree with the rejected Partially Rejected cases and system should have method to implement IO suggestions.		
20.	Assignment of fraud cases to different resolver groups once the investigation is completed by respective HO Division for raising chargeback and closure of complaint .		
21.	The complaints shall be manually or automatically closed in CRM by the respective owner after the respective procedures		
22.	Ability of configuring Holiday Master in Complaint Module for considering the TAT for complaint.		
23.	Ability to generate dynamic reports on service request/Complaints/query & option to export the result set into different formats like excel, pdf etc.		
24.	Maker/Checker functionality in Service Request Processing and query/complaint module.		
25.	Bounced Grievances: are the Grievances which are bounced by the Resolver Group to initiator for requirement of additional details related to Grievance. There should be option available for the Resolver groups.		
26.	Reopening of Grievance: There should be option for the Complainant can re-open his grievance within 15 days from the date of last resolution, maximum of 2 times in its cycle as per our Bank's Grievance Redressal Policy.		
27.	Forwarding Grievances: Bulk Forwarding Option and Single forward should be available for Departments to forward large		

	number of grievances to other resolver group. The same shall be used judiciously. There should be option provided to the resolver groups.		
28.	Auto-Quality Check Resolution of complaints option should be available.		
29.	There should be option for the Resolver to be provided for Interim Resolutions which will be displayed to the customer.		
30.	Ability to send reminder or notification if a case has breached the TAT or any other case.		
31.	The system allows to take down multiple requests for a single customer without re-entering profile data of the customer		
32.	CRM HO user to be given existing functionality for change of Category/ sub categories and “Assigned to verticals/ Department” as per requirement for both Complaint types.		
33.	System have provision to restrict users (depending on user role, processing status, current owner) in editing the complaint data. Depending on the status flag,update option should be available to the appropriate users.		
34.	Dynamic Reporting and Dashboards for Performance assessment and Ranking of Regions/Zones/Branches in Grievance Redressal.		
35.	Various reports to be designed dynamically as per requirement of the Bank and other regulatory guidelines. Monthly, quarterly, Yearly report on complaint as required in Bank/ regulatory format		

36.	Solution should have the functionality of uploading support documents/evidences based upon which the Bank is deciding on the complaint as Decision of IO is based upon the record placed and / or documents required by IO.		
37.	System automatically flags service requests and complaint if already escalated to allow supervisors to see how many were actioned within SLA /TAT .		
38.	Bulk closure, Bulk forwarding, Bulk Resolution option to be provided to resolver groups.		
39.	Solution should have functionality of Integration of CRM with other servers for fetching required evidences/Documents should be there.		
Social Media Complaints			
40.	In case of Social media complaints- Ability to add/integrate custom sources for campaign impressions/source tracking using API's/UTM codes etc.		
41	Analytics: Ability to track and analyze customer interactions, response time, agent performance to improve overall social media response management.		
42	Reporting: Ability to provide platform wise report through real time dashboard, graphics etc. with contents such as tweets and replies, data and count, Complainant Name, Complainant No., Account No. (If applicable), Complainant Profile link, Complaint Type, Complaint Platform, First Time Resolution %, Avg. daily mentions, Top mention/Tweet/Post, Impressions/Click, Website,Engagement, Avg. Likes/Retweets, Demographics segregation of Complaints,		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model



	Compliments, Unsolicited tweets count, Page/Media views, Conversion Tracking, Social Media Campaign Performance, Social Media Leads Classification and Generation, Employee Tweets, Competitor Analysis etc.		
43	Reporting – Ability to Gather data from various social media channels, web/app news platform and other digital platforms. Tool used must not have any limitations on collection of mentions/keywords data.		
44	Ability to Identify and reach out to key bloggers and influencers.		
45	Periodical reports regarding latest trends/technologies in social media available at bank's disposal for increasing the engagement or suggest the bank to buy /subscribe.		
46	It should also suggest appropriate strategies according to the responses to enhance the bank image and goodwill among public.		
47	Collate/analyze social media, digital marketing trend, theme and rankings of peer's/market standards to identify new insights on real time basis.		
48	Ability to view translation of the comment in vernacular languages other than English or Hindi.		
49	Ability to prioritize posts based on various hashtags/keywords as recommended by bank's social media team.		
50	Ability to capture image mentions across Digital and Social Media.		
51	Ability to publish content/posts on Bank's Social platforms.		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

52	Collaboration tool: Ability for multiple agents to collaborate and resolve customer inquiries together.		
53	Guided resolution (macros/checklists/quick actions) for top complaint types interim resolutions visible to customer regulatory evidence pack export out-of-band change handling		
54	Headless case APIs + milestone events; observability for channel/regulatory integrations incl. DLQ/replay structured classification (root cause/resolution codes).		
55	Customer identity resolution (handle → customer/prospect mapping) with consent governed response templates/approvals for sensitive cases; collaboration workflow.		
56	Social ingestion APIs event publishing for social-to-case.		

S.No	Technical and Functional Requirements	Compliance-A/B	Remarks
B.	Marketing Automation & Journeys and Campaign Management		
1	Segmentation and targeting of customer groups: CRM software should be able to segment customers into groups according to a wide range of characteristics, such as demographics (e.g., age, geographic location, job role, industry, company size) and activities (e.g., recent and past purchases, email response rates, social media activity, personal preferences). The information derived should enable us to create a very defined customer profiles and then personalize their marketing messages to target very specific groups of customers. Marketers can also create targeted business-to-business email marketing		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model



	campaigns, which can increase subscriber numbers, email marketing metrics.		
2	Creation of personalized content: CRM software should provide ability to customize communications to each person contacted. People dislike impersonal marketing messages that begin with generic introductions like "Dear customer." CRM software should create communications that address potential and current customers by name. CRM can also include the customer's position and company to truly tailor the message and grab their attention. Having other information about the customer, such as their purchasing history and preferences, as well as notes on previous communications, allows to craft a message tailored to each customer. For example, It could discuss ideas and opportunities, provide useful and helpful information, and guide the conversation to suit a specific customer. This level of personalized content results in increased response rates, more positive brand perception.		
3	Ability to create targeted marketing campaign by segmenting the audience (based on demographics, product interest, and so on) as well as designing messages and offers for each group.		
4	Ability to execute campaigns in Email/SMS/Social Media Channels etc.		
5	Ability to integrate with Social Media Platforms like Facebook, LinkedIn, Instagram, Twitter etc.,		
6	Ability to link campaigns with products		
7	Ability to define campaign financials and measure ROI		



8	Ability to organize a quick campaign by searching customers in CRM or add customer database.		
9	Ability to integrate with bank's existing IVR Solution to run an Outbound Call campaign from CRM. And marking the campaign response in real time mode .		
10	Ability to capture the campaign reach and spread. Ability to track campaign response from the users using a variety of metrics – such as count of e-mail pushed, delivered count, mail opened /attachment opened count, responded count, lead generated etc. Track leads and contacts and tie them to a campaign source, and also tie every source to a campaign dollar		
11	The ability to clone campaigns, recycle campaigns, templates, forms, and other marketing materials for new customers and markets to save cost and efforts.		
12	Ability to convert the campaign response to Lead manually as well as automatically		
13	Campaign level report indicating the KPI's goals and targets reached to be shared via daily automated report/weekly/monthly/quarterly/ annual plan.		
14	Reports of leads generated by social media campaigns		
15	Complete track of all campaigns and submit the post evaluation for each campaign.		
16	Integrated campaign Management: A single place to effectively plan marketing spend, manage all initiatives and campaigns, and analyze performance and results.		



17	Integrated Segmentation Wizard: Application should have the ability to easily add contacts and leads to campaign lists right from within campaigns.		
18	Real-time Marketing Reports and Analytics: Application should provide standard and custom configurable reports and dashboards with graphical presentation on the real time basis. Ex. Performance Analysis of the Campaign, after closure of CAMPAIGN. Analysis on leads generated, Conversion count, conversion %, Achievement in value Terms (based on product) growth from base to the Current date of Analysis etc.		
19	Ability to configure dashboards based on any combination of data set in Campaign Object like campaign activity status, campaign financials, channel effectiveness, and the response trends.		
20	Ability to measure campaign profitability(Branch Wise/Region Wise/Product Wise etc.)		
21	Ability of rescheduling the campaign activity such as mail/SMS, at frequent intervals based on response from campaign execution. E.g. SMS Campaign sent to 50000 customers, out of which 5000 customers positively responded, SMS not delivered to 2500 DND Customers. 2nd level SMS to be scheduled to 42500 baring interested and DND customers.		
22	Ability to provide Standard Campaign Reports for different stages as well as to ability to generate reports by privileged CRM users directly from application GUI based on dynamics search condition.		
Budgeting			



23	Ability to capture Budgeting & Costing part of a Campaign Execution.		
24	Ability to assign sub-budgets for each campaign activity		
25	Ability to add up the sub-budgets of a campaign to identify the total budget allocated for that campaign		
26	Ability to re-budget a campaign by simply changing the link between the campaign and the defined budget		
27	Ability to define expenses for each campaign and associate them with a budget.		
28	Ability to convert a campaign response into a lead or an opportunity with the name of channel as well		
29	Ability to keep a history of campaign responses created for a particular customer and display the history in the newly created campaign response of the customer		
30	Ability to maintain and show the status of all campaigns		
31	Ability to upload customer lists (excel) and prospect lists for Target Marketing List management		
32	Ability to do customer profiling on the key areas such as (products, insurance, credit Card) and then based on customer profiling the engagement approach for each customer can be worked out		
33	Ability for a sales manager, zone manager, or a team manager to monitor activity closure status		



34	Ability to create a central repository to maintain sales information which will act as a Sales Literature in CRM		
35	Plan and manage Marketing Budgets for initiatives		
36	Track costs and expenses incurred as part of Campaigns		
37	Ability to have a main campaign report to compare the performance of different campaigns in terms of sales turnover		
38	Consent & preference mgmt with audit; campaign/content maker-checker + versioning suppression rules attribution standards.		
39	BYO analytics: ingest segments/scores from bank publish response/engagement events headless campaign APIs UTM/event attribution ingestion.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
C.	Service Management with Customer 360°		
1	Consolidated Single Snapshot View to see all the customer relationship by fetching data about the customer from across the platforms such as CBS, Other Allied Systems, MIS/ Data Warehouse/BDL, IVR, email, SMS gateway etc.		
2	Capability to display On Demand data by integrating with other solutions like CBS, SharePoint, intranet site, & Chat Bot etc. via API integration /Middleware/Connect 24.		



3	A single view of complete relationship of the customer/ prospect with the bank with the ability to drill down into the dashboard details. This view should include the following: a) Customer-to-customer relationships: List of related customers (e.g. joint, minor accounts, business accounts, etc.) with ability to view profiles/ portfolios details. b) Customer's portfolio: List of products owned by the customer including (accounts, finances/loans, cards, deposits, investments, etc.). c) Ability to view product details such as (Lien balance, Balance enquiry, Mini Statement, last transactions, payment dates, account statements, interest certificate etc..in downloadable and printed format). d) Cross Sell Indicator: List of products and offers the customer is eligible for based on pre-configured rules e) Customer marketing preferences in terms of SMS, e-mail or any other channel f) Customer anniversaries, and other important dates g) List of Leads (Cross-sell & references) h) List of initiated service requests by the customer with related details and status i) List of pending cases including complaints, inquiries, grievances, Leads etc. with details and respective status j) Status of pending requests/Complaints/Delivery of deliverables for last 3 months or any date range selected by user		
---	---	--	--



	k) Schedule an Appointment with the customer, Alert generation to specific user on the scheduled date and time l) Alert generation on Balance below QAB/MAB, Cheques returned for last 3m or so, KYC Document Expiry Date, Re-KYC due etc. m) Status of Existing Digital Onboarding, WMS and Govt. Business relationship etc. n) To view SMS triggered to customer with Status (Delivered/Failed etc.) during last 1/3/period selected by user. o) Alert generation to user on Credit Limit Expiry, Non Fund Based facilities (BG/LC etc) due to renewal, Expiry in next 3 months etc. (p) Profile (Name, demography, Address, KYC details etc.) (q) (s) Third Party Products and Government Business Schemes (Insurance, Mutual Fund, DEMAT , PMJJY,PMJDY, APY, SSA etc. (t) Cards details like how many cards, debit/credit, closure/ renewal, Pin change options, willingness of new card etc. (u) Channel Services (Net Banking, Mobile Banking,UPI etc.). (v) Customer's channels subscription status (e.g.UPI, Internet Banking, BOBworld, IVR, Omni channels, etc.) . (w) CRM solution should also have the ability to identify the customers and their relationship with others customers in a single click.		
4	Capability to drill down the customer details from 360 View to detailed view screens.		



5	Ability to capture and view Notes/Input/Interactions about the customer		
6	Ability to define Static business rules for presenting cross-sell / up-sell suggestions		
7	Auto-determine Customer Engagement Score based on recent customer interactions with Bank		
8	Display of consolidated account holding value/investment/liability of customer and display it in charts or other graphical formats as per bank's requirement in Customer 360 screen.		
9	Data Capture and Display all customer interactions irrespective of channels of communication (Leads, service request, Complaints, Chat, campaign targeted) in 360 view itself .		
10	Ability to customize the 360 view based on user preferences, department and security access rules		
11	Capability to configure Cross Sell/Upsell option in Customer 360 screen based on logic set by Bank to show as Alert or Pop UP or for push notification /Campaign Activity/ KYC pending etc.		
12	Search Option/Filter options from the Customer Database using any of the customer data field (Advanced Find) & ability to export the result set to different formats like excel, pdf etc.		
13	Capability to show alert/notification as Pop Up on Customer 360 screen for each contact/customer (in 360 View) For any digital journey drop off.		



14	Provision to maintain Customer Segment information with colour coding or categorisation viz. Diamond/Gold/silver or BSBD or non-profitable customer etc which shall be refreshed using the daily data feed to be fetched from CBS.		
15	Capability to generate Customer Profitability Index for each Customer in Customer Database.		
16	Capability to integrate Interactive voice response blast services		
17	Provision for digital KYC Compliance with option to upload the necessary OVD document and capture KYC fields by CRM Users and perform validation based on the document type with maker checker provision.		
18	Audit Trail of Contact Information in Customer 360 which shall be configurable on field wise manner.		
19	Bank should be able to use the Meta data to inform engagement strategies, customer journey steps, communications etc. A Customer 360 view should enable organization to derive value, achieve sustainable competitive advantage, and maximize new customer acquisition opportunities whether in-store or online.		
20	The bidder should provide videos/ documents/ tech support/ chat-bot among others to guide the customers to use & interact with CRM.		
21	Improve the quality of data that feeds data analytics and machine learning initiatives, making downstream decisions more precise.		

22	Ability to have a proper Feedback Mechanism for customers and internal stakeholder. Customer feedback report on customer experience, suggestion for further improvement etc. Feedback management should be integrated with the bank's existing systems on branch-level/administrative level to improve customer experience. The bidder should be able to provide the 360-degree customer feedback mechanism to the customer at the various levels. The system should provide multiple channel to receive the feedback from the customer such as QR code, tickets, SMS, emails, telephone etc. The system should also be customized as per the requirement of the bank.		
23	CRM should be able to identify service requests /complaints made by the same customer for any issue even after complaining through different channels. These are to be categorized as escalations of the same case and further De-duplication check on Service Request.		
24	Bidder has to provide detailed Customer Assessment review and recommendations for mobile/ web platform and submit report with recommendations and suggested solutions. The report will cover the following items such as Performance insights, Community feedback, Customer view, Competitive Benchmarking, User Interactions Impact analysis, New User Acquisition, Login Experience, Feature experience, Ease of use, Wireframe analysis, New feature Ideas, Improving UI Accessibility, Improving user adoption through UX etc.		

25	Bidder should extract/load Data from all Source systems to a custom dashboard as per the requirement of our bank in the portal for the bank, the dashboard developed is not limited to: The admin module/dashboard of the solution provided to the bank should have real-time analytics on various metrics like Stage wise applications, TAT (within, outside the bounds, escalated, etc.), product wise, loan quantum wise, risk profile wise, STP/non STP, Customer Life Time Value Calculation etc. The reports thus generated should be downloadable / exportable.		
26	The system should have capability to interface with Bank's existing analytics/MIS/ DATA WAREHOUSE /BDL platform for seamless flow of data.		
27	Plugin/Interface to integrate with Social Media Platforms (Facebook, Twitter, Instagram etc.) from Customer 360.		
28	The system should have the capability of deduplication of leads received in the system from all sources. The logic to be defined in co-ordination with the Bank team.		
29	System to capture various service requests for Cheque book, debit card, internet banking ,UPI, BOB world, Balance enquiry, Lien balance, Quarterly and Monthly balance,Account statement, Ministatement, Interest certificate, in downloadable and printable format and also to keep track of these deliverables in the CRM even for the newly opened account . Email to be sent to the customers on Interest certificate, Ministatement, Balance enquiry etc.		



30	CTI Integration for auto-pop up of customer profile/360 degree view in CRM on every incoming/outgoing call & incoming email & web chat alert on Avaya/CISCO.		
31	Option to create lead & service request from Customer 360 screen . List of pending cases including complaints, inquiries, grievances etc. with details.		
32	All Interactions & inbound/outbound communications from various channels including email/sms..		
33	View of transactions done through various Channels		
34	Provision for graphical representation of customer profile completeness with provision to provide access to user for capturing additional customer data		
35	Log view for customer interactions across all channels		
36	Ability to create new related contact directly from customer 360 view		
37	Provision for digital KYC Compliance with option to upload the necessary OVD document and capture KYC fields by CRM Users and perform validation based on the document type with maker checker provision		
38	Capability to create prospects with minimal information and also to convert prospects to customer.		
39	Providing unified view of Customer 360 in Mobile Client		



40	Capability to show the leads/cases/campaign details of a customer in 360 view.		
41	Maker/Checker functionality in Customer Screen for data capture of Customer Fields with option to enable/disable the functionality field wise		
42	Option to modify specific customer fields and attach documents in different formats (like pdf, docx, jpg, png etc.) in Customer 360 View.		
43	Data quality check is in-built into the system and data governance is part of this module		
44	CRM as system of engagement (CBS/MDM as system of record unless stated) unified interaction timeline minimal-click SR fulfilment for top journeys service-to-sales triggers with attribution.		
45	Headless 360 APIs event ingestion from core systems and publishing to analytics row/field security reconciliation hooks for key fields.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
D.	Lead Management:		
1	Ability to generate leads for ETB and prospective non-Customers.		
2	Lead Capturing-CRM platform should be able to ensure that every lead is automatically fed into the Lead system from current source such as existing bank		

	applications, web site, Chatbot, internet banking, mobile banking, Retail assets, Liabilities, whole sale banking, Government Business, Social Media, Supply chain Finance, DSA and DST, Business correspondent portal, Credit card, Demat, MSME, AGRI, Wealth Management, SMS, Missed calls and social media (such as Facebook, twitter etc.) among other sources and preventing prospects from falling through the cracks. The ability to quickly import leads from offline sources.		
3	Lead module products integration with Contact centre which includes drop off leads and redirection to Branches based on the disposition and sub disposition type selected by the Contact centre based on customer due diligence.		
4	Ability to onboard the customer through Omni Channel/ Digital Lending Platform with seamless integration.		
5	Auto-response management: Automatically send personalized responses to Web site inquiries		
6	Ability to incorporate Lead Generation (LG) and Lead Conversion (LC) concept in the Lead Management Module		
7	Ability to auto assign leads based on business rules or configuration on Product Wise /Category/Customer Group wise/disposition/sub disposition etc.		
8	End User De-duplication: Option to configure deduplication check on lead creation End User De-duplication using business logic shared by the Bank based on any field in Lead Object in configurable mode.		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model



9	Ability to generate and push lead notification to CRM users (Lead Owner/Generator, Lead Converter/Supervisor) at various stages i.e from sourcing to processing based on workflow through SMS, Email Channel on real time basis.		
10	Ability to generate SMS/Email notification to customer on lead creation, lead closure and on different stages of lead process based on lead workflow configuration.		
11	Ability to configure Lead TAT Escalation based on Product Category.		
12	Ability to attach documents by CRM users for any lead generation.		
13	Ability to show customer interactions (happening from different channels like Email, SMS, Chat, Website, IVR) of a lead in a single view of Lead Screen to bring an Omni Channel Experience.		
14	Ability to create Lead Lifecycle/ Workflow based on Product or any other field in lead entity.		
15	Ability of auto-closure of Leads by integrating with different subsystems like CBS, Third Party Applications in real time and batch mode of integration after reaching the end date.		
16	Differentiator to identify a lead is closed manually by any CRM user or auto closed by the software.		
17	Ability to do End-to-end tracking of leads captured through various channels viz email, SMS, Missed calls, Mobile / Internet		

	Banking, branch, social media and third-party partners etc. using any of the lead identifiers such as Lead ID, Customer ID, Mobile Phone, Email etc.		
18	Email Integration Capability for Lead Creation with Mailbox . Lead Integration capability with SMS Gateway.		
19	Lead Email Tracking ability & mailbox folder tracking option for lead generation		
20	Ability to generate dynamic reports and Dashboards on lead module & option to export the result set into different formats like docx, pdf etc		
21	Ability to do text mining and NLP processing for processing leads getting created through Email Channel.		
22	Ability to configure lead visibility based on User Role/Organization Hierarchy or Team wise.		
23	The proposed CRM solution should have Deal module with various stages such as win-lose analysis, competitive analysis, etc., and detailed reports should be available at each stage as per Bank's requirement		
24	Maker/Checker functionality in Lead Processing in configurable mode based on product.		
25	Ability to attach and download documents by CRM users in any flow.		
26	Ability for bulk import of leads from feed file/excel file by privileged CRM users from GUI.		

27	Availability of Document Repository for Lead Module to be available for CRM users like executives/officers with keyword-based content tagging and search ability		
28	Platform should have strong file level validation controls for size, type, and content. Files to be scanned for any malicious content through an antivirus.		
29	The file store locations need to be secured. Standard cryptographic controls to be supported.		
30	Suitable provision to Share & engage the leads with another team without change of ownership. Suitable permissions to EDIT/VIEW provision will also be required to initiate them on a need basis.		
31	Lead nurturing seeks to educate and demonstrate the value of the product/services through: A. Inbound Marketing— blogging, social media updates, social media engagement, premium content (eBooks, info-graphics, videos, webinars), calls-to-action, landing pages etc. B. Demand Generation— Channels like paid search (PPC), social media ads, native ads, email marketing, direct mail, print ads, media ads etc. can be used to get relevant leads for your business.		
32	Lead Enrichment: Once lead enter in our system it needs to be enriched so that it will be easy for bank employees to decide the viability of the loan. It can be done through collecting and presenting existing information such as Credit score, payment history etc. about the customer among other things.		

33	Lead scoring functionality: Ability to mark scoring on leads generated for Customer/Non Customers. For example, leads scoring logic can be based on CUSTOMER PROFITABILITY INDEX/Customer Worth, Transaction history, Internal Rating, vintage criteria etc. for customers and for the Non Customers it can be based on previous interactions, on AI inputs, income criteria/profession/line of business, based on any field inputs etc.		
34	Ability to provide system generated Next Best Action prompt on leads based on ML/AI triggers, previous interactions, lead scoring , etc.		
35	Ability to convert a Lead into a Customer without reentering the customer information captured during the prospecting stage		
36	The entire lead generation process should be under scrutiny by CRM to ensure that it is as effective as possible in bringing new leads, converting them into customers and retaining them overtime. Different analytics tools can be used to optimize each step in the process and make strategic decisions to improve results		
37	Lead Campaign Mapping: The ability to track every lead back to a specific marketing campaign		
38	Availability of Document Repository for Lead Module to be available for CRM user's like call centre agents/branch staff/sales executives with key word based content tagging and search ability.		
39	Ability to set lead ownership based on product basis, or in Round Robin pattern if		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

	multiple users are available in a team with option to configure the logic in application by Sales Team		
40	Availability of Audit trails to identify all the modifications (in field level and data level) done in a lead.		
41	Ability to differentiate between Existing and New Customers, business canvassed and generated automated reports.		
42	Lead Life cycle defining in admin console, Purging out and taking back up of old leads after pre decided time period by Admin.		
43	TAT based escalation matrix for follow-up and conversion of leads.		
44	Activity Management & Tracking: Provision to set up different tasks such as, phone call, appointments, meetings, e-mail etc. Further to this, facility to modify the status of the all the pending activities like meeting/appointment etc.		
45	Data quality check is in-built into the system and data governance is part of this module.		
46	Incorporation of drop off leads from various channels through real time integration with DLP/LLPS/Website/Mobile Banking/Internet Banking .		
47	Admin view with permissions for User Management and access, customization of workflows/ rules/ escalations and bulk upload features		
48.	Visual representation of journey life cycle with stages and functionality to click and		



	view the actions/communications/proposed steps at any stage of the lead.		
49.	The CRM functionality on the mobile interface must include capabilities such as: • Assign tasks • Easily manage and enter account information • Add and organize contacts • Schedule meetings • Transmit meeting notes or details at the point of contact • Assign follow up activities • Track existing or new opportunities • Request approvals		
50	Lead SLA + time-to-first-action; dedupe + merge lead quality scoring; accept bank lead scoring/NBA service-to-lead conversion		
51	Headless lead APIs + lead milestone events integration hooks for portals/partners score provenance storage.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
E.	Sales Management:		
1	Ability to maintain individuals or corporate prospects or potential target customers lists.		

2	Ability to convert a Prospect into a Customer without re-entering the customer information captured during the prospecting stage		
3	Ability to monitor neglected/archived leads based on activity history of a lead.		
4	Ability to set and track leads expiry based on pre configured criteria for different products and segments		
5	Ability to monitor leads performance and SLA and configure escalation matrix for each type of leads		
6	Ability to control and notify about duplicate leads based on pre-configurations		
7	Ability to capture an opportunity with estimated revenue and closure date		
8	Ability to provide a consolidated dashboard to get an overview of the targets against actuals. This should be multi level (e.g. overall, per team, individual, etc.)		
9	Ability to provide a sales performance report based on criteria such as product-wise, revenue-wise etc. The report should display the sales performance details such as the status (won, lost, rejected), turnaround time, etc.		
10	Ability to provide dashboard to User, Branch Manager, Regional Manager, Zone Manager or any others to show the sales performance of each User/RM in their respective branch.		
11	Ability to provide dashboard to Product Manager to show the sales performance of each product as organization level.		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model



12	Ability to retrieve a product's actual sale volume from the 'Actual Revenue' figure of that product's Opportunity.		
13	Pre-approved and customised offers and cross sell opportunities using analytics based on Customer behaviour, spend analysis, existing holding pattern.		
14	Ability to track sales through call centres/ IVR with real time tracking options and reports .		
15	Agent wise sales progress reports at contact centres		
16	Auto follow up reminders for Field functionaries and system generated reminders for interested customers		
17	Ability to customise reporting structure based on sales/product type.		
18	Stage playbooks with mandatory actions/fields audit trail for stage/value/close date service-to-sales measurement dashboards.		
19	Opportunity APIs + events embed sales actions into portals/apps audit logging and versioned workflow rules.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
F.	Mobile & Field CRM:		
1	System should have the provision to support Sales & Activity Management on mobility solutions.		



2	The proposed solution must provide CRM data and functionality to mobile workforce anywhere through browser based mobile first solution as well as a native mobile application.		
3	Mobile solution should support GPS tracking of the field workforce with ability to checking for meetings.		
4	The proposed solution must enable mobile users to not only view CRM data but also with online update capability.		
5	The CRM functionality on the mobile interface must be familiar and easy to use.		
6	The CRM functionality on the mobile interface must include capabilities such as: • Assign tasks • Easily manage and enter account information • Add and organize contacts • Schedule meetings • Transmit meeting notes or details at the point of contact • Assign follow up activities • Track existing or new opportunities • Request approvals		
7	The mobile device access of CRM data must be controlled by the CRM system and provides access and relevant data to authorized individuals only.		
8	User Profile Maintenance (Add/Delete/Modify/Enable/Disable ec.), Assigning specific Rights, Activity Log shall be stored, generated as and when required.		
9	Generation of Resolverwise Reports, Dashboards, Resolution Performance,		

	Quality of resolution, Trends under specific Category/Sub-Category etc.		
10	Option to upload pre-approved leads in Bulk by any business vertical		
11	Chatbot facility between the workforce for any knowledge gaining/query/information/ sharing of information etc.		
12	Integration with Lead products like Retail assets, liabilities, WMS, Credit card, Demat, AGRI, MSME and Corporate products like BCMS, Supply chain finance, International Business etc. with realtime data flow.		
13	Offline mode for core actions minimal-click field capture secure evidence upload where relevant.		
14	MDM integration, device binding, encryption, remote wipe sync conflict handling APIs/events for mobile flows observability on sync.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
G.	Contact Center with IVR integration:		
1	Integration and accessibility to Bank's existing/new Call Centre.		
2	Ability to integrate with the IVR system and provide the agent desktop functionality which includes popping up a CRM screen while receiving incoming call and dialling in customer number		

3	Ability to search for a customer or prospect using demographics information and to populate the existing customer's details on the call screen.		
4	Ability for call center agents to capture service requests, and to associate each service request category with a queue/department, to which the service request will be escalated to for fulfilment in the back end systems.		
5	Ability to capture leads from incoming calls and assign those to appropriate queues.		
6	Ability to capture leads, opportunities, or campaign responses during outbound calls.		
7	Ability to find all dispositions captured for a specific caller.		
8	Ability to find all dispositions captured by a specific call center user.		
9	Ability to capture tasks that needs to be completed after calls.		
10	The proposed solution should provide features for handling General enquiries, Account based enquiries and requests, Card related services for all types of customers of the bank.		
11	Role based access to be provided to Outsourced Agents (Inbound and Outbound), Team Leads and other officials at Call Centre. The roles should be defined in the Admin console. The CRM should be made available to outsourced Call Centre Agents as per the discretion of the Bank.		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model



12	The proposed solution should provide Location and contact details of Bank Branches, ATM, kiosks and any other business units of the Bank in search option.		
13	Ability to provide access to collection management module.		
14	Analysis of complaints logged through contact center or available in Bank's CRM.		
15	Ability to capture dispositions of callers, Call Centre Agents and tasks to be completed for requests		
16	Context handover from IVR/chatbot to agent KB-assisted service for FCR wrap-up templates and disposition governance		
17	APIs/events for call interactions transcript references correlation IDs from telephony → CRM monitoring for integration and queue health.		
S.No	Technical and Functional Requirements	Compliance- A/B	Remarks
H.	Reporting and Dashboards		
1	Ability to easily build role based dashboards without any need for programming or software release.		
2	Ability to generate SLA reports at staff/ department level and consolidated level to measure deviations and monitor bank performance indexes		
3	Ability to generate reports on different levels as per the defined user/department structure.		
4	The system should have a capability to provide an integrated reporting tool for		



	new reports to be created as required. The tool should enable the Business users to create dynamic reports i.e generate report by selecting fields of choice as required		
5	The system should have a capability to provide a comprehensive reports for various modules and activities in CRM.		
6	The system should have a capability to make changes to existing reports by end users and should not require major effort from IT department or customization from the service provider.		
7	The system should have a capability to restrict access based on users' roles and authorization. For example, the leads generated by the East zone should be available with the channel head/ regional head of eastern zone. This report should not be visible to the same channel head of South zone. However the channel head of PAN Country will be able to view all the reports.		
8	The system should have a capability to export (& download) reports to other formats such as Excel, CSV and PDF format.		
9	The system should have a capability to schedule reports to various business users at desired frequency such as daily, weekly, monthly, quarterly, yearly. Admin user should have provision to re-schedule/change the frequency as well.		
10	The system should have a capability to allow users to choose a date and time range for which the data can be extracted.		

	There can be restriction on the date range depending on the volume of data.		
11	The system should have a capability of wizard-based report builder for the users.		
12	System should have ability to track changed data and audit trail (i.e., essentially, a log of all action data).		
13	System should have the capability to conduct a drill down within the report.		
14	System should have filter criteria on all the columns present in the report table. That means if Lead generation report contains, branch name, Lead sourced by, Lead source date, Customer Name, Customer Contact number etc. then there should be a filtering criteria against each of the columns available on the report.		
15	System should have ability for reports to be viewable on the screen, in hard-copy format, or available via the web (if security has been allowed to do this for the specific report(s)).		
16	Lead Details reports (Country wise, Zone wise, Region wise, Branch wise, Contact center wise, product wise, line of business wise, sales channel wise, Person wise etc.)		
17	Sales conversion report (Country wise, Zone wise, Region wise, Branch wise, Contact center wise, product wise, line of business wise, sales channel wise, Person wise etc.)		
18	TAT report for SRs and complaints (Country wise, Zone wise, Region wise, Branch wise, Contact center wise, product		

	wise, line of business wise, sales channel wise, Person wise etc.)		
19	Report on total number of open/ in-process/ closed inquiries, complaints, service requests.		
20	Overall response time and average response time (Branch wise, Contact center wise, product wise, line of business wise, sales channel wise, person wise)		
21	System should have the provision to track the performance of business team on following but not limited to: period wise, person wise, customer category wise		
22	System should have the provision to support pre-configured lead related reports such as total Leads, Channel wise Leads, Customer category wise Leads etc.		
23	System should have the provision to provide the managers with dashboards that provide them an overview of their team's performance.		
24	System should have ability to e-mail report from within the tool.		
25	System should provide an option to drag and drop the parameters in the user interface of the reporting page and generate customized reports as per the business requirements.		
26	KPI dashboards TAT, FCR, reopen, backlog aging adoption, conversion/cross-sell regulatory report scheduling.		
27	Governed exports + streaming events to bank analytics row-level security operational dashboards (latency, errors, DLQ, API health).		



Activity / Collaboration (Teams integration etc.)			
S.No	Functionalities		
1	Ability to schedule regular meetings with customers based on segment. For example CRM schedules meetings every three months with corporate customers revenue higher than 50 million Euro		
2	Ability to capture meeting notes in CRM		
3	Ability to show contact History Log and meeting notes		
4	History of relationship/client interactions		
5	Ability to capture opportunities identified during the meeting		
6	Ability to assign opportunities based on lead assignment rules		
7	Ability to generate follow up tasks for meeting action items		
8	Ability to recommend actions/products form AI.		
9	View new or pending tasks/activities		
10	Create a new task or receive a task from other user		
11	Alert on overdue tasks or nearing completion date Appoint and transfer task onto other users		
12	Appoint and transfer task onto other users		
13	Ability to complete/reject multiple tasks at once		



14	Ability to complete tasks with single click without opening the task		
15	KYC Expiry Alerts - System should generate an alert when a KYC is close the expiry.		
16	KYC Renewal - System should allows the RM to initiate a KYC renewal process.		
17	Task SLA + escalation delegation rules auditable reassignment minimal-click creation of tasks from any module.		
18	Headless activity APIs event publishing for task lifecycle integration with bank collaboration standards audit logs.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
I.	Opportunity Management		
1	Opportunity tracking: Manage all information and customer interactions related to a sales deal in one place (opportunity value, status, activities, competitors, partners, etc.).		
2	Lead-opportunity mapping: Automated Conversion of leads to opportunities and track every opportunity back to a specific lead (and hence campaign).		
3	Opportunity scoring functionality: Ability to give scoring on the opportunity. The logic can be developed with the concurrence of the bank.		
4	Multiple dynamic opportunity page layouts: Set up different opportunity page		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model



	layouts to manage different sales situations (e.g. product vs. services opportunity; enterprise vs. small business opportunity).		
5	Opportunity stage history: Maintain history of deal progress change in value and close probability through the sales cycle		
6	Automatic Opportunity Update Reminders: Sales Manager and/or team member can set scheduled Email reminders to keep opportunity information current.		
7	Similar Opportunities - provide ability for user to look up similar opportunities using a variety of search criteria		
8	Product Catalogues: Map the different products to the prospect customer to convert the opportunity to a sale.		
9	Stage governance + loss reason codes pipeline hygiene alerts (stale/no next step) attribution of origin (service vs proactive)		
10	Opportunity events; headless APIs audit logs rule engine with versioning.		
J) Collection Management			
1	Payment Processing: The system should have the capability to process and track customer payments, including credit card, loan, wire transfer, and clearing house transactions etc. The system should also have the ability to allocate payments to specific accounts and reconcile payments against invoices.		
2	Payment Collections: The system should be able to automate the collection process, including sending reminders and		



	overdue notices to customers, alerts for loan recovery, etc. The system should also have the ability to initiate manual collections activities, such as phone calls, emails, FOS (Feet on the street) services etc.		
3	Payment Dispute Management: The system should have the ability to manage payment disputes, including tracking the dispute, resolving the dispute, and updating the customer account accordingly.		
4	Payment Recovery: The system should have the ability to initiate recovery activities, including wage garnishment, legal action, and other methods to recover past-due amounts.		
5	Reporting and Analytics: The system should provide real-time reporting and analytics on payment and collection activities, including aging reports, payment trends, and performance metrics. The system should also allow for customizable reports and dashboards.		
6	Customer Segmentation: The system should have the ability to segment customers using ML-AI based on customer meta data with the bank such as payment history, payment behavior, highrisk/ low risk customers and other relevant factors. This segmentation should further be processed using ML-AI to prioritized which customer need attention such as chances of default in payment of the installment etc.		

7	Clarify boundary CRM tracks cases/tasks/comms core collections ledger remains in bank system compliance controls on contact attempts/consent.		
8	APIs/events to collections platform immutable audit templates governance evidence uploads with repository integration.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
K)	Data Analytics and Forecasting		
1	Should have in-built and customizable Analytical Machine Learning (ML) models for Segmenting the customers, Market Basket Analysis, Customer lifetime value (CLV), Customer Profile, Customer behavioral Study. Option to drill down to various levels HO/CO/RO/upto Branch.		
2	Should be capable of integrating with Bank's existing ML models. Should be capable of integrating with any analytical solution used for ML modelling. The AI/ML should evolve over time by adding more and more data points/inputs to the algorithm and improve the current banking processes.		
3	Should have modules for Customer engagement and Customer Hyper personalization - Preferred time &		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

	Channel.		
4	Should have capability to provide Analytical insights to customers about his profile and suggesting Goal based Upsell/ Cross sell offers to him.		
5	Should be capable of seamlessly integrating ML generated Leads data to campaign module and flow of feedback from campaign to ML models for completion of ML operations life cycle.		
6	Should have overall Communication to customers management module.		
7	Should be capable of having various use cases and scenarios to improve customer satisfaction and customer retention.		
8	Should be capable of categorizing the customers based on risk of churn.		
9	Should be capable of seamlessly integrating data from various modules within the CRM solution.		
10	Capability to convert conversation (From Call center) into a transcript for Text mining models.		
11	Automatically generate follow-up tasks and activities at different stages of business processes.		
12	Deliver proactive alerts to key executives/managers in the system via email, and/or SMS intimating the pending approvals.		



13	Make BYO analytics mandatory KPIs and forecasting outputs must be exportable human-in-loop for automated actions.		
14	Standard data contracts (events + batch extracts) metadata/lineage hooks score/version provenance A/B testing hooks via bank tooling.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
L)	Relationship Banking & RM Toolkit		
1	Use cases for targeting customers may be defined by the Bank from time to time on the basis of ongoing campaigns.		
2	Proposed CRM platform should assist the Relationship manager to cater the wealth management process. We are envisaging broad scope as far as functionality of the package is concerned. The package should enable the Bank in profiling the customers on the basis of financial need, lifestyle, risk profiling etc. and define out the propensity for cross selling/upselling of the various products. It should have the capacity to client mapping as per the profiling. The system should decide the eligibility of the customer and evaluate their need/potential.		
3	Proposed CRM platform should assist user in increasing the fee income business by providing Wealth management services to eligible segment.		

4	Proposed CRM platform should support Relationship manager in acquiring, nurturing, growing and strengthening relationship within the affluent and HNI segment of customers in order to meet Business objectives.		
5	Proposed CRM Platform should facilitate Users to focus on increasing the Total Relationship Value (TRV) and Assets Under Management (AUM) of customers as per the Business objectives, Customer Life Time Value.		
6	Proposed CRM Platform should enable users to make Marketing Decisions on the basis of Customer Lifetime Value of customers. CLTV to be calculated by CRM.		
7	Proposed CRM Platform should facilitate Role definition/ assignment for Relationship Manager.		
8	Proposed CRM platform should have option to monitor the performance of Relationship manager and provide 360 degree MIS.		
9	Ability to Cross sell a range of Investment and Insurance products to customers in order to meet their Financial planning objectives.		
10	Platform should assist in growth of CASA portfolio of the customer, Cross selling mortgages, Credit Cards and drive channel migration and ensure acquisition of more customers from the same household.		

11	CRM package should enable Relationship Management for HNI & ultra HNI customers.		
12	Platform should assist user for Zero error service and building of trust in managing the wealth of the customers.		
13	Platform should facilitate User to do the financial need analysis and risk profiling for the customers with respect to their portfolio periodically		
14	Platform should facilitate User to enlighten customers, branches regarding mutual funds insurance & other investment avenues to increase the wealth of customers.		
15	The package should facilitate User for Cross selling and Up selling of Banks products and services.		
16	The package should facilitate User for designing sales targets based on the period wise, region wise, product wise and comply with overall Business and Marketing Strategy and targets.		
17	Facilitate User for devising engagement strategy for generating revenue.		
18	Facilitate User for the revenue generation through Cross selling using all Bank's touch points including digital payment solutions.		
19	Facilitate user to assign the cross selling targets and measure the penetration as designed by the Bank		

20	Manage, train the workforce employed for cross selling of the Bank product and services and conduct marketing campaigns across Branches.		
21	Facilitate coordinates with retail liabilities section, digital and social media, call center and other key stake holders that facilitate the cross-selling business.		
22	Facilitate User for follow up for conversion of Leads generated.		
23	Relationship Management in CRM package should include features such as portfolio tracking, asset allocation, performance reporting and portfolio rebalancing.		
24	The package should have analytical tools for financial planning, risk management and portfolio analysis.		
25	CRM platform should be capable of facilitating the on boarding of customer's account opening process from lead/opportunity management and manage operations of on boarding of liability products by integrating with the existing systems of the Bank viz. e-KYC, customer profiling, etc		
26	RM cockpit portfolio + service issues + next tasks + cross-sell prompts service-to-sales integration governance for customer communications		
27	Headless RM APIs event publishing for RM activities role/field security audit of communications and recommendations.		



S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
L)	Omnichannel & Self-Service		
1	Unified service + sales journeys across channels (Branch, Contact Centre, Web, Mobile, Messaging, Email/SMS, Social where applicable)		
2	Single customer interaction timeline (touchpoints, SR/cases, communications, offers).		
3	Customer self-service: raise SR/complaint/query, upload docs, track status, interim updates.		
4	Assisted service for staff with guided workflows for top journeys (minimal clicks).		
5	Context-preserving handoff between channels (digital/chat → agent/branch).		
6	Configurable routing/priority by segment/product/geo/VIP/language/channel/SLA.		
7	Notifications management (templates, multilingual, preferences/consent, opt-in/out)..		
8	Service-to-sales conversion: create lead/opportunity from service triggers + follow-ups.		
9	Proactive service triggers from events (e.g., KYC expiry, disputes) to tasks/alerts		
10	Digital deflection via KB before case creation.		
11	Headless APIs for all key actions (create/update/track SR/case, upload docs, comms, handoff).		
12	Event publishing for milestones (created/assigned/escalated/resolved/reopened)..		

13	Integration through bank-approved API gateway/ESB/event bus; no mandatory vendor middleware.		
14	Observability: correlation IDs, monitoring dashboards, retry/replay, DLQ.		
15	Security: SSO, RBAC/ABAC, encryption, consent enforcement, immutable audit logs.		
16	Performance & resilience: response-time SLAs, DR, RPO/RTO, capacity benchmarks.		
17	Embeddable UI components (widgets/SDK) for portals/apps without logic duplication.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
L)	Partner & Channel Management (BC / Third-Party Workforce / Partners)		
1	Partner entity management (BC/DSA/partners) with hierarchy, agreements, validity dates.		
2	Partner onboarding workflow incl. approvals, due diligence checkpoints, document capture.		
3	Partner user mapping to branches/regions/products and permitted actions.		
4	Role-based partner access to allowed journeys with field-level restrictions.		
5	Partner lead/referral management (capture → qualify → assign → outcome) with attribution.		
6	SLA-based servicing for partner-raised cases + escalations + communications.		
7	Compliance controls: consent/disclosures/restricted actions + audit evidence..		

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model



8	Partner performance dashboards (leads, conversions, TAT, quality).		
9	Incentive/commission support as feed to bank system (no mandatory calculation in CRM).		
10	Secure partner access via headless APIs and/or partner portal integration with throttling.		
11	Authentication/authorisation integration with bank identity controls + MFA policy.		
12	Data segregation (partner sees only permitted data; tenant-like controls)..		
13	Immutable audit logs for partner actions/data access/docs/comms; export evidence.		
14	Event publishing for partner actions (lead created, referral accepted, case raised).		
15	API versioning/backward compatibility for partner integrations.		

S.No	Technical and Functional Requirements	Compliance- A/B	Response (Confirmed & Understood)
L)	Knowledge Base & Case Management		
1	End-to-end case lifecycle (create/assign/work/interim/resolve-reject/close/reopen/escalate).		
2	Configurable workflows + SLA/TAT by case type and stage; holiday calendar; auto escalation.		
3	Queue-based handling with prioritization, skills-based routing, supervisor controls.		
4	Mandatory classification (root cause/resolution codes) and templates.		
5	Evidence/attachments with role-based access + integration to document repositories.		
6	Knowledge Base lifecycle (create/review/approve/publish/retire), versioning, ownership.		

7	Knowledge-assisted case handling: surface articles/checklists; link article usage to outcomes..		
8	Minimal-click fulfillment: guided resolution steps, macros/quick actions, reusable checklists.		
9	Regulatory handling support (tagging, separate SLA, evidence packs, reporting)		
10	Knowledge deflection in self-service channels prior to case creation.		
11	Service-to-sales triggers: create leads from service interactions with context.		
12	Headless case APIs (create/update/assign/escalate/close/reopen), comms, attachments, search .		
13	Event model for case milestones + KB updates (publish/update/retire).		
14	Full-text search for KB/cases with role-based filtering; multilingual support as required.		
15	Observability: workflow audit trail, integration traceability, SLA breach analytics dashboards.		
16	Security/compliance: immutable audit logs, retention, PII masking non-prod, encryption.		
17	BYO Agentic AI hooks: suggest resolution/draft replies/summarize with human approval + audit.		

Annexure 13 – Service Levels and Service Credits

The Bank will classify all issues in production region in three categories:

- **Severity 1:** Fault/bugs which prevent the software from being used at all or affect the critical operations of the Licensee which is exclusively dependent on functioning of this application/ software.
- **Severity 2:** Faults refer to faults/bugs which severely affect the functionality of the implemented software or affect the critical operations of the Licensee which is exclusively dependent on functioning of this application/ software.
- **Severity 3:** These are bugs those for which workaround solutions exist and/or relate to the non-critical functionality of the implemented software.

The successful bidder undertakes and guarantees that all the errors will be resolved in the production environment; and any failure will be subject to the penalty clause stipulated below. The classification of error types by the bank is final and is binding on the successful bidder.

Issue Classification	From the date of Go Live Phase 1		
	Response Time	Restoration Time*	Resolution Time
Severity 1	30 Minutes	2 hours	12 hours
Severity 2	2 hours	4 hours	24 hours
Severity 3	4 hours	8 hours	72 hours

* The Platform / Application should be restored to working condition within the time stipulated. A penalty of Rs. 25,000/- per hour shall be charged for non-conformance exceeding the restoration time defined for Severity – 1, 2 & 3 on the aforementioned table.

Penalty due to application downtime

The selected service provider shall guarantee 24x7x365 availability with monthly uptime of 99.90%.

Monthly penalty will be deducted for downtime of the CRM Solution (excluding scheduled downtime) as given below. Comprehensive performance dashboard to be provided by the bidder

to Bank for monitoring. performance, uptime of the systems and resources, service availability, adherence to SLA requirements, incident response mechanism, etc.

Application Uptime (U)**	Penalty
U > = 99.90	No Penalty
99.50 <=U< 99.90	0.1% of cost of project
99.00 <=U< 99.50	0.2% of cost of project
98.50 <=U< 99.00	0.3% of cost of project
98.00 <=U< 98.50	0.4% of cost of project
U<98.00	0.5% of cost of project

** Bidder to submit monthly application uptime report.

The SLA charges (Other than Actual loss / penalty) will be subject to an overall cap of 10% of the Quarterly Charges and thereafter, Bank has the discretion to cancel the contract. The actual loss / penalty if applied by the Bank to the bidder will fall under the overall cap as per the Limitation of Liability clause of the RFP / Agreement.

Penalty related to onsite resources

- If there is any delay in deployment/replacement of resource for 1 month or more, 10% of the monthly charges payable for total engineers will be deducted as penalty every month. Penalty will be deducted from Next Pending Payment.
- Attendance of resources, duly signed by project coordinator / project manager, to be submitted to Bank every month.
- In case, if any of the required onsite technical support engineer(s) is/are not available in office on any particular day, the Bank will be deducting the cost of those resources for the period of their absence

Annexure 14 – Masked Commercial Bid

SL.No.	Items	OTC (One Time Cost)	Y1	Y2	Y3	Y4	Y5	TOTAL
			AMT	AMT	AMT	AMT	AMT	AMT
1	License* Cost (40000 No's)	X	0.00	0.00	0.00	0.00	0.00	0.00
2	Implementation Cost (as One time Cost) for phase 1	0.00	X	X	X	X	X	0.00
	Implementation Cost (as One time Cost) for Phase 2	0.00	X	X	X	X	X	0.00
Total A :		0.00	0.00	0.00	0.00	0.00	0.00	0.00
Optional Item (Bank will avail the service of the optional Items as per Bank requirement.								
3	Onsite Support Charges							
	L1, resource (3 Shift per day (24x7))**	X	0.00	0.00	0.00	0.00	0.00	0.00
	L2 resource (2 Shift per day)**	X	0.00	0.00	0.00	0.00	0.00	0.00
	L3 resource (1 Shift per day)**	X	0.00	0.00	0.00	0.00	0.00	0.00
4	Contact Centre integration cost	0.00	X	X	X	X	X	0.00
5	500 Man-days cost for customization which is not mentioned in the current scope ***	0.00	X	X	X	X	X	0.00
Total B :		0.00	0.00	0.00	0.00	0.00	0.00	0.00
Total Cost of Ownership (TCO) (Rs.) (A+B)								0.00
GST Amount (Rs)								0.00
Total Cost of Ownership (TCO) including GST (Rs)								0.00

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

1. The Bank has projected a total requirement of 40,000 user licenses for the proposed CRM solution. The procurement and activation of these licenses shall be carried out in a phased manner, based on the Bank's operational requirements. The implementation should start development licenses. The production licenses will be activated at the time of go-live of the module.
2. **Bidder need to provide the onsite support cost as shift per day, however Bank have its own discretion to avail the onsite service (increase / decrease) per shift cost provided by the bidder.
3. ***Bidder need to provide projected 500 Man-days cost for customization which is not mentioned in the current scope, however Bank have its own discretion to avail the service at per man-day cost provided by the bidder

We abide by following terms and conditions

- a. All prices to be quoted in Indian Rupee (INR) only. The Bidder is expected to provide the GST amount separately in the commercial bid.
- b. If the cost for any line item is indicated as zero then it will be assumed by the Bank that the said item is provided to the Bank without any cost.
- c. Price Bid should be comprise values only upto 2 decimal places. For the evaluation purpose, Bank will consider values only upto 2 decimal places for all calculations & ignore all figures beyond 2 decimal places. In case of discrepancy between figures and words, the amount in words shall prevail. The Bidder has to make sure all the arithmetical calculations are accurate and Bank should not be held responsible for any incorrect calculations. However for the purpose of calculation, Bank will take the corrected figures / cost. The Price Bid submitted with an adjustable quote will be treated as non-responsive and Bid will be rejected.
- d. There shall be no escalation for prices during the currency of 5 years contract period and any extension thereof. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected..
- e. It is the responsibility of the Bidder to change or upgrade the licenses for ensuring the compliance to statutory, regulatory guidelines from RBI, TRAI, IRDA, NPCI, IBA etc. at no extra cost to the Bank.
- f. All the payments will be released as per the payment terms on submission of invoices along with all supporting documents duly stamped and signed by Project Managers of the successful bidder and Bank officials. Bank will deduct applicable TDS, if any, as per the law of the land.
- g. Bank reserves the right to disqualify the Bidder in case of any deviation observed in the commercial Bid

Further, we confirm that we will abide by all the terms and conditions mentioned in the Request for Proposal document.

Authorized Signatory
Name:

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management
(CRM) Solution on Subscription (SaaS) Model

Designation:
Vendor's Corporate Name

Annexure 15–Commercial Bid

SL.No.	Items	OTC (One Time Cost)	Y1	Y2	Y3	Y4	Y5	TOTAL
			AMT	AMT	AMT	AMT	AMT	AMT
1	License* Cost (40000 No's)	X	0.00	0.00	0.00	0.00	0.00	0.00
2	Implementation Cost (as One time Cost) for phase 1	0.00	X	X	X	X	X	0.00
3	Implementation Cost (as One time Cost) for Phase 2	0.00	X	X	X	X	X	0.00
Total A :		0.00	0.00	0.00	0.00	0.00	0.00	0.00
Optional Item (Bank will avail the service of the optional Items as per Bank requirement.								
4	Onsite Support Charges							
	L1, resource (3 Shift per day (24x7))**	X	0.00	0.00	0.00	0.00	0.00	0.00
	L2 resource (2 Shift per day)**	X	0.00	0.00	0.00	0.00	0.00	0.00
	L3 resource (1 Shift per day)**	X	0.00	0.00	0.00	0.00	0.00	0.00
5	Contact Centre integration cost	0.00	X	X	X	X	X	0.00
6	500 Man-days cost for customization which is not mentioned in the current scope ***	0.00	X	X	X	X	X	0.00
Total B :		0.00	0.00	0.00	0.00	0.00	0.00	0.00
Total Cost of Ownership (TCO) (Rs.) (A+B)								0.00
GST Amount (Rs)								0.00
Total Cost of Ownership (TCO) including GST (Rs)								0.00

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

1. The Bank has projected a total requirement of 40,000 user licenses for the proposed CRM solution. The procurement and activation of these licenses shall be carried out in a phased manner, based on the Bank's operational requirements. The implementation should start development licenses. The production licenses will be activated at the time of go-live of the module.
2. **Bidder need to provide the onsite support cost as shift per day, however Bank have its own discretion to avail the onsite service (increase / decrease) per shift cost provided by the bidder.
3. ***Bidder need to provide projected 500 Man-days cost for customization which is not mentioned in the current scope, however Bank have its own discretion to avail the service at per man-day cost provided by the bidder

We abide by following terms and conditions

- a. All prices to be quoted in Indian Rupee (INR) only. The Bidder is expected to provide the GST amount separately in the commercial bid.
- b. If the cost for any line item is indicated as zero then it will be assumed by the Bank that the said item is provided to the Bank without any cost.
- c. Price Bid should be comprise values only upto 2 decimal places. For the evaluation purpose, Bank will consider values only upto 2 decimal places for all calculations & ignore all figures beyond 2 decimal places. In case of discrepancy between figures and words, the amount in words shall prevail. The Bidder has to make sure all the arithmetical calculations are accurate and Bank should not be held responsible for any incorrect calculations. However for the purpose of calculation, Bank will take the corrected figures / cost. The Price Bid submitted with an adjustable quote will be treated as non-responsive and Bid will be rejected.
- d. There shall be no escalation for prices during the currency of 5 years contract period and any extension thereof. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected..
- e. It is the responsibility of the Bidder to change or upgrade the licenses for ensuring the compliance to statutory, regulatory guidelines from RBI, TRAI, IRDA, NPCI, IBA etc. at no extra cost to the Bank.
- f. All the payments will be released as per the payment terms on submission of invoices along with all supporting documents duly stamped and signed by Project Managers of the successful bidder and Bank officials. Bank will deduct applicable TDS, if any, as per the law of the land.
- g. Bank reserves the right to disqualify the Bidder in case of any deviation observed in the commercial Bid.

Further, we confirm that we will abide by all the terms and conditions mentioned in the Request for Proposal document.

Authorized Signatory

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management
(CRM) Solution on Subscription (SaaS) Model

Name:

Designation:

Vendor's Corporate Name

Annexure 16 – Performance Bank Guarantee (PBG)

BANK GUARANTEE

(FORMAT OF PERFORMANCE BANK GUARANTEE)

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

WHEREAS M/S (Name of Bidder) a Company registered under the Indian Companies Act, 1956 and having its Registered Office at , (Please provide complete address) (hereinafter referred to as "Bidder") was awarded a contract by Bank of Baroda (the Bank) vide their Purchase Order no. dated (Hereinafter referred to as "PO") for

AND WHEREAS, in terms of the conditions as stipulated in the PO and the Request for Proposal document No. Dated For

(hereinafter referred to as "RFP"), the Bidder is required to furnish a Performance Bank Guarantee issued by a Public Sector Bank/ schedule commercial bank in India other than the Bank of Baroda in your favour for Rs..... /- towards due performance of the contract in accordance with the specifications, terms and conditions of the purchase order and RFP document (which guarantee is hereinafter called as "BANK GUARANTEE").

AND WHEREAS the Bidder has approached us for providing the BANK GUARANTEE.

AND WHEREAS at the request of the Bidder, we, a body corporate in terms of the Banking Companies Acquisition and Transfer of Undertakings Act, 1970/1980 having it's..... Office at and a branch interalia at..... India have agreed to issue the BANK GUARANTEE.

THEREFORE, WE, (name of Bank and its address)through our local office at..... India furnish you the BANK GUARANTEE in manner hereinafter contained and agree with you as follows:

1. We..... do hereby expressly, irrevocably and unconditionally undertake to pay the amounts due and payable under this Guarantee without any demur, merely on demand from you and undertake to indemnify you and keep

you indemnified from time to time and at all times to the extent of Rs./- (Rupees only) against any loss or damage caused to or suffered by or that may be caused to or suffered by you on account of any breach or breaches on the part of the Bidder of any of the terms and conditions contained in the PO and RFP / SLA and in the event of the Bidder committing default or defaults in carrying out any of the work or discharging any obligation under the PO or RFP document or otherwise in the observance and performance of any of the terms and conditions relating thereto in accordance with the true intent and meaning thereof, we shall forthwith on demand pay to you such sum or sums not exceeding the sum of Rs...../-(Rupees only) as may be claimed by you on account of breach on the part of the Bidder of their obligations or default in terms of the PO and RFP.

2. Notwithstanding anything to the contrary contained herein or elsewhere, we agree that your decision as to whether the Bidder has committed any such breach/ default or defaults and the amount or amounts to which you are entitled by reasons thereof will be binding on us and we shall not be entitled to ask you to establish your claim or claims under Bank Guarantee, but will pay the same forthwith on your demand without any protest or demur. Any such demand made by Bank of Baroda shall be conclusive as regards the amount due and payable by us to you.
3. This Bank Guarantee shall continue and hold good until it is released by you on the application by the Bidder after expiry of the relative guarantee period provided always that the guarantee shall in no event remain in force after (date) without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing before the expiry of the said date which will be enforceable against us notwithstanding that the same is or are enforced after the said date.
4. You will have the fullest liberty without our consent and without affecting our liabilities under this Bank Guarantee from time to time to vary any of the terms and conditions of the PO and RFP or extend the time of performance of the contract or to postpone for any time or from time to time any of your rights or powers against the Bidder and either to enforce or forbear to enforce any of the terms and conditions of the said PO and RFP and we shall not be released from our liability under Bank Guarantee by exercise of your liberty with reference to matters aforesaid or by reason of any time being given to the Bidder or any other forbearance, act or omission on your part or any indulgence by you to the Bidder or any other act, matter or things whatsoever which under law relating to sureties, would but for the provisions hereof have the effect of so releasing us from our liability hereunder provided always that nothing herein contained will enlarge our liability hereunder beyond the limit of Rs./- (Rupees..... only) as aforesaid or extend the period of the guarantee beyond the said (date) unless expressly agreed to by us in writing.
5. The Bank Guarantee shall not in any way be affected by your taking or giving up any securities from the Bidder or any other person, firm or company on its behalf or by the winding up, dissolution, insolvency or death as the case may be of the Bidder.

6. In order to give full effect to the guarantee herein contained, you shall be entitled to act as if we were your principal debtors in respect of all your claims against the Bidder hereby guaranteed by us as aforesaid and we hereby expressly waive all our rights of surety ship and other rights, if any, which are in any way inconsistent with any of the provisions of Bank Guarantee.
7. Subject to the maximum limit of our liability as aforesaid, Bank Guarantee will cover all your claim or claims against the Bidder from time to time arising out of or in relation to the PO and RFP and in respect of which your claim in writing is lodged on us before expiry of Bank Guarantee.
8. Any notice by way of demand or otherwise hereunder may be sent by special courier or registered post to our local address as aforesaid and if sent accordingly it shall be deemed to have been given when the same has been posted.
9. The Bank Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees hereto before given to you by us (whether jointly with others or alone) and now existing enforce and this Bank Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
10. The Bank Guarantee shall not be affected by any change in the constitution of the Bidder or us nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or therewith but will ensure to the benefit of and be available to and be enforceable by the absorbing or amalgamated company or concern.
11. The Bank Guarantee shall come into force from the date of its execution and shall not be revoked by us any time during its currency without your previous consent in writing.
12. We further agree and undertake to pay you the amount demanded by you in writing irrespective of any dispute or controversy between you and the Bidder in any suit or proceeding pending before any court or Tribunal relating thereto, our liability under this present being absolute and unequivocal. The payments so made by us shall be a valid discharge of our liability for payment here under and the Bidder shall have no claim against us for making such payment.
13. Notwithstanding anything contained herein above;
 - a. our liability under this Guarantee shall not exceed Rs./- (Rupeesonly)
 - b. this Bank Guarantee shall be valid and remain in force upto and including the date and
 - c. We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this guarantee.
14. We have the power to issue this Bank Guarantee in your favour under the Memorandum and Articles of Association of our Bank and the undersigned has full power to execute this Bank Guarantee under the Power of Attorney issued by the Bank.

Dated this the day of, 20.....

For and on behalf of

Branch Manager

Seal and Address

NOTE:

1. VENDOR SHOULD ENSURE THAT THE SEAL & CODE NO. OF THE SIGNATORY IS PUT BY THE BANKERS, BEFORE SUBMISSION OF BG
2. STAMP PAPER IS REQUIRED FOR THE BG ISSUED BY THE BANKS LOCATED IN MUMBAI.
3. BANK GUARANTEE IF SUBMITTED, SHOULD BE ACCOMPANIED WITH COPY OF THE SFMS TRANSMITTED AT THE TIME OF ISSUE OF BANK GUARANTEE. AS PER IBA NOTIFICATION NO. PS&BT/GOVT/2305 DATED 16-MAR-2016 ALONG WITH MINISTRY OF FINANCE, GOVERNMENT OF INDIA CIRCULAR F.NO.7/112/2011-BOA DATED 08-MAR-2016 WITH RESPECT TO SENDING BANK GUARANTEE ADVICES THROUGH STRUCTURED FINANCIAL MESSAGING SYSTEM (SFMS), IT IS NECESSARY TO CONFIRM THE AUTHENTICITY OF THE BANK GUARANTEES (BG) BY SFMS MESSAGE. THE SFMS SHOULD BE SENT TO FOLLOWING BRANCH:
BRANCH NAME & ADDRESS: BANK OF BARODA, BKC BRANCH, C-26, G-BLOCK, BARODA CORPORATE CENTER, BANDRA EAST, MUMBAI-400051
IFSC CODE: BARB0BANEAS (FIFTH LETTER IS "ZERO")
4. VENDOR SHOULD ENSURE THAT THE BANK GUARANTEE SHOULD CONTAIN ALL TERMS & CONDITIONS AS PER THIS FORMAT. BANK GUARANTEE SUBMITTED WITH ANY RIDER OR DEVIATION TO THE STIPULATED TERMS & CONDITIONS WILL NOT BE ACCEPTED.

Annexure 17 – Declaration/ undertaking from bidder to comply with the Information and cyber security controls

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

Further to our proposal dated, in response to the Request for Proposal..... (Bank's tender No. hereinafter referred to as "RFP") issued by Bank of Baroda ("Bank") we hereby covenant, warrant and confirm as follows:

We hereby agree to comply with the Information and cyber security controls as per Bank's and Regulatory Authorities IT Security Guidelines on an ongoing basis and regulatory / legal guidelines and directives related to SP / outsourcing issued by regulators / legal entities from time to time. The SP shall provide access to the regulators, legal authorities, Bank and Bank appointed auditors for on-site/off-site supervision.

We ensure that outsourced critical IT services are subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator at no extra cost to the Bank.

We abide with all clauses of Bank's Cyber Security Controls which will be part of the NDA/SLA signed with the Bank at the time of award of contract.

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 18 – Binding Criteria for Technical Presentation

The following criteria must be adhered to by all bidders, in connection with the technical presentations during the bid selection process:

- At least one senior representative from bidder's organization should be present in the technical presentations
- Complete soft copies of the presentation materials should be shared with the Bank before the presentation.
- The Bank will expect and demand that the key personnel showcased by the vendor in the technical presentation should be the same ones that actively drive the project execution.
- Bidders must strictly adhere to the time slots provided (Approx. 75 Minutes) to them for the technical presentation, allowing ample time and scope for question-answers.
- Focus of the presentation should be on the specifics of the approach / methodology being proposed for the Bank.
- Both technical and administrative aspects of the project should be given suitable coverage.
- All aspects of requirements in the RFP should be covered in the presentation.
- All RFP requirements that are not covered by the proposed plan, or not adhered to, should be clearly brought out in the technical presentation, along with reasons / justification on why they will not be covered.
- Any assumption, if taken in the response to RFP document should be clearly brought out in the technical presentation, along with the justification.
- Bank's evaluation and scoring on all aspects including technical presentation are final and non-negotiable.

Annexure 19 – Information/Cyber-Security Measures/Controls for selected Service Provider

1. Incident Response and Management

- 1.1 SPs must have a mechanism/ resources to take appropriate action in case of any cybersecurity incident. They must have written incident response procedures including the roles of staff/outsourced staff handling such incidents; Response strategies shall consider readiness to meet various incident scenarios based on situational awareness and potential/post impact, consistent communication and coordination with stakeholders, including specifically the bank, during response.
- 1.2 SP's BCP/DR capabilities shall adequately and effectively support the SP's cyber resilience objectives and should be so designed to enable the SP to recover rapidly from cyber-attacks/other incidents and safely resume critical operations aligned with recovery time objectives while ensuring security of processes and data is protected.
- 1.3 SPs are responsible for meeting the requirements prescribed for incident management and BCP/DR even if their IT infrastructure, systems, applications, etc., are managed by third party vendors/service providers. SPs shall have necessary arrangements, including a documented procedure for such purpose. This shall include, among other things, to inform the bank about any cybersecurity incident occurring in respect of the bank on timely basis to early mitigate the risk as well as to meet extant regulatory requirements.

2. IT Risk Management

- 2.1 The SP shall carry out Information security / cyber security risk assessment and apply risk treatment measures on regular intervals.
- 2.2 The SP shall put in appropriate cyber security measures in place and comply with the legal and regulatory guidelines and directives.
- 2.3 The SP shall be subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator.

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 20 – Integrity Pact

PRE CONTRACT INTEGRITY PACT (TO BE STAMPED AS AN AGREEMENT)

This pre-bid pre-contract Agreement (hereinafter called the Integrity Pact) is made on _____ day of _____ month, 20____, between, on one hand,

BANK OF BARODA, a body corporate constituted under the provisions of Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 and having its Corporate Office at Baroda Corporate Centre, C-26, G-Block, Bandra-Kurla Complex, Bandra East, Mumbai 400051 (hereinafter referred to as “**BOB**”; which expression shall, unless it be repugnant to the meaning or context thereof, be deemed to mean and include its successors and assigns); and.....hereinafter referred to as “The Bidder /Bidder”

Preamble

BOB is a one of the nationalized PSU Banks having its presence through its _____ number of branches and _____ administrative offices throughout India and _____ overseas territories. BOB is committed to fair and transparent procedures in appointing of its outsource service providers.

The BOB intends to appoint/ select, under laid down organizational procedures, contract/ s for..... The BOB values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness / transparency in its relations with its Bidder(s) and / or Bidder(s).

In order to achieve these goals, the BOB will appoint Independent External Monitors (IEM) who will monitor the tender process and the execution of the contract for compliance with the principles mentioned above.

Section 1 - Commitments of BOB

1. The BOB commits itself to take all measures necessary to prevent corruption and to observe the following principles: -
 - a. No employee of the BOB, personally or through family members, will in connection with the tender for, or the execution of a contract, demand; take a promise for or accept, for self or third person, any monetary or non-monetary benefit which the person is not legally entitled to.
 - b. The BOB will, during the tender process, treat all Bidder(s) with equity and reason. The BOB will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential /additional information through which the Bidder(s) could obtain an advantage in relation known prejudiced persons to the tender process or the contract execution.
 - c. The BOB will make endeavor to exclude from the selection process all.

2. If the BOB obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act, or if there be a substantive suspicion in this regard, the BOB will inform the Chief Vigilance Officer and in addition can initiated disciplinary actions.

Section 2 - Commitments of the Bidder(s)/ Bidder(s)

- a. The Bidder(s) / Bidder(s) commit themselves to take all measures necessary to prevent corruption. The Bidder(s) / Bidder(s) commit themselves to observe the following principles during participation in the tender process and during the contract execution.
 - b. The Bidder(s) / Bidder(s) will not, directly or through any other person or firm, offer, promise or give to any of the BOB's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which he/ she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.
 - c. The Bidder(s) / Bidder(s) will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process.
 - d. The Bidder(s)/ Bidder(s) will not commit any offence under the relevant IPC/ PC Act; further the Bidder(s) / Bidder(s) will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the BOB as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.
 - e. The Bidder(s) / Bidders(s) of foreign origin shall disclose the name and address of the Agents/ representatives in India, if any, similarly the Bidder(s) /Bidders(s) of Indian Nationality shall furnish the name and address of the foreign principals, if any. Further details as mentioned in the "Guidelines on Indian Agents of Foreign Suppliers" shall be disclosed by the Bidder(s) / Bidder(s).
 - f. The Bidder(s) / Bidder(s) will, when presenting their bid, disclose any and all payments made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.
 - g. Bidder(s) / Bidder(s) who have signed the Integrity Pact shall not approach the Courts while representing the matter to IEMs and shall wait for their decision in the matter.
3. The Bidder(s) / Bidder(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3 - Disqualification from tender process and exclusion from future contracts

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model – Eligibility Criteria

If the Bidder, before contract award has committed a transgression through a violation of Section 2 or in any other form such as to put his reliability or credibility as Bidder into question, the Principal is entitled to disqualify the Bidder from the tender process or to terminate the contract, if already signed, for such reason (pagenos.8-17).

Section 4 - Compensation for Damages

- (1) If the BOB has disqualified the Bidder(s) from the tender process prior to the award according to Section 3, the BOB is entitled to demand and recover the damages equivalent to Earnest Money Deposit/ Bid Security.
- (2) If the BOB has terminated the contract according to Section 3, or if the BOB is entitled to terminate the contract according to Section the BOB shall be entitled to demand and recover from the Bidder liquidated damages of the Contract value or the amount equivalent to Performance Bank Guarantee.

Section 5 - Previous transgression

- (1) The Bidder declares that no previous transgressions occurred in the last three years with any other Company in any country conforming to the anti-corruption approach or with any Public Sector Enterprise in India that could justify his exclusion from the tender process.
- (2) If the Bidder makes incorrect statement on this subject, he can be disqualified from the tender process or action can be taken as per the procedure mentioned in "Guidelines on Banning of business dealings".

Section 6 - Equal treatment of all Bidders I Bidders I SubBidders

- (1) In case of Sub-contracting, the Principal Bidder shall take the responsibility of the adoption of Integrity Pact by the Sub-Bidder.
- (2) The BOB will enter into agreements with identical conditions as this one with all Bidders and Bidders.
- (3) The BOB will disqualify from the tender process all bidders who do not sign this Pact or violate its provisions.

Section 7 - Criminal charges against violating Bidder(s) / Bidder(s) /SubBidder(s)

If the BOB obtains knowledge of conduct of a Bidder, Bidder or SubBidder, or of an employee or a representative or an associate of a Bidder, Bidder or SubBidder which constitutes corruption, or if the BOB has substantive suspicion in this regard, the BOB will inform the same to the Chief Vigilance Officer.

Section 8 - Independent External Monitor

- (1) The BOB has appointed competent and credible Independent External Monitors (hereinafter referred to as monitors) for this Pact in consultation with the Central Vigilance Commission. Name: Shri Umesh Kumar (email id: umeshkumar84@rediffmail.com) and Dr. Sandeep Tripathi (email id sandeeptrip.ifs@gmail.com) the task of the Monitors is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.

- (2) The Monitor is not subject to instructions by the representatives of the parties and performs his/ her functions neutrally and independently. The Monitor would have access to all Contract documents, whenever required. It will be obligatory for him / her to treat the information and documents of the Bidders/Bidders as confidential.
- (3) The Bidder(s) / Bidder(s) accepts that the Monitor has the right to access without restriction to all Project documentation of the BOB including that provided by the Bidder. The Bidder will also grant the Monitor, upon his/ her request and demonstration of a valid interest, unrestricted and unconditional access to their project documentation. The same is applicable to Sub-Bidders.
- (4) The Monitor is under contractual obligation to treat the information and documents of the Bidder(s) / Bidder(s) / Sub-Bidder(s) with confidentiality. The Monitor has also signed 'Non-Disclosure of Confidential Information '. In case of any conflict of interest arising during the selection period or at a later date, the IEM shall inform BOB and recuse himself / herself from that case.
- (5) The BOB will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the BOB and the Bidder. The parties offer to the Monitor the option to participate in such meetings.
- (6) As soon as the Monitor notices, or believes to notice, a violation of this agreement, he/ she will so inform the Management of the BOB and request the Management to discontinue or take corrective action, or to take other relevant action. The monitor can in this regard submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action.
- (7) The Monitor will submit a written report to the BOB officials within 15 days from the date of reference or intimation to him by the BOB and, should the occasion arise, submit proposals for correcting problematic situations.
- (8) If the Monitor has reported to the BOB , a substantiated suspicion of an offence under relevant IPC/ PC Act, and the BOB has not, within the reasonable time taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner.
- (9) The word ' Monitor ' would include both singular and plural.

Section 9 Facilitation of Investigation

In case of any allegation of violation of any provisions of this Pact or payment of commission, the BUYER or its agencies shall be entitled to examine all the documents including the Books of Accounts of the BIDDER and the BIDDER shall provide necessary information and documents in English and shall extend all possible help for the purpose of such examination

Section 10 - contract has been awarded. Any violation of the same would entailed is qualification of the Pact Duration

This Pact begins when both parties have legally signed it. It expires for the selected Bidder till the contract period, and for all other Bidders 6 months after the bidders and exclusion from future business dealings.

If any claims made/lodged during this time, the same shall be binding and continue to be valid despite the lapse of this pact as specified above, unless it is discharged / determined by BOB.

Section 11 - Other provisions

- (1) This agreement is subject to Indian Law. Place of performance and jurisdiction is the Corporate Office of the BOB, i.e. Mumbai.
- (2) Changes and supplements as well as termination notices need to be made in writing.
- (3) If the Bidder is a partnership or a consortium, this agreement must be signed by all partners or consortium members.
- (4) Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to the original intentions.
- (5) Issues like scope of work, Warranty/ Guarantee etc. shall be outside the purview of IEMs.
- (6) In the event of any contradiction between the Integrity Pact and RFP/ RFQ/ tender documents and its Annexure, the Clause in the Integrity Pact will prevail.

(For & On behalf of the BOB) (For & On behalf of Bidder/ Bidder)

(Office Seal)

(Office Seal)

Place-----

Date-----

Witness 1:

(Name & Address) _____

Witness 2:

(Name & Address) _____

Annexure 21 – SERVICE LEVEL AND NON-DISCLOSURE AGREEMENT FORMAT

SERVICE LEVEL AND NON-DISCLOSURE AGREEMENT

This Agreement is made at _____ on this.....day of20... by and between

BANK OF BARODA, body corporate constituted under the Banking Companies [Acquisition & Transfer of Undertakings] Act 1970 having its Head Office at Mandvi, Baroda and Corporate Office at Baroda Corporate Centre, C-26, G-Block, Bandra Kurla Complex, Bandra (East), Mumbai- 400051, hereinafter for brevity sake referred to as “**Bank**” (which expression shall, unless repugnant to the context or meaning, include its successors and assigns) of the one Part;

AND

_____, a company incorporated under the Companies Act 1956/2013, India, having its registered office at _____, hereinafter referred to as “**the Service Provider**” (which expression shall, unless repugnant to the context and meaning thereof include its subsidiaries, affiliates, successors and permitted assigns) of the other Part,

(Bank and the Service Provider hereinafter are individually referred to as “Party” and collectively as “Parties”)

WHEREAS

Bank of Baroda is one of the largest public sector banks (PSU) in India with a branch network of over 8300+ branches in India and 80+ branches/ offices overseas including branches of our subsidiaries, distributed in 15 countries. Bank desires to select a Service Provider for ----- and had invited offers.

In response to RFP / Bid no ----- dated ----- issued by Bank, the Service Provider also submitted its offer and has represented that it is engaged in the business of ----- . It further represented to Bank that it has the requisite skill, knowledge, experiences, experts, staff and capability to provide required service to Bank. Relying on representations of Service Provider and other applicable criteria, Service Provider was declared as a successful bidder in the RFP evaluation process. Accordingly Bank has issued a -----.

It was a condition in the RFP that the Parties would enter into a Service Level and Non-Disclosure Agreement which shall include all the services and terms and conditions of the services to be extended as detailed here in.

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model – Eligibility Criteria

NOW, THEREFORE, THIS AGREEMENT WITNESSETH AS FOLLOWS

1. DEFINITIONS

- I. Bank, BOB means 'Bank of Baroda'
- II. ATP means Acceptance Test Procedure
- III. AMC means Annual Maintenance Contract
- IV. BFSI means Banking, Financial services and Insurance
- V. DC Means Data Centre
- VI. DR Means Data Recovery Centre
- VII. MSP means Managed Service Provider of the Bank.
- VIII. SLA means Service Level Agreement
- IX. Total Cost of Ownership (TCO)
- X. SPOC means Single Point of Contact

2. TERM

This Agreement shall come into force from date of issuance of Purchase Order and shall be in force and effect for a period of _____ years from the Go-Live Sign-off date given by Bank officials, unless Bank terminates the Agreement by giving a prior written notice of _____ days as per the terms of this Agreement.

The contract will be deemed completed only when all the items and services contracted by the Bank are provided in good condition, installed, tested and accepted along with the associated documentation provided to concerned Bank officials as per the requirements of the contract executed between the Bank and M/s. _____. Bank may extend /renew the contract for further period on mutually agreed terms and conditions.

3. SCOPE OF SERVICE

The Service Provider agrees to perform the services as part of the scope of this engagement including but not limited to as mentioned in Schedule I of this Agreement. Bank of Baroda reserves its right to change the scope of the services considering the size and variety of the requirements and the changing business & security conditions /environment with mutual consent.

The solutions shall be designed in such a way that they cover all the divisions of the Bank's Data Centre i.e., Domestic, Foreign territories and its RRBs, associates, subsidiaries, having separate networks & all separate network segments of each. Bank at its discretion, may use and/or procure (any/all) solution / hardware and its licenses as per the same quoted rates for its RRBs, associates, subsidiaries upon arising the requirements for them.

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model – Eligibility Criteria

Moreover, Bank reserves the right to use, relocate the licenses procured interchangeably to its RRBs, associates, subsidiaries, any of BoB's associates at its own discretion.

4. STANDARDS

Standards: All standards to be followed will adhere to Bureau of Indian Standards (BIS) specifications or other acceptable standards (IS 17802:2021), IT and Cyber policies, internal guidelines, regulatory standards and countrywide regulations and laws from time to time.

5. Code of Ethics

The Service Provider shall comply with the Bank's Code of Ethics, available on the Bank's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics, during the validity period of this agreement/contract.

<https://www.bankofbaroda.in/customer-support/policy-documents>

6. DELIVERY

(Terms mentioned in the RFP)

7. Transportation and Insurance

(Terms mentioned in the RFP)

8. Pre-shipment Inspections

(Terms mentioned in the RFP)

9. Supply, Installation, Testing, Commissioning & Acceptance (SITC)

(Terms mentioned in the RFP)

10. Warranty

(Terms mentioned in the RFP)

11. DOCUMENTATION

The Service Provider shall supply all necessary documentation for the training, use and operation of the system. This will include at least one set of original copies per installation of the user manuals, reference manuals, operations manuals, and system management manuals in English/Hindi.

12. SINGLE POINT OF CONTACT & DIRECT SUPPORT

(Please incorporate following details – Name, designation, address, email address, telephone /mobile No...

Escalation matrix for support should also be provided with full details.

13. PAYMENT TERMS

The method and conditions of payments to be made to the successful bidder shall be:

(Terms mentioned in the RFP)

There shall be no escalation in the prices once the prices are fixed and agreed to by the Bank and the bidder. Payment will be released by IT Dept., as per above payment terms on submission of relevant documents.

The Bank will pay invoices within a period of 30 days from the date of receipt of undisputed invoices. Any dispute regarding the invoice will be communicated to the selected bidder within 15 days from the date of receipt of the invoice. After the dispute is resolved, Bank shall endeavour to make payment within 30 days from the date the dispute stands resolved. However, Bank shall not pay any type of compensation/penalty for late payment of invoice for any reason.

14. SET-OFF

Without prejudice to other rights and remedies available to Bank, Bank shall be entitled to set-off or adjust any amounts due to Bank under this clause from the Service Provider against payments due and payable by Bank to the Service Provider for the services rendered.

The provisions of this Clause shall survive the termination of this Agreement.

15. COVENANTS OF THE SERVICE PROVIDER

The Service Provider shall deploy and engage suitably experienced and competent personnel as may reasonably be required for the performance of the services. During the currency of this Agreement, the Service Provider shall not substitute the key staff identified for the services mentioned in this Agreement.

The Service Provider shall forthwith withdraw or bar any of its employee/s from the provision of the services if, in the opinion of BANK:

- (i) The quality of services rendered by the said employee is not in accordance with the quality specifications stipulated by BANK; or
- (ii) The engagement or provision of the services by any particular employee is prejudicial to the interests of BANK.

All employees engaged by the Service Provider shall be in sole employment of the Service Provider and the Service Provider shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall BANK be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the Service Provider.

The Service provider and sub-contractor, if any, is required to adhere to RBI guidelines for storage of data in India as per regulatory requirements, also to provide complete details of data captured, processed and stored, maintain confidentiality of the Bank's and its customers data and report the same to the Bank. The Service provider will be liable to the Bank for any event of security breach and leakage of data/information. The Service Provider and sub-contractor, if any, should not store or share any data outside the Bank's infrastructure.

The Service Provider:

- xxiii. The Service provider shall be responsible for all negotiations with personnel relating to salaries and benefits and shall be responsible for assessments and monitoring of performance and for all disciplinary matters.
- xxiv. The Service provider shall not knowingly engage any person with a criminal record/conviction and shall bar any such person from participating directly or indirectly in the provision of services under this Agreement.
- xxv. The Service provider shall at all times use all reasonable efforts to maintain discipline and good order amongst its personnel.
- xxvi. The Service provider shall not exercise any lien on any of the assets, documents, instruments or material belonging to BANK and in the custody of the Service Provider for any amount due or claimed to be due by the Service Provider from BANK.
- xxvii. The Service provider shall regularly provide updates to BANK with respect to the provision of the services and shall meet with the personnel designated by BANK to discuss and review its performance at such intervals as may be agreed between the Parties.
- xxviii. The Service provider shall be responsible for compliance of all laws, rules, regulations and ordinances applicable in respect of its employees, sub-contractors and agents (including but not limited to code of Wages Act, Provident Fund laws, Workmen's Compensation Act) and shall establish and maintain all proper records including, but not limited to, accounting records required by any law, code, practice or corporate policy applicable to it from time to time, including records and returns as applicable under labor legislations.
- xxix. The Service provider shall not violate any proprietary and intellectual property rights of BANK or any third party, including without limitation, confidential relationships, patent, trade secrets, copyright and any other proprietary rights in course of providing services hereunder.
- xxx. The Service provider shall ensure that the quality and standards of materials and services to be delivered or rendered hereunder, will be of the kind, quality and timeliness as designated by the BANK and communicated to the Service Provider from time to time.
- xxxi. The Service provider shall not work in a manner which, in the reasonable opinion of BANK, may be detrimental to the interests of BANK and which may adversely affect the role, duties, functions and obligations of the Service Provider as contemplated by this Agreement.
- xxxii. The Service provider shall be liable to BANK for any and all losses of any nature whatsoever arisen directly or indirectly by negligence, dishonest, criminal or fraudulent act of any of the representatives and employees of the Service Provider while providing the services to the BANK.

- xxxiii. The Service provider shall itself perform the obligations under this Agreement and shall not assign, transfer or sub-contract any of its rights and obligations under this Agreement except with prior written permission of BANK.
- xxxiv. The Service provider shall be responsible for applicable insurance coverage such as ESI, Workmen compensation and Employer's Liability Insurance, Accident or injury to workmen Transit Insurance Comprehensive General Liability Insurance, any other insurance required under Law of Regulations or by Employer etc.
- xxxv. The Service provider shall supply a confirmation to the effect that they are not owned or controlled by any director, or key managerial personnel, or approver of the Bank, or their relatives. The terms 'control', 'director', 'key managerial personnel', and 'relative' have the same meaning as assigned under the Companies Act, 2013 and the Rules framed thereunder from time to time. The Service provider shall also inform the Bank in writing if any such occasion arises in future where such ownership or control is exercised by any director, or key managerial personnel, or approver of the Bank, or their relatives.
- xxxvi. The Service provider shall provide a confirmation to the effect that their entity is not funded by Bank of Baroda and hence no sacrifice from the Bank's side is involved

OR

Bidder confirms that their entity is funded by Bank of Baroda and there is no sacrifice involved."

OR

Bidder confirms that their entity is funded by Bank of Baroda and amount of sacrifice involved is Rs. _____"

- xxxvii. The Service provider shall ensure that background verification of all the resources to be deployed on the Bank of Baroda project / on the Bank's premises has been / will be carried out. Whenever required, we shall provide such report within 1 month from the date of on boarding the resources on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after background verification, however not later than 1 month from the date of on boarding.
- xxxviii. The Service provider shall ensure that it is complying with all the directions and clauses as stated in the said circulars:
- c) RBI/2023-24/102 DoS.CO.CSITEG/SEC.1/31.01.015/2023-24 dated 10.04.2023 regarding Master Direction on Outsourcing of Information Technology Services
- d) RBI/2023-24/107 DoS.CO.CSITEG/SEC.7/31.01.015/2023-24 dated 07.11.2023 regarding Master Direction on Information Technology Governance, Risk, Controls and Assurance Practices
- xxxix. The Service provider along with the resources deployed by it and services provided by it, shall ensure compliance of all the clauses and directions of the aforesaid circulars and any subsequent circular/guidelines on the same, throughout the period of the contract.

- xl. The commercial proposal is inclusive of all costs till acceptance of the application / hardware / deliverables as per scope of work by the Bank. The vendor has the option to use transportation from any eligible source. Insurance cover may be taken by the vendor from any eligible source till the acceptance of the Hardware items by Bank. Hence, insurance shall be at sole responsibility of the vendor. The vendor shall also assure that the product would be replaced with no cost to Bank in case insurance cover is not taken.
- xli. The Service provider shall co-operate with the relevant authorities in case of insolvency/ resolution of the Bank.
- xlii. After consulting the bank, the service provider shall identify some of the deployed resources as Essential Personnel under this Agreement. Essential Personnel refers to those who can work on-site during exigencies (including pandemic situations). The roles (Level 1/Level 2/Level 3 and higher) and number of Essential Personnel required may change during exigencies, subject to mutual agreement between the parties. (Where onsite resources are part of SoW requirement).
- xlili. The Service provider shall ensure to have provision for the secure removal and/or destruction of data, hardware and all records (both digital and physical), if necessary. To ensure the seamless transition, the vendor should cooperate fully with the Bank / the new service provider and agree not to delete, purge, revoke, alter or update any data during this time unless specifically instructed to do so by the Bank/regulator.
- xliv. The Service provider shall ensure to have effective business continuity and disaster recovery plan and to ensure the agreed upon service levels. The Service provider shall develop and establish a robust framework for documenting, maintaining and periodic testing of business continuity and recovery procedures and shall maintain a record of the same as per applicable law. The Service Provider shall periodically test the Business Continuity and Management of Disaster Recovery Plan. The Bank may consider joint testing and recovery exercise with the Service provider/vendor.

16. CONFIDENTIALITY

The Service Provider acknowledges that in the course of performing the obligations under this Agreement, it shall be exposed to or acquire information of the bank, which the Service Provider shall treat as confidential.

a. Bank of Baroda product and process details, documents, data, applications, software, systems, papers, statements and business / customer information which may be communicated to or come to the knowledge of Service Provider or Service Provider's employees during the course of discharging their obligations shall be treated as absolutely confidential and Service Provider irrevocably agrees and undertakes and ensures that Service Provider and its employees shall keep the same secret and confidential and not disclose the same, in whole or in part to any third party without prior written permission of

Bank of Baroda. The Service Provider shall not use or allow to be used any information other than as may be necessary for the due performance by Service Provider of its obligations hereunder.

b. The Service provider shall not make or retain any copies or record of any Confidential Information submitted by Bank of Baroda other than as may be required for the performance of Service Provider.

c. The Service provider shall notify Bank of Baroda promptly of any unauthorized or improper use or disclosure of the Confidential Information.

d. The Service provider shall return all the Confidential Information that is in its custody, upon termination / expiry of this Agreement. Also, so far as it is practicable Service Provider shall immediately expunge any Confidential Information relating to the projects from any computer, word processor or other device in possession or in the custody and control by Service Provider or its affiliates.

e. The Service provider shall extent practicable, immediately furnish a certificate signed by its director or other responsible representative confirming that to the best of his/her knowledge, information and belief, having made all proper enquiries the requirements of this paragraph have been fully complied with.

f. The service provider hereby unconditionally agrees and undertakes that it and its employees shall not disclose the terms and conditions of the engagement Agreement/ Work Order or any other oral or written information which may contain, hold or bear confidential information or disclose the information submitted by Bank of Baroda under any other Agreement to any third party unless such disclosure is mandatorily required by law or if it is required necessarily to be disclosed to any other agency/subcontractor or the like for the purpose of performing any of its obligations under the agreement.

g. It shall be the incumbent duty of the Service Provider to undertake not to disclose any business related information of Bank to any third person and the Service Provider shall keep all knowledge of the business activities and affairs of Bank strictly confidential and shall ensure that neither the Service Provider nor any of its officers, employees directly or indirectly assist any third person with the promotion of activities which may be prejudicial to the interest or in competition to the activities of Bank. Service provider shall also ensure to keep the Bank's data separate from data of other entities to whom services are being provided.

However, the Confidential Information will not be limited to the information mentioned above but not include the following as Confidential Information:

- a) Without breach of these presents, has already become or becomes and/or hereinafter will become part of the public domain;
- b) Prior to the disclosure by BoB was known to or in the possession of the Service Provider at the time of disclosure;
- c) Was disclosed or parted with the prior consent of BoB;

- d) Was acquired by Service Provider from any third party under the conditions such that it does not know or have reason to know that such third party acquired directly or indirectly from Bank of Baroda.

The Service provider shall take all necessary action to protect Confidential Information against misuse, loss, destruction, deletion and/or alteration. It shall neither misuse or permit misuse directly or indirectly, nor commercially exploit the Confidential Information for economic or other benefit.

In any dispute over whether information or matter is Proprietary Information or not mentioned herein, it shall be the burden of Service Provider to show that such contested information or matter is not Proprietary Information within the meaning of this Agreement, and that it does not constitute violation under any laws for the time being enforced in India.

The confidentiality obligations shall survive the expiry or termination of this Agreement between the Service Provider and the Bank.

17. INDEMNITY

The Service Provider shall indemnify the Bank, and shall always keep indemnified and hold the Bank, its employees, personnel, officers, directors, (hereinafter collectively referred to as "Personnel") harmless from and against any and all losses, liabilities, claims, actions, costs and expenses (including attorneys' fees) relating to, resulting directly or indirectly from or in any way arising out of any claim, suit or proceeding brought against the Bank as a result of:

- a. Bank's authorized / Bonafide use of the Deliverables and /or the Services provided by Service Provider under this Agreement; and/or
- b. an act or omission of the Service Provider and/or its employees, agents, sub-contractors in performance of the obligations under this Agreement; and/or
- c. claims made by employees or subcontractors or subcontractors' employees, who are deployed by the Service Provider, against the Bank; and/or
- d. claims arising out of employment, non-payment of remuneration and non-provision of statutory benefits by the Service Provider to its employees, its agents, contractors and sub-contractors
- e. breach of any of the term of this Agreement or breach of any representation or false representation or inaccurate statement or assurance or covenant or warranty of the Service Provider under this Agreement; and/or
- f. any or all Deliverables or Services infringing any patent, trademarks, copyrights or such other Intellectual Property Rights; and/or
- g. breach of confidentiality obligations of the Service Provider contained in this Agreement; and/or
- h. Negligence or gross misconduct attributable to the Service Provider or its employees or sub-contractors.

The Service Provider shall be responsible for applicable insurance coverage such as ESI, Workmen compensation and Employer's Liability Insurance, Accident or injury to workmen Transit Insurance Comprehensive General Liability Insurance, any other insurance required under Law of Regulations or by Employer etc. and indemnifies the Bank against all claims under such requirements.

The Service Provider shall at its own cost and expenses defend or settle at all point of time any claim against the Bank that the Deliverables and Services delivered or provided under this Agreement infringe a patent, utility model, industrial design, copyright, trade secret, mask work or trade mark in the country where the Deliverables and Services are used, sold or received, the Bank:

- notifies the Service Provider in writing as soon as practicable when the Bank becomes aware of the claim; and
- Co-operates with the Service Provider in the defense and settlement of the claims.

However, (i) the Service Provider has sole control of the defense and all related settlement negotiations (ii) the Bank provides the Service Provider with the assistance, information and authority reasonably necessary to perform the above and (iii) the Bank does not make any statements or comments or representations about the claim without the prior written consent of the Service Provider, except where the Bank is required by any authority/regulator to make a comment/statement/representation.

If use of deliverables is prevented by injunction or court order because of any such claim or deliverables is likely to become subject of any such claim then the Service Provider, after due inspection and testing and at no additional cost to the Bank, shall forthwith either 1) replace or modify the software / equipment with software / equipment which is functionally equivalent and without affecting the functionality in any manner so as to avoid the infringement; or 2) obtain a license for the Bank to continue the use of the software / equipment, as required by the Bank as per the terms and conditions of this Agreement and to meet the service levels; or 3) refund to the Bank the amount paid for the infringing software / equipment and bear the incremental costs of procuring a functionally equivalent software / equipment from a third party, provided the option under the sub clause (3) shall be exercised by the Bank in the event of the failure of the Service Provider to provide effective remedy under options (1) to (2) within a reasonable period which would not affect the normal functioning of the Bank.

The Service Provider shall not be liable for defects or non-conformance resulting from:

- i. Software, hardware, interfacing, or supplies for the solution not approved by Service Provider; or
- j. any change, not made by or on behalf of the Service Provider, to some or all of the deliverables supplied by the Service Provider or modification thereof, provided the infringement is solely on account of that change ;

Indemnity shall exclude indirect, consequential and incidental damages. However, indemnity would cover damages, loss or liabilities suffered by the Bank arising out of claims made by customer and / or regulatory authorities for reasons attributable to breach of obligations under this agreement by the Service Provider.

In the event of Service Provider not fulfilling its obligations under this clause within the period specified in the notice issued by the Bank, the Bank has the right to recover the amounts due to it under this provision from any amount payable to the Service Provider under this project.

The indemnities under this clause are in addition to and without prejudice to the indemnities given elsewhere in this Agreement. The provisions of this Clause shall survive the termination of this Agreement.

18. INTELLECTUAL PROPERTY RIGHTS

Each Party owns and retains all rights, title and interests in and to its respective Pre-Existing Intellectual Property and Independent Intellectual Property. Independent Intellectual Property means any Intellectual Property developed by a Party independently of the applicable statement of work. "Pre-Existing Intellectual Property" means any Intellectual Property owned by a Party, or licensed to such Party (other than by the other Party), as at the commencement date of the applicable statement of work.

Whereas title to all inventions and discoveries made jointly by the parties resulting from the Work performed as per this agreement shall reside jointly between the parties. Both the parties shall mutually decide the future course of action to protect/ commercial use of such joint IPR. The Intellectual Property Rights shall be determined in accordance with Indian Laws.

Without prejudice to above paras all the interim/ final deliverables shall be property of bank. Subject to requisite payments the service provider deemed to grant exclusive, perpetual rights to use of the deliverables in favor of bank.

19. PERFORMANCE GUARANTEE

The Service Provider, shall provide unconditional and irrevocable Performance Bank Guarantee for INR _____/- (Indian Rupees _____only) in favor of Bank of Baroda from any schedule commercial Bank in India other than Bank of Baroda as acceptable to Bank of Baroda due performance of the contract in accordance of this Agreement. The Performance Guarantee shall be valid for a period of ____ months with additional claim period of three months after expiry of validity period.

20. TERMINATION

In following events Bank shall terminate this assignment or cancel any particular order if service provider:

- h. Breaches any of its obligations set forth in this agreement and such breach is not cured within 15) Working Days after Bank gives written notice; or
- i. Failure by Service Provider to provide Bank, within 15) Working Days, with a reasonable plan to cure such breach, which is acceptable to the Bank. Or
- k. The progress regarding execution of the contract/ services rendered by the Service Provider is not as per the prescribed time line, and found to be unsatisfactory.
- l. Supply of substandard materials/ services
- m. Delay in delivery / installation / commissioning of services.
- n. Discrepancy in the quality of service / security expected during the implementation, rollout and subsequent maintenance process.
- o. If deductions of penalty exceed more than 10% of the total contract price.

Further Bank may terminate this agreement on happening of following events:

- p. A liquidator or a receiver is appointed over all or a substantial part of the undertaking, assets or revenues of the Service Provider and such appointment continues for a period of twenty one (21) days;
- q. The Service Provider is subject of an effective resolution for its winding up other than a voluntary winding up for the purpose of reconstruction or amalgamation.
- r. The Service Provider becomes insolvent or goes into liquidation voluntarily or otherwise
- s. An attachment is levied or continues to be levied for a period of 7 days upon effects of the Agreement.
- t. The Service Provider becomes the subject of a court order for its winding up.
- u. The Service provider is unable to pay its debt as they fall due or otherwise enters into any composition or arrangement with or for the benefit of its creditors or any class thereof;

Notwithstanding above, in case of change of policy or any unavoidable circumstances or without any reason Bank reserve the right to terminate this assignment or any subsequent agreement and / or any particular order, in whole or in part by giving Service Provider at least 30 days prior notice in writing.

Effect of termination

If bank terminates or cancels the assignment on the default mentioned in the termination clause, in such case Bank of Baroda reserves the right to get the balance contract executed by another party of its choice. In this event, the Service Provider shall be bound to make good the additional expenditure which the Bank may have to incur to carry out bidding

process for the selection of a new service provider and for execution of the balance of the contract.

Immediately upon the date of expiration or termination of the Agreement, Bank shall have no further obligation to pay any fees for any periods commencing on or after such date.

Without prejudice to the rights of the Parties, upon termination or expiry of this Agreement, Bank shall pay to Service Provider, within thirty (30) days of such termination or expiry, All the undisputed fees outstanding till the date of termination;

Upon the termination or expiry of this Agreement:

- g) The rights granted to the Service Provider shall immediately terminate.
- h) The Service Provider shall not be relieved of its obligations under the reverse transition mechanism notwithstanding the termination of the agreement.
- i) The Parties therefore agree and undertake that an exit at any point in time resulting due to expiry or termination of this Tender and subsequent Agreement for any reason whatsoever would be a slow process over a period of six (6) months, after the completion of the notice period of three (3) months. During this period, the Vendor shall continue to provide the Deliverables and the Services in accordance with this Tender and subsequent Agreement and shall maintain the agreed Service levels
- j) At the end of contract period and / or as and when desired by the Bank, Vendor must arrange for data as per bank format / process reverse migration to Bank or to new service provider, as & when finalized by the Bank at free of cost.
- k) Upon Bank's request, with respect to (i) any agreements for maintenance, disaster recovery services or other third-party services, and any Deliverables not owned by the Service Provider, being used by Service Provider to provide the Services and (ii) the assignable agreements, Service Provider shall, use its reasonable commercial endeavors to transfer or assign such agreements and Service Provider Equipment to Bank and its designee(s) on commercially reasonable terms mutually acceptable to both Parties.
- l) Upon Bank's decision in writing, Service Provider shall be under an obligation to transfer to Bank or its designee(s) the Deliverables being used by Service Provider to perform the Services free and clear of all liens, security interests, or other encumbrances at a value calculated as stated.

In the event that this Agreement is terminated for any reasons, either Party shall forthwith hand over to the other the possession of all documents, material and any other property belonging to the other that may be in the possession of the Party or any of its employees, agents or individuals.

In the event the Bank terminates the Contract on the ground of default/ breach in whole or in part, the Bank may, among other applicable remedies, procure Goods, Works or

Services similar to those undelivered upon such terms and in such manner as it deems appropriate, and hold the Service Provider liable to the Bank for any excess costs for such similar Goods, Works or Services. However, the Service Provider shall continue performance of the Contract to the extent not terminated.

- v. The rights granted to the Service Provider shall immediately terminate.
- w. Upon Bank's request, with respect to (i) any agreements for maintenance, disaster recovery services or other third-party services, and any Deliverables not owned by the Service Provider, being used by Service Provider to provide the Services and (ii) the assignable agreements, Service Provider shall, use its reasonable commercial endeavors to transfer or assign such agreements and Service Provider Equipment to Bank and its designee(s) on commercially reasonable terms mutually acceptable to both Parties.
- x. Upon Bank's request in writing, Service Provider shall be under an obligation to transfer to Bank or its designee(s) the Deliverables being used by Service Provider to perform the Services free and clear of all liens, security interests, or other encumbrances at a value calculated as stated.

21. CORPORATE AUTHORITY

The Parties represent that they have taken all necessary corporate action and sanction to authorize the execution and consummation of this Agreement and will furnish satisfactory evidence of same upon request.

22. LAW, JURISDICTION AND DISPUTE RESOLUTION

The provisions of this Agreement shall be governed and construed and enforced in accordance with the laws of India. Both Parties shall agree that in respect of any dispute arising upon, over or in respect of any of the terms of this Agreement, only the courts in Mumbai shall have exclusive jurisdiction to try and adjudicate such disputes to the exclusion of all other courts.

ARBITRATION

- a) The Bank and the Service Provider shall make every effort to resolve amicably, by direct informal negotiation between the respective project managers/ directors of the Bank and the Service Provider, any disagreement or dispute arising between them under or in connection with the contract.
- b) If the Bank project manager/director and Service Provider project manager/ director are unable to resolve the dispute after thirty days from the commencement of such informal negotiations, they shall immediately escalate the dispute to the senior authorized personnel designated by the Service Provider and Bank respectively.
- c) If after thirty days from the commencement of such negotiations between the senior authorized personnel designated by the Service Provider and Bank, the Bank and the Service Provider have been unable to resolve contractual dispute amicably, either party may require that the dispute be referred for resolution through formal arbitration.

- d) All questions, disputes or differences arising under and out of, or in connection with the contract or carrying out of the work whether during the progress of the work or after the completion and whether before or after the determination, abandonment or breach of the contract shall be referred to arbitration by a sole Arbitrator acceptable to both parties OR the number of arbitrators shall be three, with each side to the dispute being entitled to appoint one arbitrator. The two arbitrators appointed by the parties shall appoint a third arbitrator shall act as the chairman of the proceedings.
- e) The place of arbitration shall be Mumbai. The Arbitration and Conciliation Act 1996 or any statutory modification thereof shall apply to the arbitration proceedings
- f) The arbitral award shall be in writing, state the reasons for the award, and be final and binding on the parties. The award may include an award of costs, including reasonable attorneys' fees and disbursements. Judgment upon the award may be entered by any court having jurisdiction thereof or having jurisdiction over the relevant Party or its assets.

23. AUDIT and INSPECTION

Service Provider and or its / their outsourced agents/subcontractors (if allowed by the Bank) records with respect to any matters covered by this Agreement shall be made available to auditors and/or inspecting officials of the Bank and/or Reserve Bank of India and/or any regulatory authority, at any time during normal business hours, as often as the Bank deems necessary, to audit, examine, and make excerpts or transcripts of all relevant data. Said records are subject to examination. Bank's auditors would execute confidentiality agreement with the Service Provider provided that the auditors would be permitted to submit their findings to the Bank, which would be used by the Bank. The cost of the audit will be borne by the Bank. The scope of such audit would be limited to Service Levels being covered under the contract, and financial information would be excluded from such inspection, which will be subject to the requirements of statutory and regulatory authorities.

The Bank and its authorized representatives, including Reserve Bank of India (RBI) or any other regulator shall have the right to visit any of the Service Provider's and or his/their outsourced agents/subcontractors (if allowed by the Bank) premises without prior notice to ensure that data provided by the Bank is not misused. The Service Provider shall cooperate with the authorized representative/s of the Bank and shall provide all information/ documents required by the Bank.

Compliance with best security practices may be monitored periodically by computer security audits / Information Security Audits performed by or on behalf of the Bank. The periodicity of these audits will be decided at the discretion of the Bank. These audits may include, but are not limited to, a review of access and authorization procedures, backup and recovery procedures, network security controls and program change controls. The Service Provider must provide the Bank access to various monitoring and performance measurement systems. Service Provider has to remedy all discrepancies observed by the auditors at no additional cost to the Bank.

24. LIMITATION OF LIABILITY

Request for Proposal for Selection of Vendor for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model – Eligibility Criteria

- h) Except the grounds mentioned under the para two of this clause, Service Provider's aggregate liability in connection with obligations undertaken as a part of the Agreement regardless of the form or nature of the action giving rise to such liability (whether in contract, tort or otherwise), shall be at actual and limited to the Total Contract Value.
- i) However, Service Provider's liability in case of claims against the Bank resulting from Willful Misconduct or Gross Negligence of Service Provider, its employees and Subcontractors or from infringement of patents, trademarks, copyrights or such other Intellectual Property Rights or breach of confidentiality obligations shall be unlimited.
- j) Bank shall not be held liable for and is absolved of any responsibility or claim / litigation arising out of the use of any third party software or modules supplied by Service Provider as part of procurement under the Agreement.
- k) Under no circumstances Bank of Baroda shall be liable to the Service Provider for direct, indirect, incidental, consequential, special or exemplary damages arising from termination of this Agreement, even if Bank of Baroda has been advised of the possibility of such damages, such as, but not limited to, loss of revenue or anticipated profits or lost business.
- l) It is expressly agreed between the Parties that for any event giving rise to a claim, Bank shall have the right to make a claim (including claims for indemnification under the procurement in this RFP) against Service Provider.
- m) Subject to any law to the contrary, and to the maximum extent permitted by law neither parties shall be liable to other for any consequential/ incidental, or indirect damages arising out of this agreement.
- n) All employees engaged by the party shall be in sole employment of the party and the respective parties shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall other party be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the other party.

Please note that Customization done by selected vendor has to hand over all source codes to next vendor during transition period.

25. PUBLICITY

Any publicity by the Service Provider in which the name of the Bank is to be used should be done only with the explicit written permission of the Bank.

26. INDEPENDENT ARRANGEMENT

This Agreement is on a principal-to-principal basis between the Parties hereto. Nothing contained in this Agreement shall be construed or deemed to create any association,

partnership or joint venture or employer-employee relationship or principal-agent relationship in any manner whatsoever between the parties. The Service Provider acknowledges that its rendering of services is solely within its own control, subject to the terms and conditions agreed upon and agrees not to hold it out to be an employee, agent or servant of Bank or Affiliate thereof.

27. SUBCONTRACTING

The selected vendor shall not subcontract or permit anyone other than its personnel to perform any of the work, service or other performance required under this project. In case any particular specialized service in the prescribed in the scope of work requires subcontracting, it needs to be specified in the proposal/ response document with all the details of the work/ services. Please note that no work/services shall be subcontracted without prior permission from the Bank in writing.

28. ASSIGNMENT

The Service Provider agrees that the Service Provider shall not be entitled to assign any or all of its rights and or obligations under this Agreement to any entity including Service Provider's affiliate without the prior written consent of the Bank.

If the Bank undergoes a merger, amalgamation, takeover, consolidation, reconstruction, change of ownership, etc., this Agreement along with the subsequent Addendums published shall be considered to be assigned to the new entity and such an act shall not affect the obligations of the Service Provider under this Agreement.

29. INFORMATION OWNERSHIP

All information processed, stored, or transmitted by Service provider equipment belongs to the Bank. By having the responsibility to maintain the equipment, the Service provider does not acquire implicit access rights to the information or rights to redistribute the information. The Service provider understands that civil, criminal, or administrative penalties may apply for failure to protect information appropriately.

30. SENSITIVE INFORMATION

Any information considered sensitive must be protected by the Service provider from unauthorized disclosure, modification or access.

Types of sensitive information that will be found on Bank's systems the Service provider may support or have access to include, but are not limited to: Information subject to special statutory protection, legal actions, disciplinary actions, complaints, IT security, pending cases, civil and criminal investigations, etc.

31. PRIVACY AND SECURITY SAFEGUARDS

The Service provider shall not publish or disclose in any manner, without the Bank's prior written consent, the details of any security safeguards designed, developed, or implemented by the Service provider or existing at any Bank location. The Service provider shall develop procedures and implementation plans to ensure that IT resources leaving the control of the assigned user (such as being reassigned, removed for repair, replaced, or upgraded) are

cleared of all Bank data and sensitive application software. The Service provider shall also ensure that all subcontractors who are involved in providing such security safeguards or part of it shall not publish or disclose in any manner, without the Bank's prior written consent, the details of any security safeguards designed, developed, or implemented by the Service provider or existing at any Bank location.

32. NON – SOLICITATION

The Service Provider, during the term of the contract shall not without the express written consent of the Bank, directly or indirectly: a) recruit, hire, appoint or engage or attempt to recruit, hire, appoint or engage or discuss employment with or otherwise utilize the services of any person who has been an employee or associate or engaged in any capacity, by the Bank in rendering services in relation to the contract; or b) induce any person who shall have been an employee or associate of the Bank at any time to terminate his/ her relationship with the Bank.

33. VICARIOUS LIABILITY

The Service Provider shall be the principal employer of the employees, agents, contractors, subcontractors, etc., if any, engaged by the Service Provider and shall be vicariously liable for all the acts, deeds, matters or things, whether the same is within the scope of power or outside the scope of power, vested under the contract. No right of any employment in the Bank shall accrue or arise, by virtue of engagement of employees, agents, contractors, subcontractors etc., by the Service Provider for any assignment under the contract. All remuneration, claims, wages dues etc., of such employees, agents, contractors, subcontractors etc., of the Service Provider shall be paid by the Service Provider alone and the Bank shall not have any direct or indirect liability or obligation, to pay any charges, claims or wages of any of the Service Provider 's employees, agents, contractors, subcontractors etc. The Service Provider shall agree to hold the Bank, its successors, assigns and administrators fully indemnified, and harmless against loss or liability, claims, actions or proceedings, if any, whatsoever nature that may arise or caused to the Bank through the action of Service Provider 's employees, agents, contractors, subcontractors, etc.

34. FORCE MAJEURE

The Service Provider shall not be liable for forfeiture of its performance security, liquidated damages, penalties or termination for default, if any to the extent that its delay in performance or other failure to perform its obligations under the contract is the result of an event of Force Majeure.

For purposes of this Clause, "Force Majeure" means an event explicitly beyond the reasonable control of the Service Provider and not involving the Service Provider's fault or negligence and not foreseeable. Such events are Acts of God or of public enemy, acts of Government of India in their sovereign capacity, strikes, political disruptions, bandhs, riots, civil commotions and acts of war.

If a Force Majeure situation arises, the Service Provider shall promptly notify the Bank in writing of such conditions and the cause thereof within fifteen calendar days. Unless otherwise directed by the Bank in writing, the Service Provider shall continue to perform

Service Provider's obligations under this Agreement as far as is reasonably practical and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

In such a case the time for performance shall be extended by a period(s) not less than duration of such delay. If the duration of delay continues beyond a period of three months, the Bank and Service Provider shall hold consultations in an endeavor to find a solution to the problem.

35. Incident Response and Management

Service Provider must have a mechanism/resources to take appropriate action in case of any cybersecurity incident. They must have written incident response procedures including the roles of staff/outsourced staff handling such incidents; Response strategies shall consider readiness to meet various incident scenarios based on situational awareness and potential/post impact, consistent communication and coordination with stakeholders, including specifically the bank, during response. Service provider shall report all cyber incidents to the Bank immediately upon detection (if applicable).

Service Provider's BCP/DR capabilities shall adequately and effectively support the Service Provider's cyber resilience objectives and should be so designed to enable the Service Provider to recover rapidly from cyber-attacks/other incidents and safely resume critical operations aligned with recovery time objectives while ensuring security of processes and data is protected.

Service Provider is responsible for meeting the requirements prescribed for incident management and BCP/DR even if their IT infrastructure, systems, applications, etc., are managed by third party vendors/service providers. Service Provider shall have necessary arrangements, including a documented procedure for such purpose. This shall include, among other things, informing the bank about any cybersecurity incident occurring in respect of the bank within 30 minutes of detection to early mitigate the risk as well as to meet extant regulatory requirements.

36. IT Risk Management

The Service Provider shall assist the Bank in adhering to compliance guidelines of the regulatory authorities and facilitate Bank from time to time. The Service Provider shall conform to the security practices and procedures laid down in the Information Technology Act 2000 as amended by the information Technology (Amendment) Act 2008 (IT Act and IT Amendment Act) and the information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or information) Rules 2011 (Privacy Rules).

The Service Provider shall carry out Information security / cyber security risk assessment and apply risk treatment measures on regular intervals. The Service Provider shall put in appropriate cyber security measures in place and comply with the legal and regulatory guidelines and directives.

The Service Provider shall be subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator.

37. BLACKLISTING:

The Bank reserves the right to blacklist the Service Provider from participating in any procurement process of the Bank, if any major non-compliance or fraudulent activity is found at the location or by any of the staff of the service provider.

38. Order / Contract Cancellation

The Bank reserves its right to cancel the order / contract in the event of one or more of the following situations, that are not occasioned due to reasons solely and directly attributable to the Bank alone and it will be considered as a breach of obligations of vendor:

- Delay in implementation beyond the specified period that is agreed in the contract that will be signed with the successful vendor.
- Delay in site readiness and handing over the site to the Bank.
- Serious discrepancy in the quality of service / facility / security expected during the implementation, rollout and subsequent maintenance process.
- The amount of penalties has exceeded the overall cap of 10% of the yearly contract value in any year during the contract period.
- Failure of the vendor makes good the situation within the remedy period.
- The selected vendor commits a breach of any of the terms and conditions of the RFP / contract.
- The selected vendor becomes insolvent or goes into liquidation voluntarily or otherwise.
- An attachment is levied or continues to be levied for a period of 7 days upon effects of the tender.

In case of order cancellation, any payments made by the Bank to the Service provider would necessarily have to be returned to the Bank with interest @ 15% per annum. Further the Service provider would also be required to compensate the Bank for any direct loss incurred by the Bank due to cancellation of the contract and any additional expenditure to be incurred by the Bank to appoint any other SP. This is after repaying the original amount paid.

39. Visitorial Rights

The Bank and its authorized representatives, including Reserve Bank of India (RBI) or any other regulator shall have the right to visit any of the vendor's premises without prior notice to ensure that data provided by the Bank is not misused. The vendor shall cooperate with the authorized representative/s of the Bank and shall provide all information/ documents required by the Bank.

40. Data Protection Clause

- a. The Service Provider shall immediately dispose the data after completion of its permitted use as per the Bank's instructions and in case Bank observes that the data have not been purged/deleted at Service Provider's end from all servers/storage as per Bank's instruction, bank may claim indemnity from Service Provider for actual/direct/indirect/collateral loss suffered by it without any limit.
- b. The Service Provider shall immediately purge data or any of its remains upon termination of this agreement between bank and Service Provider.
- c. The data provided by Bank to Service Provider for a particular purpose shall not be used by Service Provider for any other purpose.
- d. Bank shall have a right to obtain and analyze Service Provider's latest Internet Security audit report, external validations of data security measures and BCM activity report.
- e. Bank shall have a right to conduct verification of IT security measures and cyber security measures adopted by the Service Provider.
- f. Bank may claim indemnity for any sort of data breach of its customers by any act/omission of Service Provider.
- g. The Service Provider shall strictly follow the provisions of "THE DIGITAL PERSONAL DATA PROTECTION ACT, 2023" from its effective date as per the relevant notification of Government of India in the Official Gazette at any point of time in future during the currency of this agreement.

41. MISCELLANEOUS

Any provision of this Agreement may be amended or waived if, and only if such amendment or waiver is in writing and signed, in the case of an amendment by each Party, or in the case of a waiver, by the Party against whom the waiver is to be effective.

No failure or delay by any Party in exercising any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any other right, power or privilege. The rights and remedies herein provided shall be cumulative and not exclusive of any rights or remedies provided by law.

Unless otherwise provided herein, all notices or other communications under or in connection with this Agreement shall be given in writing and may be sent by personal delivery or post or courier to the person at the address given below. Any such notice or other communication will be deemed to be effective if sent by personal delivery, when delivered, if sent by post, two days after being deposited in the post and if sent by courier, one day after being deposited with the courier.

42. RIGHT TO ALTER QUANTITIES

The Bank reserves the right to alter the requirements specified in the Tender. The Bank also reserves the right to delete one or more items from the list of items specified in the Tender.

The Bank will inform (service provider) about changes, if any. (service provider) agrees that the Bank has no limit on the additions or deletions on the items for the period of the contract. Further agrees that the prices quoted by..... would be proportionately adjusted with such additions or deletions in quantities.

43. SURVIVAL

The expiry or the termination of this Agreement does not relieve either party of its obligations which by their nature ought or intend to survive the termination of this Agreement including without limitation under clauses of confidentiality, indemnity, termination, limitation of liability and any covenants of the parties mentioned in this agreement

The addresses referred to hereinabove are:

If to the Bank of Baroda:

The Chief Technical Officer,
Baroda Corporate Centre, C-26, G-Block, Bandra Kurla Complex,
Bandra (East), Mumbai- 400051
ATTN: Assistant General Manager (IT)

If to the

Address _____

ATTN: _____

This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior written agreements, understandings and negotiations, both written and oral, between the Parties with respect to the subject matter of this Agreement. No representation, inducement, promise, understanding, condition or warranty not set forth herein has been made or relied upon by any Party hereto. In case of any contradiction in the terms of RFP _____, offer document and Purchase Order etc., and this Agreement the terms hereof shall prevail.

Neither this Agreement nor any provision hereof is intended to confer upon any Person other than the Parties to this Agreement any rights or remedies hereunder.

In connection with this Agreement, as well as all transactions contemplated by this Agreement, each Party agrees to execute and deliver such additional documents and to perform such additional actions as may be necessary, appropriate or reasonably requested to carry out or evidence the transactions contemplated hereby.

The invalidity or unenforceability of any provisions of this Agreement in any jurisdiction shall not affect the validity, legality or enforceability of the remainder of this Agreement in such jurisdiction or the validity, legality or enforceability of this Agreement, including any such provision, in any other jurisdiction, it being intended that all rights and obligations of the Parties hereunder shall be enforceable to the fullest extent permitted by law.

The captions herein are included for convenience of reference only and shall be ignored in the construction or interpretation hereof.

IN WITNESS WHEREOF, this Agreement has been executed by the Parties hereto on the day and year first above written.

Signed and Delivered by the within named

For Bank of Baroda Name: Designation: Witness 1 : Witness 2 :	For Name: Designation: Witness 1 : Witness 2 :
---	--

Annexure 22 - Letter of Undertaking from OEM/ OSD on Compliance to RBI Master Direction on Outsourcing of IT Services RBI/2022-23/xx DoS.CO.CSITEG/SEC.xx/31.01.015/2022-23 Dated 23rd June 2022

(This letter should be on the letterhead of the Bidder and OEM / OSD / Manufacturer duly signed by an authorized signatory)

To
Chief General Manager (IT)
Bank of Baroda, Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: Request for Proposal for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model.

We (Name of the OEM / OSD) who are established and reputable manufacturers / developers of do hereby undertake that I/We have read and fully understood the outsourcing guidelines as mentioned in the CSP / MSP / OEM / SI as mentioned in the RBI Circular No. DoS.CO.CSITEG/SEC.xx/31.01.015/2022-23 dated 23rd June 2022 for Draft Master Direction on Outsourcing of IT Services.

We do hereby undertake that we comply with the outsourcing guidelines related to CSP/MSP/OEM/SI as mentioned in the RBI Circular No. DoS.CO.CSITEG/SEC.xx/31.01.015/2022-23 dated 23rd June 2022 for Draft Master Direction on Outsourcing of IT Services and we are submitting point-wise compliance and details along with the technical proposal.

We fully understand that if the solution does not comply with one or more clauses in the subjected circular, the solution will not qualify for the next level of evaluation.

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name:

Date:

Annexure 24 – SLA/BG Execution Conformity Letter

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Supply, Implementation, and Maintenance of Customer Relationship Management (CRM) Solution on Subscription (SaaS) Model

Further to our proposal dated, in response to the Request for Proposal..... (Bank's tender No. hereinafter referred to as "RFP") issued by Bank of Baroda ("Bank") we hereby covenant, warrant and confirm as follows:

If selected, we agree to execute a Service Level Agreement with the Bank within 1 month of issuance of Purchase Order. We accept that, the Bank reserves the right to incorporate additional clauses as per legal and regulatory requirements of the Bank if required. Failure on our part to execute an agreement with the Bank will relieve the Bank of any obligation to the bidder, and a different bidder may be selected based on the selection process.

We have no objection if the amount of Earnest Money Deposit (EMD) is forfeited by the Bank in the following scenarios:

- a. Fail to accept and sign the contract as specified in this document within 1 month of issue of purchase order / letter of intent for any reason whatsoever; or
- b. Fail to provide the performance bank guarantee within 1 month from the purchase order date, for any reason whatsoever.

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 20 – Software Bill of Materials (SBOM)

All the software supplied to the Bank or developed for the Bank must be accompanied by a complete SBOM. The SBOM of the software supplied to the Bank or developed for the Bank must include the data fields mentioned below. In addition, the Software OEM/Owner/Vendor must ensure that:

- The Software supplied to the Bank or developed for the Bank is having a complete SBOM including all the dependencies up to the last level.
- Software OEM/Owner/Vendor should design a Vulnerability Exchange Document (VEX) after a vulnerability is discovered informing the bank about the exploitability status to help prioritize the remediation efforts.

Subsequently, Software OEM/Owner/Vendor should provide the Common Security Advisory Framework (CSAF) advisory, which includes detailed information about the vulnerability, such as a description, affected product versions, severity assessment, recommended mitigation steps etc.

- Software OEM/Owner/Vendor will ensure update of the SBOM in case of any version update or any change in the details on the data point in the SBOM for any reason whatsoever.

FORMAT FOR THE SOFTWARE BILL OF MATERIALS (SBOM) OF THE SOFTWARE SUPPLIED TO THE BANK / DEVELOPED FOR THE BANK

Sr.	Data Field	Details
1	Component Name	
2	Component Version	
3	Component Description	
4	Component Supplier	
5	Component License	
6	Component Origin	
7	Component Dependencies	
8	Vulnerabilities	
9	Patch Status	
10	Release Date	
11	End of Life (EOL Date) Date	
12	Criticality	
13	Usage Restrictions	
14	Checksums or Hashes	

15	Executable Property	
16	Archive Property	
17	Structured Property	
18	Unique Identifier	
19	Comments or Notes	
20	Any Other Relevant Data	
21	Author of SBOM Data	
22	Timestamp	

Guidance notes on filling the SBOM format above:

1. **Component Name:** The name of the software component or library included in the SBOM.
2. **Component Version:** The version number or identifier of the software component.
3. **Component Description:** A brief description or summary of the functionality and purpose of the software component.
4. **Component Supplier:** The entity or organization that supplied the software component, such as a vendor, third-party supplier, or open-source project.
5. **Component License:** The license under which the software component is distributed, including details such as the license type, terms, and restrictions.
6. **Component Origin:** The source or origin of the software component, such as whether it is proprietary, open-source, or obtained from a third-party vendor.
7. **Component Dependencies:** Any other software components or libraries that the current component depends on, including their names and versions.
8. **Vulnerabilities:** Information about known security vulnerabilities or weaknesses associated with the software component, including severity ratings and references to security advisories or CVE identifiers.
9. **Patch Status:** The patch or update status of the software component, indicating whether any patches or updates are available to address known vulnerabilities or issues.
10. **Release Date:** The date when the software component was released or made available for use.
11. **End-of-Life (EOL) Date:** The date when support or maintenance for the software component is scheduled to end, indicating the end of its lifecycle.
12. **Criticality:** The criticality or importance of the software component to the overall functionality or security of the application, often categorized as critical, high, medium, or low.
13. **Usage Restrictions:** Any usage restrictions or limitations associated with the software component, such as export control restrictions or intellectual property rights.

14. **Checksums or Hashes:** Cryptographic checksums or hashes of the software component files to ensure integrity and authenticity.
15. **Executable Property:** Attributes indicating whether a component within an SBOM can be executed.
16. **Archive Property:** Characteristics denoting if a component within an SBOM is stored as an archive or compressed file.
17. **Structured Property:** Descriptors defining the organized format of data within a component listed in an SBOM.
18. **Unique Identifier:** A unique identifier is a distinct code assigned to each software component, structured as

"pkg:supplier/OrganizationName/ComponentName@Version?qualifiers&subpath,"
aiding in tracking ownership changes and version updates, thus ensuring accurate and consistent software component management.
19. **Comments or Notes:** Additional comments, notes, or annotations relevant to the software component or its inclusion in the SBOM.
20. **Any Other Relevant Data:** Any other data related to the component may be incorporate herein. Additional rows may be added, if need be.
21. **Author of SBOM Data:** The name of the entity that creates the SBOM data for this component.
22. **Timestamp:** Record of the date and time of the SBOM data assembly.

Yours faithfully,

Authorized Signatory

Name:

Designation:

Company Name:

Address:

Email and Phone #
